



THE SECRETARY OF THE NAVY

SECNAV M-5510.1
JUNE 2019



DEPARTMENT OF THE NAVY

FOREIGN DISCLOSURE MANUAL



PUBLISHED BY
THE DEPARTMENT OF THE NAVY
THE ASSISTANT SECRETARY OF THE NAVY
(RESEARCH DEVELOPMENT & ACQUISITION)

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

FOREWORD

This manual implements the policies set forth in SECNAVINST 5510.34B. It prescribes uniform standards and procedures for the various circumstances under which Navy and Marine Corps activities may disclose Classified and Controlled Unclassified Information to foreign governments, international organizations, and their representatives.

This manual, which is effective immediately, is mandatory and applicable to the offices of the Secretary of the Navy, the Chief of Naval Operations, the Commandant of the Marine Corps, and all Navy and Marine Corps activities, installations, commands, ships, and stations.

This manual may be accessed through the DON Issuances website: <https://www.secnave.navy.mil/doni>. It is approved for public release; distribution is unlimited.

Local supplements to amplify this manual may be issued, but they may not contradict or repeat information contained herein.

A handwritten signature in dark ink, appearing to read 'F. D. Morley', is positioned above the printed name and title.

F. D. MORLEY
Director, Navy International
Program Office

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

TABLE OF CONTENTS

FOREWORD	i
TABLE OF CONTENTS	iii
REFERENCES	x
<u>CHAPTER 1</u> - INTRODUCTION, ORGANIZATION, AND RESPONSIBILITIES	
1. Purpose	<u>1-1</u>
2. Applicability	<u>1-1</u>
3. False Impressions	<u>1-3</u>
4. Disclosure Organization	<u>1-4</u>
5. Responsibilities	<u>1-7</u>
6. Foreign Disclosure Government-to-Government Principle	<u>1-9</u>
7. Security Assurances	<u>1-9</u>
8. Electronic Transmission of CMI Information	<u>1-10</u>
9. Special Circumstances	<u>1-10</u>
10. Disclosure Violations	<u>1-11</u>
<u>CHAPTER 2</u> - DISCLOSURE POLICIES AND DELEGATED AUTHORITIES	
1. General	<u>2-1</u>
2. DON Foreign Disclosure Policies	<u>2-1</u>
3. The National Disclosure Policy	<u>2-3</u>
4. Other Technology Security and Foreign Disclosure Policies and Processes	<u>2-6</u>
5. DON Delegated Authorities	<u>2-7</u>
6. Other Policy-Related Foreign Disclosure Considerations	<u>2-7</u>
<u>CHAPTER 3</u> - CORE DISCLOSURE PROCEDURES	
1. General	<u>3-1</u>
2. False Impressions	<u>3-1</u>
3. Origin of Foreign Disclosure Requests	<u>3-2</u>
4. Proponent Required Information for Disclosure Requests	<u>3-4</u>
5. FDO Summary Analysis of the Disclosure	<u>3-5</u>
6. Detailed Disclosure Analysis	<u>3-8</u>
7. FDO Disclosure Determinations/Authorizations	<u>3-10</u>
8. Disclosures to International Organizations and Foreign National Employees of the DON	<u>3-12</u>
9. False Impression Disclaimer	<u>3-14</u>

CHAPTER 4 - DISCLOSURES OF DOCUMENTARY INFORMATION AND
PRESENTATION MATERIAL

- | | |
|--|------------|
| 1. General | <u>4-1</u> |
| 2. False Impressions | <u>4-1</u> |
| 3. Proponent Requirements | <u>4-2</u> |
| 4. Disclosure Analysis for Documents | <u>4-5</u> |
| 5. Special Disclosure Requirements for DON Laboratories
and Research Facilities | <u>4-6</u> |
| 6. Document Sanitizing | <u>4-6</u> |
| 7. Defense Technical Information Center | <u>4-7</u> |
| 8. U.S./Canada Joint Certification Program | <u>4-7</u> |

CHAPTER 5 - DISCLOSURES OF SOFTWARE AND SOFTWARE DOCUMENTATION

- | | |
|---|------------|
| 1. General | <u>5-1</u> |
| 2. False Impressions | <u>5-2</u> |
| 3. Code-Specific Software Disclosure Considerations | <u>5-2</u> |
| 4. Software Disclosure Guidelines for Initial Transfers | <u>5-3</u> |
| 5. Software Disclosures Post-Initial Transfer | <u>5-5</u> |
| 6. Software Disclosure Advisories | <u>5-7</u> |

CHAPTER 6 - OPERATIONAL DISCLOSURES

- | | |
|--|------------|
| 1. General | <u>6-1</u> |
| 2. False Impressions | <u>6-2</u> |
| 3. Exercise Planning | <u>6-2</u> |
| 4. Disclosures During Foreign Representative Embarks or
Shipyard Visits | <u>6-4</u> |

CHAPTER 7 - MILITARY INTELLIGENCE DISCLOSURES

- | | |
|---|------------|
| 1. General | <u>7-1</u> |
| 2. False Impressions | <u>7-1</u> |
| 3. Disclosure Policies | <u>7-2</u> |
| 4. DON Intelligence Product Guidelines | <u>7-2</u> |
| 5. DON Intelligence Disclosure Procedures | <u>7-3</u> |
| 6. Use of the NOFORN Caveat | <u>7-3</u> |

CHAPTER 8 - FOREIGN MILITARY SALES AND LEASES

- | | |
|--|------------|
| 1. General | <u>8-1</u> |
| 2. False Impressions | <u>8-1</u> |
| 3. Standard FMS Case Types | <u>8-2</u> |
| 4. Initial Case Development Disclosures | <u>8-2</u> |
| 5. P&A and Pre-LOA Disclosure Reviews for Defined
Order Cases | <u>8-3</u> |

6. Case Execution	<u>8-5</u>
7. FMS Case Manager Disclosure Responsibilities	<u>8-6</u>
8. Third Party Transfers of FMS Information	<u>8-7</u>
9. FMS Transportation	<u>8-8</u>

[CHAPTER 9](#) - INTERNATIONAL ARMAMENTS COOPERATION DISCLOSURES

1. General	<u>9-1</u>
2. False Impressions	<u>9-2</u>
3. IA and PA/Annex Compositions	<u>9-2</u>
4. Execution of Foreign Disclosure Authority Under IAs	<u>9-3</u>
5. Disclosures to Non-Participants	<u>9-6</u>
6. Cooperative Information Disclosure Markings	<u>9-6</u>

[CHAPTER 10](#) - TRAINING COURSE DISCLOSURES

1. General	<u>10-1</u>
2. False Impressions	<u>10-2</u>
3. Foreign Student Operations and Maintenance Training	<u>10-3</u>
4. Special Disclosure Approvals Necessary Before Foreign Training	<u>10-4</u>
5. Disclosure Procedures for Classified Training Courses	<u>10-4</u>
6. Disclosure Procedures for CUI Training Courses	<u>10-7</u>
7. Contractor-Provided Training on Behalf of the DON	<u>10-8</u>
8. Disclosure Procedures for Operational DON Training	<u>10-8</u>
9. Foreign Liaison and Exchange Program Personnel Training	<u>10-9</u>
10. Other Training-Related Disclosures	<u>10-10</u>

[CHAPTER 11](#) - ONE-TIME AND RECURRING OFFICIAL FOREIGN VISITS

1. General	<u>11-1</u>
2. False Impressions	<u>11-2</u>
3. The Foreign Visit System	<u>11-2</u>
4. Exemptions to the FVS	<u>11-4</u>
5. FVS Disclosure Review Process	<u>11-7</u>
6. Post-Adjudication FVS Process	<u>11-10</u>
7. Foreign Visitor Pre-Arrival Notice	<u>11-12</u>
8. Host Command Responsibilities	<u>11-12</u>
9. Visits to DON Commands and Facilities Outside of the United States	<u>11-13</u>
10. Foreign Visits Requiring Special Arrangements	<u>11-13</u>

[CHAPTER 12](#) - EXTENDED VISITS

- | | |
|---|-----------------------|
| 1. General | 12-1 |
| 2. Types of Extended Visitors | 12-2 |
| 3. False Impressions | 12-5 |
| 4. Procedures Applicable to All DON Extended Visitors | 12-5 |
| 5. Responsibilities and Prohibitions for FLOs | 12-7 |
| 6. Responsibilities and Prohibitions for PEPs | 12-8 |
| 7. Responsibilities and Prohibitions for CPPs | 12-10 |
| 8. U.S. Contact Officer Responsibilities | 12-11 |
| 9. Extended Visitor Training | 12-13 |
| 10. Extended Visitor Certification Forms | 12-13 |
| 11. Disclosures to U. S. Personnel Detailed to Exchange Billets | 12-13 |

[CHAPTER 13](#) - EXPORT LICENSE REVIEWS AND DETERMINATIONS

- | | |
|---|----------------------|
| 1. General | 13-1 |
| 2. False Impressions | 13-2 |
| 3. Disclosure Review Procedures | 13-3 |
| 4. Special Export Control Considerations | 13-4 |
| 5. Export Controls on DON Developmental Programs | 13-4 |
| 6. DON Activity Working in a Quasi-Commercial Capacity for a Foreign Private Entity | 13-5 |
| 7. Department of the Navy-Sponsored ITAR Exemptions | 13-5 |
| 8. Department of the Navy-Sponsored EAR Exemptions | 13-6 |
| 9. Commodity Jurisdictions | 13-6 |

[CHAPTER 14](#) - SHIP AND AIRCRAFT TRANSFER DISCLOSURE REVIEWS

- | | |
|----------------------|----------------------|
| 1. General | 14-1 |
| 2. False Impressions | 14-2 |
| 3. Procedures | 14-2 |

[CHAPTER 15](#) - PARTICIPATION BY FOREIGN CONTRACTORS IN DON PROCUREMENTS

- | | |
|---|----------------------|
| 1. General | 15-1 |
| 2. False Impressions | 15-2 |
| 3. Procedures for Classified and CUI DON Procurements | 15-2 |
| 4. Technology Control Plan | 15-4 |
| 5. Export-Control Requirement | 15-5 |

CHAPTER 16 - DISCLOSURES TO U.S. COMPANIES UNDER FOREIGN
OWNERSHIP, CONTROL, OR INFLUENCE

- | | |
|--|-------------|
| 1. General | <u>16-1</u> |
| 2. False Impressions | <u>16-2</u> |
| 3. FOCI Mitigation Process | <u>16-2</u> |
| 4. Post-FOCI Negotiation or Mitigation | <u>16-5</u> |
| 5. Limited Facility Clearance | <u>16-5</u> |
| 6. Committee on Foreign Investment in the U.S. | <u>16-6</u> |

CHAPTER 17 - DISCLOSURES OF FOREIGN GOVERNMENT INFORMATION

- | | |
|---|-------------|
| 1. General | <u>17-1</u> |
| 2. False Impressions | <u>17-1</u> |
| 3. FGI Disclosures | <u>17-1</u> |
| 4. Disclosures of Cooperatively Developed Information | <u>17-3</u> |

CHAPTER 18 - DISCLOSURES OF RESTRICTED AND FORMERLY
RESTRICTED DATA

- | | |
|--|-------------|
| 1. General | <u>18-1</u> |
| 2. Disclosure Procedures | <u>18-1</u> |
| 3. US/UK Polaris Sales Agreement and Polaris Trident II
Technical Arrangement | <u>18-3</u> |
| 4. Unauthorized Disclosure | <u>18-3</u> |

CHAPTER 19 - DISCLOSURE MARKING REQUIREMENTS

- | | |
|--|-------------|
| 1. General | <u>19-1</u> |
| 2. Conditions for Foreign Use Marking | <u>19-1</u> |
| 3. False Impressions Disclaimer Marking | <u>19-2</u> |
| 4. Distribution Statement and Export Control Warning | <u>19-2</u> |
| 5. Cooperatively-Generated Distribution Markings | <u>19-3</u> |
| 6. Not Releasable to Foreign Nationals (NOFORN) Caveat | <u>19-3</u> |
| 7. Document Sanitizing | <u>19-3</u> |

CHAPTER 20 - FOREIGN DISCLOSURE MANUAL CHANGE PROCESS

- | | |
|--|-------------|
| 1. General | <u>20-1</u> |
| 2. Categories of Change Recommendations | <u>20-1</u> |
| 3. Change Submission Process | <u>20-1</u> |
| 4. Adjudication of Changes | <u>20-1</u> |
| 5. Issuance of FDM Critical Change Notices | <u>20-2</u> |

APPENDIX A	GLOSSARY	<u>A-1</u>
APPENDIX B	ACRONYM LIST	<u>B-1</u>
APPENDIX C	TOP LEVEL DISCLOSURE DELEGATIONS	<u>C-1</u>
APPENDIX D	FOREIGN DISCLOSURE SELF-ASSESSMENT CHECKLIST	<u>D-1</u>
APPENDIX E	SAMPLE FOREIGN DISCLOSURE INSPECTOR GENERAL CHECKLIST	<u>E-1</u>
APPENDIX F	NDP-1 SECURITY ASSURANCE REQUIREMENTS	<u>F-1</u>
APPENDIX G	NDP-1 FIVE DISCLOSURE CRITERIA	<u>G-1</u>
APPENDIX H	NDP-1 GENERAL DISCLOSURE LIMITATIONS & PROHIBITED DISCLOSURES	<u>H-1</u>
APPENDIX I	NDP-1 CATEGORIES OF MILITARY INFORMATION	<u>I-1</u>
APPENDIX J	REQUEST FOR EXCEPTIONS TO NATIONAL DISCLOSURE POLICY (ENDP)	<u>J-1</u>
APPENDIX K	TECHNOLOGY SECURITY & FOREIGN DISCLOSURE POLICIES AND PROCESSES	<u>K-1</u>
APPENDIX L	DELEGATION OF DISCLOSURE AUTHORITY LETTER (DDL) FORMAT	<u>L-1</u>
APPENDIX M	SAMPLE DISCLOSURE REQUEST	<u>M-1</u>
APPENDIX N	FOREIGN DISCLOSURE & SECURITY ASSISTANCE RECORDS MANAGEMENT	<u>N-1</u>
APPENDIX O	USE OF THE FALSE IMPRESSIONS DISCLAIMER STATEMENT	<u>O-1</u>
APPENDIX P	SANITIZING PROCEDURES	<u>P-1</u>
APPENDIX Q	DEFENSE TECHNICAL INFORMATION CENTER DISCLOSURE REVIEWS	<u>Q-1</u>
APPENDIX R	U.S./CANADA JOINT CERTIFICATION PROGRAM	<u>R-1</u>
APPENDIX S	OPERATIONAL DISCLOSURES SUPPLEMENTAL INFORMATION	<u>S-1</u>
APPENDIX T	COMMON TYPES OF FMS CASES	<u>T-1</u>
APPENDIX U	CHECKLIST FOR CUI DISCLOSURES BY FMS PERSONNEL	<u>U-1</u>
APPENDIX V	TYPES OF INTERNATIONAL AGREEMENTS	<u>V-1</u>
APPENDIX W	COOPERATIVELY-GENERATED INFORMATION MARKINGS	<u>W-1</u>
APPENDIX X	FOREIGN STUDENT TRAINING DISCLOSURE REVIEW PROCESS	<u>X-1</u>
APPENDIX Y	STANDARD FVS DISCLOSURE GUIDANCE STATEMENTS	<u>Y-1</u>
APPENDIX Z	ONE-TIME AND RECURRING VISITS HOST COMMAND RESPONSIBILITIES	<u>Z-1</u>
APPENDIX AA	EXPORT LICENSE REVIEW GUIDANCE	<u>AA-1</u>
APPENDIX BB	DON PROCEDURES FOR GOVERNMENT-SPONSORED ITAR EXEMPTIONS	<u>BB-1</u>

SECNAV M-5510.1
24 Jun 2019

APPENDIX CC DON PROCEDURES FOR GOVERNMENT-SPONSORED EAR
EXCEPTION "GOV"
APPENDIX DD FDM CHANGE FORM

[CC-1](#)
[DD-1](#)

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

REFERENCES

- (a) National Policy and Procedures for the Disclosure of Classified Military Information to Foreign Governments and International Organizations of 14 February 2017 (NOTAL)
- (b) DoD Directive 5230.11 of 16 June 1992
- (c) SECNAVINST 5510.34B
- (d) EO 13566
- (e) SECNAVINST 5720.44C
- (f) 5 USC 552 (FOIA)
- (g) SECNAVINST 5720.42F
- (h) National Security Decision Memorandum (NSDM) 119 of 20 Jul 1971
- (i) DoD Directive 5230.20 of 22 June 2005
- (j) SECNAVINST 4900.46C
- (k) 22 U.S.C. §2751, §2762, §2767 (Arms Export Control Act (AECA))
- (l) USD(I) memo, "Policy and Procedures for Sanitization of Department of Defense Classified or Controlled Unclassified Information Prior to Public Release" dated 20 Jul 2005
- (m) DoD Manual 5200.01 Volume 3, DoD Information Security Program: Protection of Classified Information of 19 March 2013
- (n) SECNAVINST 5510.36A
- (o) DASN(IP) memo Ser 01/16U1025 dated 19 Sep 2016
- (p) SECNAVINST S5460.3H
- (q) Guide for Foreign Attachés Accredited to the Department of the Navy (NOTAL)
- (r) SECNAV M-5210.1
- (s) DoD Instruction 8500.01 of 14 March 2014
- (t) DoD Instruction 5200.02 of 21 May 2018
- (u) DoD 5220.22-M, National Industrial Security Program Operating Manual (NISPOM) of 18 May 2016
- (v) SECNAVINST 5510.30B
- (w) DoD Instruction 5230.27 of 15 September 2017
- (x) U.S.- Canada Joint Certification Program (JCP) of December 1996
- (y) PDUSD(AT) and PDUSD(P) memo, "Guidelines on International Transfers of Software Documentation (including Source Code)" dated 8 Apr 1997
- (z) DSCA 5105.38-M – "Defense Security Cooperation Agency (DSCA) Manual" found online at <https://www.samm.dsca.mil/listing/chapters>

- (aa) Defense Acquisition University (DAU) webpage, "Software Sustainment," found online at:
<https://www.dau.mil/acquipedia/pages/articledetails.aspx#!219>
- (ab) DoD Anti-Tamper Guidelines Version 2.1 of 25 Jul 2014
- (ac) DASD(SE) and DoD CIO report, "Software Assurance Countermeasures in Program Protection Planning," dated March 2014, found online at:
<https://www.acq.osd.mil/se/docs/SwA-CM-in-PPP.pdf>
- (ad) SECNAVINST 5200.38A
- (ae) OPNAVINST 5720.2M
- (af) OPNAVINST 3710.7V
- (ag) NAVSEAINST 9210.4B
- (ah) Intelligence Community Directive 403 - "Foreign Disclosure and Release of Classified National Intelligence" of 7 Nov 2014
- (ai) Intelligence Community Directive 710 - "Classification and Control Markings System" of 21 June 2013
- (aj) Intelligence Community Policy Guidance 403.1 - "Criteria for Foreign Disclosure and Release of Classified National Intelligence" of 13 Mar 2013
- (ak) DoDM 5200.01 Volume 2, DoD Information Security Program: Marking of Classified Information of 19 March 2013
- (al) PM-RSAT Third Party Transfer Guidelines found online at:
<https://www.state.gov/t/pm/rsat/c14028.htm>
- (am) 22 CFR 120-130 (International Traffic in Arms Regulations (ITAR))
- (an) DoD Directive 5530.3 of 21 November 2003
- (ao) DoD Instruction 5000.02 of 10 August 2017
- (ap) OPNAVINST 5710.25B
- (aq) DoD Instruction 5230.24 of 28 April 2016
- (ar) SECNAVINST 4950.4B
- (as) 15 CFR 730-799 (Export Administration Regulations (EAR))
- (at) DUSD memo, "Accountability of Department of Defense (DoD) Sponsored Foreign Personnel in the United States" dated 18 May 2004 (NOTAL)
- (au) National Telecommunications and Information Systems Security Manual No. 3013
- (av) 10 U.S.C. Section 311
- (aw) ASN(RDA) memo, "Charter for the Deputy Assistant Secretary of the Navy (International Programs) and Director, Navy International Programs Office" dated 11 May 2005
- (ax) Title 8 U.S.C.

- (ay) USD(A) memo, "Foreign Military Sales of Major Defense Systems Which Have NOT Completed Operational Test and Evaluation (OT&E) Satisfactorily" dated 15 May 1992
- (az) 10 U.S.C. §2563 (Work For Private Parties)
- (ba) 10 U.S.C. §2681 (Major Range and Test Facilities)
- (bb) 10 U.S.C. §2539b (Availability of Samples)
- (bc) 15 U.S.C. §3710a (Cooperative Research and Development Agreements (CRADA))
- (bd) SECNAVINST 4900.50A
- (be) Foreign Assistance Act of 1961
- (bf) SECNAVINST 5442.2
- (bg) 10 U.S.C. §2304 (Competition in Contracting Act)
- (bh) Federal Acquisition Regulation
- (bi) DSS Technology Control Plan website:
https://www.dss.mil/ma/ctp/isia/bams/foci/sample_tech_con_p_lan/
- (bj) DFAR Export-Controlled Items website:
<https://www.acq.osd.mil/dpap/dars/dfars/html/current/252225.htm#252.225-7048>
- (bk) Derived from DSS FOCI website:
<https://www.dss.mil/ma/ctp/isia/bams/foci/>
- (bl) E.O. 13526
- (bm) DoDM 5200.01 Volume 4, DoD Information Security Program: Controlled Unclassified Information (CUI) of 24 February 2012
- (bn) DoD Instruction 5030.14 of 28 September 2012
- (bo) 42 U.S.C. §§2011-2297 (Atomic Energy Act)
- (bp) NSA document, "Redaction of PDF Files Using Adobe Acrobat Professional X" at
<https://apps.nsa.gov/iaarchive/library/ia-guidance/security-configuration/applications/redaction-of-pdf-files-using-adobe-acrobat-professional-x.cfm>
- (bq) Microsoft Office Support website article, "Remove tracked changes and comments from a document" at
<https://support.office.com/en-us/article/Remove-tracked-changes-and-comments-from-a-document-8FD15686-35D8-4C4C-BB58-536CD9E27DB6>
- (br) CJCS Instruction 6510.06
- (bs) DoD Directive 5230.25 of 18 August 1995
- (bt) Canadian Technical Data Control Regulation (TDCR)
- (bu) U.S.-Canada Joint Certification Program website at
<http://www.dlis.dla.mil/jcp/>
- (bv) DSCA Manual Chapter 5 website at
<http://www.samm.dsca.mil/chapter/chapter-5>

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 1
INTRODUCTION, ORGANIZATION, AND RESPONSIBILITIES

1. Purpose

a. The National Disclosure Policy (NDP-1, reference (a)) is the national policy that governs the disclosure of U.S. Classified Military Information (CMI) to foreign governments and international organizations. It is implemented in the Department of Defense (DoD) by reference (b) and in the Department of the Navy (DON) by reference (c). This Foreign Disclosure Manual (FDM) is promulgated under the authority of reference (c) and establishes DON-wide procedures for the implementation of references (a), (b), and (c). The FDM covers the various circumstances under which DON commands, agencies, offices, and staff elements (hereinafter referred to as "DON organizations") may disclose CMI and Controlled Unclassified Information (CUI) to foreign governments, international organizations, and/or their representatives. The FDM also establishes procedures to coordinate all DON foreign disclosure actions with other DoD or Federal agencies or foreign governments that have jurisdiction over or an interest in the information to be disclosed.

b. A glossary of the terms and acronyms used in this Manual may be found at Appendices A and B, respectively.

2. Applicability

a. The provisions of the FDM apply to all DON organizations and personnel involved in initiatives that may result in the disclosure of CMI or CUI to foreign governments and international organizations (hereinafter referred to as "foreign governments"), or their representatives or persons sponsored by them (hereinafter referred to as "foreign representatives"). The FDM applies to disclosures at any location and by any method (i.e., in oral/visual, or documentary/material/electronic form). DON activities shall ensure these provisions are imposed on contractors through the security requirements of each contract. In the event of a perceived conflict between the FDM and other DON policies or procedures, relevant disclosure issues will be held in abeyance until the Navy International Programs Office (Navy IPO) resolves the policy conflict.

b. Scope of CUI. The scope of CUI encompassed by the DON foreign disclosure procedures established in this Manual shall

consist of only 9 of the 23 CUI categories established by reference (d). CUI requiring disclosure approval by a DON Foreign Disclosure Officer (FDO) includes controlled technical information, export controlled information, geodetic product information, information systems vulnerability information, intelligence information, international agreements, NATO Restricted and Unclassified information, nuclear information, and procurement and acquisition information where controlled technical or export controlled information is revealed.

(1) The foreign disclosure of other forms of CUI are outside of the scope of DON Delegations of Disclosure Authority Letters (DDLs) and shall be reviewed and approved by government officials other than an FDO as established by federal laws, regulations, or government-wide policies. These other types of CUI include agriculture, critical infrastructure, emergency management, financial, immigration, law enforcement, legal, patent, privacy, proprietary business information, SAFETY Act information, statistical, tax, and transportation information.

(2) "Programmatic information" such as costs, production and delivery schedules, financial data, budgeting, contract status, and other such unclassified information that is not directly technical information with a military or space application, but simply relates to a DON defense article's procurement, operation, maintenance, or training, shall only be subject to foreign disclosure review when a technical factor is revealed. An example of how a technical factor is revealed might include, but not limited to, when a product delivery schedule slippage is linked to a flaw in a performance factor, or when a cost escalation is linked to an improvement or change in the system and one or more technical details about the improvement or change are exposed. Providing programmatic information to a foreign representative is still subject to originator or controlling authority consent for the purpose and appropriateness for use, and to ensure that its use does not create a false impression.

c. Foreign Disclosure Manual Non-Applicability. The FDM does not apply to:

(1) Disclosures to U.S. nationals (except for when they are acting as foreign representatives);

(2) Disclosures of DON information found in the public domain that has been approved for public release per the procedures outlined in reference (e) (see chapter 3 for further clarification);

(3) CUI that does not have a military or space application whose disclosure is governed by other statutes, policies, or government-wide regulations;

(4) Unclassified information determined to be exempt from mandatory disclosure to the public under references (f) and (g); and

(5) Issues falling under the cognizance of information assurance, information security, and physical security.

3. False Impressions

a. Per reference (a), it is the policy of the United States to avoid creating false impressions of its readiness to make available classified military materiel, technology, or information. Therefore, initial planning with foreign governments and international organizations concerning programs that might involve the eventual disclosure of classified military information may be conducted only if it is explicitly understood and acknowledged that no U.S. commitment to furnish such classified information or materiel is intended or implied until disclosure has been approved. Accordingly, proposals to foreign governments and international organizations, which result from either U.S. or combined initial planning, and which will lead to the eventual disclosure of classified military materiel, technology, or information, including intelligence threat data or countermeasures information, must be authorized in advance by designated disclosure officials in the departments and agencies originating the information or by the National Disclosure Policy Committee (NDPC) and/or Military Intelligence Disclosure Policy Committee (MIDPC).

b. Reference (a) further states that if review of the total program indicates that the highest level of information to be disclosed under the program will exceed the classification levels authorized by the Annexes of reference (a), or is not in accordance with the disclosure criteria and conditions set forth in Section II of reference (a) (see Appendices G and H), the proposal should be denied or an exception to disclosure policy

must be approved by the NDPC or MIDPC, as appropriate, prior to the initiation of the program. Interim disclosures of unclassified material or material of a lower classification will not be made pending approval of an exception to policy by the NDPC or MIDPC, as appropriate.

4. Disclosure Organization

a. Reference (h) establishes the requirement for the creation of national disclosure policy. The Secretaries of State and Defense, in consultation with other Departments and Agency heads, are jointly assigned responsibility for implementing reference (h). Reference (a) is issued by the Secretary of Defense with the concurrence of the Secretaries of State and Energy, and the Director of National Intelligence. Assigned responsibilities include:

(1) The establishment and management of an interagency mechanism (the National Disclosure Policy Committee, or NDPC) and implementing procedures;

(2) The promulgation of specific disclosure criteria and limitations, definition of terms, and other guidance governing decisions on the disclosure of CMI;

(3) The continuing review of intelligence and the conduct of on-site surveys to determine the capability of foreign recipients to provide CMI the requisite degree of security protection;

(4) The submission of an annual report to the National Security Council covering the highlights of the National Disclosure Policy implementation for that year, including exceptions to policy that were approved during the reporting year;

(5) The negotiation of General Security Agreements or other bi-lateral security arrangements with foreign governments, outlining the responsibilities of both parties pertaining to the safeguarding of classified information provided by the other party; and

(6) The development and issuance of instructional guidance to be uniformly applied by all personnel involved in

any manner with international programs through which CMI may be disclosed.

b. DON Implementation. Within the Department of the Navy, reference (c) assigns the following specific responsibilities:

(1) The Assistant Secretary of the Navy for Research, Development and Acquisition (ASN (RDA)) is designated as the DON Principal Disclosure Authority (PDA).

(2) The Deputy Assistant Secretary of the Navy for International Programs (DASN(IP))/Director, Navy International Programs Office (Navy IPO) is designated by ASN (RDA) to act as the PDA for the DON. The PDA oversees compliance with reference (a) and this Manual within the DON and is the only DON official other than the Secretary or Under Secretary of the Navy who is authorized to deal directly with the Secretary or Deputy Secretary of Defense regarding DON requests for exceptions to NDP-1 policy or other foreign disclosure matters.

(3) The Director, Navy International Programs Office (Director, Technology Security & Cooperative Programs), hereafter known as Navy IPO-01, has been designated by reference (a) as the central authority for overseeing the foreign disclosure of CMI and CUI within the DON and represents the Secretary of the Navy on the National Disclosure Policy Committee (NDPC). Navy IPO-01 is specifically directed to develop DON implementing procedures for references (b) and (i), ensuring compliance with the provisions of any treaty, agreement, statute, executive order or directive affecting the disclosure of CMI and CUI to foreign persons, entities, governments or international organizations. No command, agency, or staff office within the DON will disclose, make commitments or enter into arrangements that will result in a requirement to disclose, or direct the disclosure of CMI or CUI except as set forth in this manual or as specifically authorized by Navy IPO-01.

(4) In the interest of meeting operational and mission commitments, management efficiency, and when in the best interest of the DON, Navy IPO delegates disclosure authority to designated DON commands, staff elements, and specific officials via official correspondence known as Delegation of Disclosure Authority Letters (DDLs). DDLs will detail the classification

levels, categories, scope, and information disclosure limitations. Delegations are generally provided to:

(a) Major DON commands and activities (e.g., the Chief of Naval Operations, the Commandant of the Marine Corps, Navy Fleet Commanders, the Commanders of Navy and Marine Corps Systems Commands) for information under their cognizance (see Appendix C). These DDLs are generally executed by a command Foreign Disclosure Officer (FDO) via an appointment letter from the Commander or Commanding Officer. Some DDLs may also authorize the redelegation of all or portions of the disclosure authority to subordinate commands or activities.

(b) Designated DON Project Managers (PMs) and Technical Project Officers (TPOs) to act as the international agreement FDO for specific Memorandums of Understanding or Agreement (MOUs or MOAs), Project Arrangements (PAs), or Information or Data Exchange Agreements (IEAs or DEAs).

(c) Designated DON Commanders or Commanding Officers to control disclosures to foreign extended visitors (see Chapter 12). These DDLs are generally executed by the appointment of a "Contact Officer" acting as the FDO for specific extended foreign visitors assigned to the command.

(5) Cooperative Disclosure Letter (CDL) is a letter issued by Navy IPO to designated DON personnel explaining classification levels, categories, scope, and limitations of DON information that may be disclosed to foreign recipients as part of a cooperative agreement such as a joint service Memorandum of Understanding (MOU), a joint service Project Arrangement (PA) or activities under a Reciprocal Use of Test Facility (RUTF) agreement. A CDL provides disclosure guidance similar to that of a DDL but does not vest a disclosure authority to the recipient. CDLs are issued to specified DON activities, typically on a project-by-project basis, and will often refer the DON participants to the other service/agency Technical Project Officers (TPOs).

(6) It is DON policy to promote centralized foreign disclosure policy development and to ensure that all significant foreign disclosure matters are reviewed by all concerned DON officials so that decisions represent a coordinated DON position. As such, the Technology Transfer and Security

Assistance Review Board (TTSARB) is established by reference (j) to consider and review all precedent-setting or significant issues concerning technology transfer and foreign disclosure matters that fulfill strategic security cooperation objectives. The TTSARB's principal focus shall be on comprehensive global policy guidance, and its policies are published through TTSARB Decision Memorandums.

5. Responsibilities

a. FDO Nominations and Approval/Denial. Commands that have been provided disclosure authority (a DDL) shall appoint a military or civil service official of suitable grade as the organization's FDO and notify Navy IPO-01 and the DDL's issuing authority, if applicable, with a copy of their letter of appointment and their contact information. The nominee must be a U.S. citizen with a security clearance level commensurate with the type and level of classified information they will be expected to review for foreign disclosure.

b. Foreign Disclosure Officers (FDOs). The FDO has the authority and responsibility to control disclosures of CMI and CUI under their command's cognizance and within the scope of their delegation to foreign governments or their representatives, or persons sponsored by them. In those instances, where the information proposed for disclosure or release is not under their command's cognizance, FDOs may perform peer-to-peer or subordinate coordination both intra- and inter-service (for example, USN Program Office to USAF Program Office). However, coordination actions necessary above the peer-to-peer level shall be forwarded for action to the next higher FDO in the chain of command until the necessary coordination level is reached, or to Navy IPO-01, along with a detailed explanation of the disclosure case and the submitting FDO's recommendation.

c. Foreign Disclosure Representatives (FDRs). DON commands and activities with significant disclosure actions should maintain FDRs (also referred to as Foreign Disclosure Points of Contact) within their headquarters and at subordinate locations to coordinate foreign disclosure requests and to facilitate a complete and timely response to foreign disclosure actions. FDRs should have a basic working knowledge of foreign disclosure procedures; coordinate disclosure requests for their assigned

activity through his or her normal chain of command to the first level FDO in their chain of command; and be a military or civil service employee. An FDR does not have disclosure authority or a DDL.

d. DON Personnel. DON personnel shall ensure that CMI and CUI to be disclosed during official visits and meetings with foreign national attendance, whether CONUS or OCONUS, have been approved in advance by the responsible FDO in accordance with the requirements of chapter 3 of this manual.

e. Foreign Disclosure Training

(1) The Director, Navy IPO is designated by reference (c) to develop a training program for DON officials who are to be FDOs, and other DON personnel who are involved in or manage the disclosure of information concerning international programs. Where resources are available, Navy IPO should facilitate foreign disclosure training materials for use at DON educational and leadership institutions for foreign disclosure familiarization purposes.

(2) Commands/Activities/Project Offices with DDLs. Commands that have been issued DDLs shall ensure that all personnel involved in or with foreign interactions, including interactions with U.S. persons acting as foreign representatives, are appropriately trained in the functional concepts of foreign disclosure applicable to their duties and responsibilities. The nature and frequency of training should be based on an assessment of the scope and complexity of foreign interactions occurring within the command. All trainings shall be documented.

f. Assessments and Inspections

(1) Commands/Activities/Project Offices with DDLs are encouraged to conduct an annual self-assessment of their foreign disclosure program. This assessment provides an opportunity to look at the foreign disclosure procedures established at the command; validate that local procedures not only meet the standards established in this manual, but also are being effectively implemented by command personnel involved with foreign interactions. A sample self-assessment checklist is provided at Appendix D.

(2) Inspector General (IG) or Command Administrative inspections should also include an external assessment of a command's foreign disclosure program based on the requirements of reference (a) and this manual. A sample IG checklist is provided at Appendix E.

6. Foreign Disclosure Government-to-Government Principle. All disclosures of DON CMI or CUI to foreign governments or their representatives must be authorized by a person who has been specifically delegated disclosure authority in accordance with reference (c) or higher authority. Such authorizations are made based on the facts of the case presented and on the principle that the information is being passed from the United States Government to a foreign government (referred to as the "government-to-government principle"). The basis of this principle is the willingness of the U.S. Government to provide the requested information to the recipient government, and that the physical transfer of the information will take place under procedures approved by the U.S. and receiving government. Specific disclosures to individuals or groups may only be made under this principle when they are officially representing the recipient foreign government; there has been a determination that the recipient government is capable of protecting the information; and that the recipient government will comply with U.S. Government conditions on the use, further transfer, and protection of the information. Failure to comply with foreign disclosure requirements and the "government-to-government principle" may result in invalidation of the applicable security agreement and ultimate compromise of the information.

7. Security Assurances. Once a foreign government has established a bi-lateral security agreement with the United States, such as a General Security of Military Information Agreement (GSOMIA) or a General Security of Information Agreement (GSOIA), the requirements of references (a) and (k) for establishing the capability and intent to protect CMI by the recipient government is established. In the absence of a bi-lateral security agreement, the security requirements (see Appendix F) may be included in a program agreement (e.g., a co-production or cooperative development Memorandum of Understanding (MOU), or exchange of diplomatic notes), or in a program-specific security agreement (e.g., a Letter of Offer and Acceptance (LOA)). Thereafter, individual security assurances

are further provided within Foreign Military Sales (FMS) cases, international agreements, or contained in a visit request or courier orders. These assurances stipulate the recipient government's certification to the DON that the person receiving the CMI is representing the foreign government, is properly cleared, and the government will be responsible for protecting the information that is transferred. Absent a security assurance, CMI will not be released to a foreign government's representative. There are no Security Assurance requirements for the protection of CUI.

8. Electronic Transmission of CMI

a. Computer-to-Computer Links. Per reference (l), electronic transmission of classified information over secure computer-to-computer links (e.g., via secure email) is preferable to physical transfer of hard copy documents. Per reference (m), transmission of classified information to a foreign government by an Information Technology (IT) and communications system shall, at a minimum, be audited to assure that the intended recipient receives the information.

b. Classified Networks. Individuals posting U.S. CMI to classified sites or sharing systems, or multi-national classified networks must ascertain before uploading that the information is authorized for disclosure to all nations that may access the network or partitioned subnetwork, and that the information is properly marked. Issues regarding network selection; cryptographic requirements; data in-transit, use, or at rest security requirements; or network components are not disclosure-related matters and should be referred to appropriate information security or network subject matter experts.

9. Special Circumstances. The procedures outlined in this manual represent significant foreign disclosure experience at multiple command levels and are, in most cases, best practices for ensuring the quality and timeliness of DON foreign disclosure decisions. However, there may arise rare circumstances where the procedures outlined in this Manual fail to provide the level of review, security, expeditious handling, and/or authority necessary to accomplish a defined task or issue. In these cases, persons requesting a procedural waiver shall submit the waiver through their FDO who shall forward the request to the Director of Disclosure Policy, Navy IPO-01D, with

either an endorsement or recommendation for denial. IPO-01D will evaluate the request and respond back to the submitting FDO for forwarding to the originator granting or denying the waiver. This process shall not be used as a mechanism for changing the procedures defined by this manual. This manual's change process is provided in chapter 20.

10. Disclosure Violations. A disclosure violation occurs when information is inadvertently disclosed to a foreign government or representative without the appropriate authorization by the FDO or other delegated disclosure official. Disclosure violations are in contrast to an intentional disclosure that constitutes a more serious security matter. Persons witnessing, observing, or with knowledge of a disclosure violation shall report the violation to the command/organization's Security Manager using the process defined by the command or per reference (n). Disciplinary actions may result. There are no special processes for suspected violations simply because they are "disclosure-related."

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 2
DISCLOSURE POLICIES AND DELEGATED AUTHORITIES

1. General. Classified Military Information (CMI) and Controlled Unclassified Information (CUI) under Department of the Navy (DON) control may be disclosed to foreign governments and their representatives only when a DON Foreign Disclosure Officer (FDO), or other person delegated disclosure authority in writing by an FDO, or as otherwise authorized in this manual, determines that:

a. The disclosure is in support of a lawful and authorized U.S. Government (USG) purpose. Examples of lawful and authorized purposes are commercial or government sales pursuant to the Arms Export Control Act (AECA); foreign training per the Foreign Assistance Act (FAA); a military exercise or operation per an Operational Order (OPORD); a cooperative arms program per a Memorandum of Understanding or Agreement (MOU or MOA); an Information Exchange Agreement (IEA) Annex; or an approved visit authorization in the Foreign Visit System (FVS).

b. The disclosure is in compliance with DON policies, as well as reference (a) and other senior foreign disclosure policies.

c. The disclosure is in compliance with the procedures established in this manual.

2. DON Foreign Disclosure Policies. DON foreign disclosure policies form the basis of the foreign disclosure decision-making process for matters and information under DON cognizance. Most DON policies fall within the delegated authorities of reference (a) and may be used as a factor in approving or denying foreign disclosure requests for CMI and related CUI by DON FDOs. However, DON policies are not always sufficient in all circumstances. Some DON policies are written above the levels delegated to the DON by reference (a) or other interagency policies or guidelines. In these cases, disclosure policy is not yet finalized for the specific country, but the DON policy serves as the precursor to requesting higher-level approvals or exceptions. Until all necessary higher approvals are received, DON FDOs must deny foreign disclosure requests for CMI until such policy-governed matters are resolved.

a. TTSARB Decision Memorandums. Per reference (j), the Technology Transfer and Security Assistance Review Board (TTSARB) shall consider and review all precedent-setting or significant issues concerning technology transfer and objectives; obtain the views of cognizant DON officials; advise the Secretary of the Navy (SECNAV); and establish necessary DON policy and procedures. TTSARB established policies are promulgated by the TTSARB Executive Secretary, Navy IPO-01, as TTSARB decision memorandums. These decisions define DON policies for the worldwide release of weapons, systems, equipment, technology, and related information, but are not all-inclusive.

(1) Precedent-setting TTSARBs will generally have three main sections: An executive summary and signature page, followed by the main body of the decision memorandum, and then a set of terms and conditions for the implementation of the policy. Additional attachments or enclosures may be added to the TTSARB to further explain specific issues relating to the matter. The TTSARB is drafted by the Navy IPO-01D staff using inputs provided by the requesting Program Office via their Program Executive Office, and then staffed to major Navy or Marine Corps staff elements for TTSARB General Member Flag/General Officer endorsements. After staffing and coordination, the decision memorandum is finally submitted to the TTSARB Co-Chairpersons, the Assistant Secretary of the Navy (Research, Development, and Acquisition) and either the Vice Chief of Naval Operations or the Assistant Commandant of the Marine Corps, for final approval.

(2) Requests for policy shall be initiated by TTSARB members with cognizance over the issue. Requests may range from the creation of new policy, to updating or supersession of a previous policy, or changes or amendments to existing policy. Flag/General Officer-level endorsement is requested at the time of submission to the TTSARB Executive Secretary for consideration. Requests without such an endorsement may be returned for further coordination by the requestor. The TTSARB Executive Secretary may also initiate DON policy requests on behalf of entities who are not TTSARB members, such as requests from U.S. industry for matters relating to DON-related defense exports.

(3) DON offices requesting action by the TTSARB shall follow the procedures established in references (j) and (o). The levels of consideration and approval vary with the nature of the issue as follows:

(a) Precedent-setting policy of paramount significance will require TTSARB Co-Chairpersons approval and signature. Factors to consider include, but are not limited to, Acquisition Category (ACAT) I programs, the development of Missile Technology Control Regime (MTCR) Category I technology, and Special Access Programs (SAPs).

(b) Precedent-setting policy will require TTSARB General Members' approval and TTSARB Executive Director (DASN(IP)) signature. Factors to consider include, but are not limited to, introduction of a new technology/capability into a country or region, a shift in the capability-level of a country, and worldwide policy for platforms, combat management systems, and weapons/effectors.

(c) Non-precedent-setting policy will only require the TTSARB Executive Secretary's approval and signature. Factors to consider include, but are not limited to, obsolescence, upgrades for maintainability, upgrades to decrease the mean time between failure, and programs that do not introduce a new capability to a country.

(d) Any policy involving Special Access Programs (SAP) systems, technology, or information will require approval by the Director of the DON SAP Central Office (DON SAPCO) in accordance with reference (p).

b. No Policy Exists. When there is no existing policy, or if an existing TTSARB decision memorandum is outdated or requires modification for current circumstances, requests for foreign disclosure received shall be reviewed by the FDO and forwarded with recommendation to Navy IPO-01 for DON policy consideration. See chapter 3, paragraphs 6a or 9 in this manual for FDO guidance. Approval or denial of the action request will be provided to the requestor via the submitting FDO.

3. The National Disclosure Policy. Reference (a) originates from reference (h) and governs the disclosure of U.S. CMI to foreign governments and international organizations. NDP-1 is a

classified (no foreign nationals), limited distribution interagency document that assigns joint implementation responsibility to the Secretaries of State and Defense, in consultation with other federal departments and agencies. Reference (a) is issued by the Secretary of Defense with the concurrence of the Secretaries of State, Energy (DOE, for nuclear matters), and the Director of National Intelligence (DNI, for intelligence matters). The responsibilities resulting from reference (a) are discussed below. It is only accessible by personnel assigned as DON FDOs.

a. National Disclosure Policy Committee. Reference (a) creates an interagency management committee to oversee the implementation of the National Disclosure Policy known as the National Disclosure Policy Committee (NDPC). It is chaired by the Director, International Security Directorate, as delegated by the Under Secretary of Defense (Policy). Committee members include representatives from each of the three military Services, a member from the Joint Staff, and a representative from the State Department. Representatives from the DOE and the DNI are also called upon for matters relating to subject matters under their cognizance. Within the DON, the Director of Disclosure Policy, Navy IPO-01D, is the voting member of the NDPC.

b. Disclosure Criteria and Limitations. Reference (a) requires that specified criteria and limitations be satisfied in order to disclose CMI or CUI to representatives of foreign governments. The criteria and limitations are described at Appendix G.

c. General Disclosure Limitations and Prohibited Disclosures. Reference (a) does not permit the disclosure of certain categories of classified information, the disclosure of which is governed by separate statutes, executive orders, or national policies. These limitations and prohibitions must be considered prior to initiating or responding to proposals involving the disclosure of CMI or CUI. The categories of information that are subject to disclosure limitations and prohibitions are listed in Appendix H.

d. Categories of CMI. To facilitate the decision making process for foreign disclosure, reference (a) divides CMI into one or more of eight distinct categories. The definitions for

each category may be found at Appendix I. For the purposes of the FDM, the DON may also apply these functional definitions to the identification and categorization of CUI to ensure consistency and as a baseline for disclosure decision making.

e. Annexes. There are three annexes to reference(a) as explained below. These annexes provide important policies and guidelines that must be factored into each FDO's foreign disclosure decision. DON FDOs must understand the content and uses of these annexes.

(1) Annex A Part A sets forth the maximum level of disclosure authority delegated by the NDPC to disclose CMI for which they are the original classification authority, up to a specified classification level, by category, to countries identified in the charts. These delegations are subject to compliance with any national disclosure policies, criteria, conditions, and any pertinent Annex B or C Policy Statements (see below). Annex A, Part A, is generally referred to as the "Country Charts." The delegations of authority in the charts are made to the heads of the Services and agencies that are represented on the NDPC, who do not always delegate the same level of disclosure authority to subordinate commands and agencies. An FDO's delegations of disclosure authority may be a subset of the full scope of what is delegated to the DON by Annex A, Part A.

(2) Annex A Part B provides data related to specific countries, such as the date the U.S. Government concluded a General Security of Military Information Agreement (GSOMIA) or General Security of Information Agreement (GSOIA); the date an Industrial Security Agreement (ISA) was concluded; the last date a NDPC Security Survey was completed; and the last date a CIA Risk Assessment was made. The existence of a GSOMIA, GSOIA, ISA, security assessments, and NDPC Security Survey normally satisfy the reference (a) and (k) requirements with respect to establishing a potential recipient government's capability and intent to protect CMI that is to be provided to that government (Disclosure Criteria #3). In some situations, additional security commitments on the part of the recipient government may be necessary, and may be incorporated in a special program agreement or Letter of Offer and Acceptance (LOA).

(3) Annex B contains Policy Statements (PSs) specific to certain foreign governments, and Annex C contains PSs for weapons, systems, technologies, and other information. These statements provide special disclosure procedures and guidelines as specified in the PS. Both Annex B and C statements may supplement or clarify the delegations of disclosure authorities provided in Annex A. DON FDOs must consult these Annexes and apply these statements, where and when applicable, before a decision is made on a proposed disclosure.

f. False Impressions. Per reference (a), it is the policy of the United States to avoid creating false impressions of its readiness to make available classified military materiel, technology, or information. Therefore, initial planning with foreign governments and international organizations concerning programs that might involve the eventual disclosure of classified military information may be conducted only if it is explicitly understood and acknowledged that no U.S. commitment to furnish such classified information or materiel is intended or implied until disclosure has been approved. Accordingly, proposals to foreign governments and international organizations, which result from either U.S. or combined initial planning, and which will lead to the eventual disclosure of classified military materiel, technology, or information, including intelligence threat data or countermeasures information, must be authorized in advance by designated disclosure officials in the departments and agencies originating the information or by the National Disclosure Policy Committee (NDPC) and/or Military Intelligence Disclosure Policy Committee (MIDPC). Reference (a) further states that if review of the total program indicates that the highest level of information to be disclosed under the program will exceed the classification levels authorized by the reference (a) Annexes, or is not in accordance with the disclosure criteria and conditions set forth in Section II of reference (a) (see Appendices G and H), the proposal should be denied or an exception to disclosure policy must be approved by the NDPC or MIDPC, as appropriate, prior to the initiation of the program.

g. Exception to National Disclosure Policy. Disclosure proposals that exceed the levels delegated to the DON by reference (a) shall either be denied, or an Exception to the National Disclosure Policy (ENDP) requested. The format for an ENDP is contained at Appendix J.

4. Other Technology Security and Foreign Disclosure Policies and Processes. Special consideration must be given to possible intelligence, security, and special technology information policies established above the Service level and their disclosure implications. For example, separate authorization, as identified within reference (a), must be obtained for the disclosure of COMSEC, cryptographic information, intelligence threat data, low observable and non-cooperative target recognition, and so on. Authorization to disclose these types of information must be obtained prior to initial discussions with a foreign government or their representative in accordance with the false impressions policy. (See Appendix K for the list of Technology Security and Foreign Disclosure (TS&FD) policies and processes.)

5. DON Delegated Authorities

a. In the interest of meeting operational and mission commitments, management efficiency, and when in the best interest of the DON, Navy IPO delegates disclosure authority to designated DON commands, staff elements, and specific officials via official correspondence known as Delegation of Disclosure Authority Letters (DDLs). DDLs will detail the classification levels, designated information categories per reference (a), and the scope and information disclosure limitations that are delegated to the receiving command or organization. The standard format for a DDL may be found at Appendix L.

b. Not all DDLs contain the authority to sub-delegate disclosure authority. When authority is sub-delegated, the disclosure authority must remain within the confines of the issuing command's DDL, whether whole or in part. Sub-delegated disclosure officials shall be responsible to the issuing FDO for their disclosure decisions.

6. Other Policy-Related Foreign Disclosure Considerations. In addition to the requirements and limitations described in the paragraphs above, foreign disclosure policy makers and FDOs should also consider the possible broader impact of their decision to provide a military weapon systems or capabilities to a country or region. These considerations should include:

a. Precedence. A precedent could be set which might result in requests for releases to other countries. The U.S. response in such situations should consider projected requests from other countries, the risk of creating an arms race, and the impact to arms control arrangements.

b. Foreign Availability. If the equivalent system, technology or capability is available from a foreign source, providing the U.S. system might not have significant implications.

c. Impact on U.S. Industrial Base. The sharing of information that can be used for design or production purposes might have positive or negative implications for the U.S. industrial base.

d. Political-Military Impact. Military and political situations change over time, and the situation in some countries make them more susceptible to change. It is appropriate to seek advice or concurrence from applicable Political-Military offices (i.e. CNO N5IS), OASD ISA, or the State Department. Consideration must always be given to the impact on U.S. military forces of disclosure by the proposed recipient to an unauthorized third party.

e. Feasibility of Implementing Proposed Disclosure Decision. In some cases, to obtain or expedite a favorable disclosure decision, conditions, safeguards, and limitations may be proposed. When this is done, consideration must be given to the ability of the DON to implement such conditions, safeguards, or limitations and the impact on all parties involved.

CHAPTER 3

CORE DISCLOSURE PROCEDURES

1. General. This chapter provides the core procedures to be used by Department of the Navy (DON) Foreign Disclosure Officers (FDOs) for deciding on the disclosure of Classified Military Information (CMI) and Controlled Unclassified Information (CUI) to foreign governments and international organizations. It also provides a general understanding to non-FDO personnel of the steps used in the foreign disclosure determination process so that they may better formulate their disclosure requests and provide necessary and relevant information to assist the FDO. Other factors detailed in subsequent chapters of this manual provide additional information and procedures for specific types of disclosures related to standard DON international interactions.

a. Worldwide Applicability. These procedures apply to foreign disclosures by DON personnel in the U.S. and abroad.

b. Procedural Layout. The procedures laid out in this chapter are displayed in a generic step process. These steps may be modified by DON FDOs to better fit their unique circumstances or individual disclosure case requirements.

c. FDO Case Adjudications. FDO disclosure determinations are adjudicated on a case-by-case basis, regardless of whether for CMI or CUI.

2. False Impressions

a. Per reference (a), it is the policy of the United States to avoid creating false impressions of its readiness to make available classified military materiel, technology, or information. Therefore, initial planning with foreign governments and international organizations concerning programs that might involve the eventual disclosure of classified military information may be conducted only if it is explicitly understood and acknowledged that no U.S. commitment to furnish such classified information or materiel is intended or implied until disclosure has been approved. Accordingly, proposals to foreign governments and international organizations, which result from either U.S. or combined initial planning, and which will lead to the eventual disclosure of classified military

materiel, technology, or information, including intelligence threat data or countermeasures information, must be authorized in advance by designated disclosure officials in the departments and agencies originating the information or by the National Disclosure Policy Committee (NDPC) and/or Military Intelligence Disclosure Policy Committee (MIDPC).

b. Reference (a) further states that if review of the total program indicates that the highest level of information to be disclosed under the program will exceed the classification levels authorized by the reference (a) Annexes, or is not in accordance with the disclosure criteria and conditions set forth in Section II of reference (a) (see Appendices G and H), the proposal should be denied or an exception to disclosure policy must be approved by the NDPC or MIDPC, as appropriate, prior to the initiation of the program.

3. Origin of Foreign Disclosure Requests. Requests involving the possible foreign disclosure of CMI and CUI in the possession of the DON may originate from official or unofficial sources, including proponents from within the DON; from another U.S. Government service, department or agency; from a foreign government or international organization; or from U.S. industry. Official requests for disclosure authorization generated within the DON will generally flow from the proponent to the FDO for action. Requests from foreign sources or industry will normally go to the DON activity sponsoring or hosting the international engagement or to Navy IPO, and not directly to the FDO.

a. DON/DoD/U.S. Government Department or Agency Requests. FDOs must use their knowledge of the government structure to determine on a case-by-case basis whether disclosure requests originated by a DON, DoD, or other U.S. Government department or agency qualifies as an official request warranting a disclosure review. Examples of official disclosure requests include, but are not limited to:

(1) Requests from DON officials (e.g., Program/Project Managers, Program Executive Officers, DON/Fleet/MEF staff positions, etc.).

(2) Requests from DoD officials (e.g., Other Service Program/Project Managers, Program Executive Officers, Command staff positions, Other Service FDOs, etc.).

(3) A request from a U.S. representative overseas (e.g., USN/USMC Attaché, Security Cooperation Office official, USN/USMC official assigned for duty or on a staff stationed in a foreign country or international organization). This does not include DoD personnel assigned to Personnel Exchange Program (PEP) positions while they are fulfilling their exchange assignment.

(4) Requests from U.S. Government officials outside of DoD (e.g., State, Homeland Security, etc.) when the requestor is a federal employee.

b. Foreign Requests. Foreign government requests are generally referred to as Letters of Request (LORs), whether provided through formal correspondence, requests for proposal (RFPs), discussions, electronic mail (email), letters, or messages. Although no specific format is required for an LOR, the requesting nation should ensure that the request is complete. Foreign government LORs for CMI must be in writing; be specific to what is being requested; and contain statements as to the information's end-use, end-user, and justification for the request. Requests for CUI should follow this format as much as possible. Vague requests may be returned without action citing lack of specificity as the reason. Only requests that are received through official channels shall be processed for a foreign disclosure decision. Examples of official channels for disclosure requests include, but are not limited to:

(1) Requests from foreign governments made through their embassies in the U.S. should be submitted using the guidelines provided to them in reference (q) that contains the procedures to follow for requesting information from the DON.

(2) Requests from foreign liaison personnel for matters within the scope of their representational assignment (e.g., FLO assigned to COMTHIRDFLT for information under the cognizance of THIRDFLT).

c. Industry Requests. Representatives from U.S. industry are highly encouraged to interface with their DON contracting or sponsoring activity to coordinate any official disclosure actions for commercial systems or DON Programs of Record (POR) that may lead to an FDO disclosure review. Requests from industry without a DON sponsor should first be directed to the DON command or activity with cognizance over the issue or

technology involved, or for export license or new policy matters directly with Navy IPO.

d. Unofficial Requests. Requests for CMI or CUI from requestors that are not received through official channels per paragraphs 3a - 3c above should be returned to the requestor with the explanation that the requested information is controlled and that it therefore cannot be provided.

4. Proponent Required Information for Disclosure Requests. DON proponents of disclosure requests shall provide disclosure-relevant information to their FDO, along with the precise information requested for disclosure; the recipient foreign government end-user and their intended end-use; and the justification for the proposed action to aid them in their case reviews. The information proposed for disclosure must be requested through or proposed by official channels; must have definite limits (not open-ended); and must be limited to the information necessary to the purpose for which the disclosure is being made. Proponents should also provide the below additional information with their disclosure requests. A sample of the types of information that should be included in a disclosure request is contained at Appendix M.

a. Information Originators. Proponents shall specify to the best of their ability whether the information proposed for disclosure falls under the cognizance, ownership, or control of the proponent's organization and their concurrence for its proposed end-use and end-user. If not, the proponent shall provide a list of the information originators or controlling authorities identified to the portions of the request under their control, as well as seek and include their concurrence for its proposed end-use and end-user. The DON does not have the authority to disclose information that has been originated by or is under the control of another DoD or U.S. Government department or agency, or a foreign government or international organization.

b. Information Stakeholders. Proponents should identify those organizations who have an interest in the information, particularly those that may be adversely affected by the disclosure.

c. Proper Information Classification. If the information proposed for disclosure is CMI and the request is for a new product derived from derivative sources, the proponent should validate the product's classification from a Security Classification Guide or an original source (not another derivative product). Proper classification is vital to preclude unnecessary rejections or requests for Exceptions to National Disclosure Policy (ENDP) of over classified information.

d. Justification for Disclosure. CMI and CUI will be provided to a foreign government or their representatives only when the disclosure can be justified as supporting a lawful and authorized U.S. Government purpose. Examples of lawful and authorized purposes include commercial or government sales pursuant to the Arms Export Control Act (AECA); foreign training per the Foreign Assistance Act (FAA); a military exercise or operation per an Operational Order (OPORD); a cooperative arms program per a Memorandum of Understanding or Agreement (MOU or MOA); an Information Exchange Agreement (IEA) Annex; or an approved visit authorization in the Foreign Visit System (FVS).

e. Actual Information to be Disclosed. Only the actual or final versions of information proposed for disclosure may receive FDO approval; drafts shall normally not be disclosed but may be reviewed by an FDO for comment.

f. Prior Disclosures. Proponents should inform the FDO of any known prior disclosures of identical or similar information to the recipient foreign government and its end-use, or disclosures to other foreign governments in their geographic region.

5. FDO Summary Analysis of the Disclosure. The FDO should perform a summary analysis of requests received from official sources. This initial analysis should be top-level to determine the disclosure-related components of individual requests. Proponent may be requesting to disclose defense articles, or specific technologies, or a report or intelligence product, or a wide range of other disclosable topics that may or may not fall entirely within the scope of an FDO's disclosure authority. FDOs may determine how to best obtain the concurrence of the appropriate disclosure authority for information that falls outside of their DDL.

a. CMI or CUI Determination. The FDO must ascertain whether the information proposed for disclosure is CMI or CUI.

(1) Disclosures of CMI must be consistent with established policies and fall within a lawful and authorized disclosure purpose. If no disclosure policy exists, then FDOs should perform an initial consultation with the Policy Directorate at Navy IPO (-01D) to determine what action, if any, should be taken.

(2) Disclosures of CUI that are related to or fall under a CMI system shall follow from the established policy of the CMI. FDOs must look at the proposed CUI disclosure to determine whether the disclosure of CMI is or will be required at some future point, and that a false impression of the U.S.' willingness to provide CMI is not being created through the CUI disclosure. For disclosure requests related to defense articles (i.e., weapons, systems, equipment, or technology), the FDO's review must include the classification of hardware, software, documents, and other information or material needed for operations, maintenance, and training, as well as information on vulnerabilities of the system that will be disclosed, or that could be discerned through operation of the system. The initial disclosure review must not be limited solely to introductory or promotional material but must consider the "whole picture" and evaluate any possible follow-on disclosures.

(3) Disclosures of CUI that are not related to or fall under a CMI system or that does not have its own foreign disclosure policy may be disclosed when other factors including those in paragraphs 5d and 6 below are satisfied. A security assurance from the recipient foreign government is not required for the disclosure of CUI.

b. CMI Category. For CMI or related CUI requests, the FDO must properly categorize the information requested for disclosure using one or more CMI Categories per Appendix I. If the Categories are not provided by the proponent, the FDO must categorize the information based on the information proposed for disclosure.

c. NDP-1 Annex Checks. For CMI requests, the FDO must validate that the classification level and categories identified in the disclosure request do not exceed the classification

levels delegated to the FDO in their Delegation of Disclosure Authority Letter (DDL), or by Annex A of reference (a). The FDO must also validate that there are no Annex B or C Policy Statements that will impact the disclosure request. If the request exceeds the thresholds of any Annex of reference (a), the FDO may deny the request or coordinate with the proponent for an Exception to National Disclosure Policy (ENDP) per chapter 2, paragraph 3g in this manual.

d. Disclosure Criteria. Per reference (b), disclosures of CMI in Categories 1 through 8 may be made only when all the criteria listed below are satisfied. See Appendix G for a fuller explanation of these criteria.

(1) Disclosure is consistent with U.S. foreign policy and national security objectives concerning the proposed recipient foreign government.

(2) Disclosure is consistent with U.S. military and security objectives.

(3) The foreign recipient of the information will afford it substantially the same degree of security protection given to it by the United States. (The intent of a foreign government to protect U.S. classified military information is established in part by the negotiation of a General Security of Information Agreement or other similar security arrangement. A foreign government's capability to protect U.S. classified military information normally is determined by the evaluation of embassy security assessments, Central Intelligence Agency risk assessments, National Military Information Disclosure Policy Committee (NDPC) Security Survey Reports, and/or historical precedence.)

(4) Disclosures will result in benefits to the United States at least equivalent to the value of the information disclosed.

(5) The disclosure is limited to information necessary to the purpose for which disclosure is made. (For example, if the purpose of the disclosure is the sale of military equipment, information on operation, maintenance, and training would be disclosed. Research and development data, or production know-how, must be withheld.).

6. Detailed Disclosure Analysis. There are other factors that DON FDOs must consider when making foreign disclosure decisions, most of these on a case-by-case basis. These factors are not listed in any particular order and based on the circumstances, different ordering may be appropriate.

a. Disclosure Policy. For CMI disclosure requests, FDOs must review relevant foreign disclosure policies and evaluate the information proposed in the disclosure requests to decide whether it falls within the limits of the policies. Relevant policies may include, but are not limited to the Annexes of reference (a), TTSARB Decision Memorandums, NDPC Records of Action (RAs), LO/CLO Decision Memorandum, and other Technology Security and Foreign Disclosure (TS&FD) processes (see Appendix K). The DON Disclosure Database (DND2) contains many of these policies and other valuable information relevant to FDOs. If no disclosure policy exists, then FDOs should perform an initial consultation with the Policy Directorate at Navy IPO (-01D) to determine what action, if any, should be taken. Possible outcomes from that consultation are that the information in the proposal that is not authorized by policy must be denied, or a package prepared for Navy IPO-01 with appropriate information to initiate a policy development or modification process.

b. Justification. CMI and CUI will be provided to a foreign government or their representatives only when the disclosure can be justified as supporting a lawful and authorized U.S. Government purpose and is consistent with the five Disclosure Criteria in paragraph 5d. Disclosure requests without sufficient justification will be returned to the proponent without action, citing lack of justification as the reason.

c. Originator's Consent. The originator or controlling authority is the entity that has primary cognizance over the information. This may or may not coincide with the Original Classification Authority for CMI. For technical documents, the originator or controlling authority may normally be found within the distribution statement marking. For other documents, a close examination of the material may be required to determine the originator or controlling authority. For information where the originator has been disestablished or which has otherwise been assigned responsibility, the controlling authority is the office that has assumed responsibility. DON disclosure

authorities shall only authorize the disclosure of CMI and CUI after originator or controlling authority consent has been received.

(1) If the disclosure request or proposal involves the disclosure of CMI or CUI that is originated or controlled by another organization, FDOs may accept peer-to-peer or subordinate coordination both intra- and inter-Service (e.g., SPAWAR Program Office to NAVSEA Controlling Authority, or USMC Program Office to USA Program Office).

(2) Guidance on the disclosure of Foreign Government Information (FGI) is contained in chapter 17 of this manual. If the disclosure request involves the disclosure of CMI or CUI that is originated or controlled by a foreign government, and the proponent has not provided foreign government consent in their request, the FDO shall return the request to the proponent without action citing lack of foreign government consent as the reason.

(3) For information that falls within the scope of one of the "General Disclosure Limitations" (see Appendix H), but the DON proponent believes that a favorable disclosure decision is warranted, the request shall be forwarded by the FDO with his or her recommendation to Navy IPO-01 via the FDO's delegation chain.

d. Stakeholder's Consent. The analysis must include an evaluation of the impacts on organizations other than the proponent's. Those who have an interest in the information, particularly those that may be adversely affected by the disclosure, must be included in the coordination of the request. Stakeholder's consent should be sought and obtained to the best extent possible when these sources can be identified.

e. Critical Program Information and Anti-Tamper. FDOs must be aware of Critical Program Information (CPI) and Anti-Tamper (AT).

(1) CPI is defined as the elements of certain U.S. capabilities that contribute to the warfighters' technical advantage, which if compromised, undermines U.S. military preeminence. U.S. capability elements may include, but are not

limited to, software algorithms and specific hardware residing on the system, its training equipment, or maintenance support equipment. It is essential that the U.S. warfighter's technological advantage be maintained and the operational effectiveness of DON capabilities be preserved through the identification and protection of CPI. The existence of CPI, in and of itself, is not a disqualifying factor in a disclosure decision. The disclosure of CPI must be consistent with the procedures in this manual.

(2) The U.S. Government reserves the right to incorporate AT technologies and methodologies in weapons systems and components that contain Critical Program Information (CPI) offered under any Security Cooperation Program. FDOs should ensure that coordination with the Anti-Tamper Technical Warrant Holder has occurred. No information about AT may be disclosed without the approval of the AT Technical Warrant Holder and Navy IPO-01.

f. Level of Delegated Disclosure Authority. FDOs shall make their decisions based on the scope of their delegated disclosure authority as stated in their DDL. If a disclosure request is beyond the scope of authority delegated to the FDO per their DDL, and the FDO believes that the request should be considered for approval, they will forward the request to the next FDO in their delegation chain with the requisite disclosure authority to finalize the decision. If the approval is beyond the scope of authority of all FDOs in the chain, the request or proposal will be forwarded, with endorsement and justification, to Navy IPO-01 for a final decision.

7. FDO Disclosure Determinations/Authorizations. After completion of the summary and detailed analysis of the disclosure request contained in paragraphs 5 and 6 above, the FDO shall render a disclosure determination/authorization.

a. Format. There is no official DON format for an FDO disclosure determination. They may be issued in the format and form of the FDO's choosing. However, disclosure determinations should contain the following information:

(1) A title and unique case number for each disclosure determination. The determination may approve the request, deny

the request, or state that further actions are required prior to being able to render a final decision.

(2) The following items are also required in disclosure determination approvals:

(a) A statement that the determination is for the content submitted in the request and that changes affecting the scope or technical content of the information will require a separate disclosure authorization.

(b) A statement of special conditions, limitations, or stipulations that the FDO imposes on the disclosure.

(c) A statement on the modes and methods of disclosure to include oral/visual or documentary release, time and location of the disclosure, and intended recipient.

b. Response Time. FDO disclosure determinations should be provided to the proponent in a timely manner – consistent with workload, command priorities, and other management factors. FDOs should notify proponents when their request is likely to encounter prolonged review or special processing such as policy development or coordination external to the DON and give them an estimated processing time when possible.

c. Recordkeeping. FDOs shall maintain a local system of recordkeeping in the format of their choosing for all disclosure cases reviewed, including both approvals and denials. Records must be accessible by designated members of the foreign disclosure or command security staff, and not solely by the FDO under a single user account or CAC. Disclosure case records shall be maintained according to the specifications in reference (r) from the date of the authorization, and shall be subject to inspection by higher authority, including Navy IPO and the DON Inspector General. Records shall contain the content of each disclosure authorization or denial (per paragraph 7.a above), the date the request was received, the date of authorization/denial, and any amplifying FDO remarks that may be useful in reconstructing complex or unique cases.

8. Disclosures to International Organizations and Foreign
National Employees of the DON

a. Disclosures to NATO. Reference (a) currently recognizes and authorizes classified disclosure to only one international organization: The North Atlantic Treaty Organization (NATO) including its subordinate commands (e.g., SHAPE, NAMSA). The current membership of NATO may be found online at <http://nato.int>. Authority for the disclosure of CMI to any international organization other than NATO must be processed as a request for exception to reference (a).

(1) Per reference (a), when CMI is disclosed to an organization - in this case NATO - the organization, as a legal entity, is held accountable to the U.S. for the control and protection of the information. Similarly, if the information is approved for export or disclosure to an individual country that is a member of an organization, that individual country is held accountable for control and protection. The approval of the disclosure to a country in an international organization does not constitute approval to export or disclose the information to the other nations that are members of the organization, or to the organization.

(2) While Classified Military Information (CMI) may be authorized for export or disclosure to an international organization at a particular classification level, an exception to policy might be required for the export or disclosure of the same information to each individual member country. This principle is reflected in the delegation of disclosure authority charts for the international organizations in Annex A of reference (a).

(3) For disclosure purposes, NATO exists as an entity (like a foreign government). Information generated by NATO and disclosed to individual nations (including member nations or nations operating under a 4-letter tetragraph like FVEY or ACGU) must be treated as information from a distinct entity (e.g. FGI NATO). Disclosure of information to NATO should be made only in cases where a NATO mission is furthered, or where members are acting solely in the interests of NATO. Examples include NATO-led exercises or operations, such as Operation Unified Protector in Libya or Operation Resolute Support in Afghanistan.

(4) In cases where individual nations (regardless of whether they are NATO members) are operating cooperatively with DON activities, it is improper to mark documents as "REL NATO" for the purpose of simplifying the foreign disclosure review process for individual countries; or to overcome automated information system limitations; or to simply obtain blanket approval to share with additional nations as future needs arise.

(5) Care must be exercised when considering disclosures to an international organization. Generally, once the information has been provided to an international organization, the organization will determine the need-to-know for further access within the organization. Attention must be given to the countries that comprise the organization's membership before making a decision to disclose. However, there may be circumstances when the advantages from the disclosure may outweigh the risks associated with sharing the information with one or more of the member countries (e.g., participation in coalition operations). Consideration should also be given to establishing a "closed program" (which is provided for in NATO policy), specifically when it is intended that the information is to be shared with only certain specified member nations of the organization who are participating in the program (e.g., STANAGs).

(6) The process for making disclosure decisions with respect to international organizations is otherwise the same as the process for making disclosure decisions for the individual countries listed in Annex A of reference (a).

b. Disclosures to Foreign National Employees of the DON

(1) The disclosure of CUI to non-U.S. citizens employed by the DON is permitted, provided access is within the scope of their assigned duties; access would further the execution of a lawful and authorized DON mission or purpose and would not be detrimental to the interests of the Department of Defense or the U.S. Government; there are no contract restrictions prohibiting access; and the access complies with the requirements of references (s) and (t), and export control regulations as applicable. In such cases, the non-U.S. citizen shall execute a nondisclosure agreement approved by appropriate DoD Component authorities.

(2) Although non-U.S. citizens are not eligible for a U.S. security clearance, access to classified information may be justified for compelling reasons in furtherance of the DoD mission. A Limited Access Authorization (LAA) may be justified in those rare circumstances where a non-U.S. citizen possesses a unique or unusual skill or expertise that is urgently needed and for which a cleared or clearable U.S. citizen is not available. DUSN(P) will review and coordinate proposed LAAs with the applicable FDO (typically the cognizant SYSCOM or Navy IPO). References (u) and (v), respectively, provide guidance which include, but are not limited to, the following disclosure/access considerations:

(a) Access will be limited to classified information relating to a specific program.

(b) Appropriate foreign disclosure authority determines that access to classified information must be consistent with release policy to the individual's country of origin.

(c) Physical custody of classified material will not be authorized.

(d) Personnel granted LAA's will not be permitted uncontrolled access to areas where classified information is stored or discussed. Classified information will be maintained in a location that will be under the continuous control and supervision of an appropriately cleared U.S. citizen.

(e) LAAs are not valid for access to NATO information (with certain exceptions), TOP SECRET, Restricted Data/Formerly Restricted Data (Atomic Energy Act RD/FRD), Communications Security (COMSEC) and intelligence information.

9. False Impressions Disclaimer. Although it is preferable that all necessary disclosure approvals be obtained in advance of providing any information on a program or issue to a foreign representative, it is recognized that exceptions do arise.

a. Navy IPO-01 is the only approving authority for release of CMI that has not been fully vetted through the policy development process. Approvals of these requests are generally very conservative and normally only approved when Navy IPO-01

determines all disclosure authorizations are obtainable. Disclosures of this nature must be requested following the processes in paragraphs 4 and 6 above, as well as Appendix 0 of this manual. The justification and urgency of the request must be fully explained.

b. Disclosure of CUI, including CUI in support of a program or initiative involving CMI, may be approved for disclosure by the cognizant information owner if the recipient is a FVEY partner (that includes the USA, Australia, Canada, Great Britain, and New Zealand) OR if a non-FVEY partner is favorably included in a DON TTSARB decision.

c. Information approved via the above authorizations must contain a Disclaimer Statement detailed in Appendix 0 of this manual.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 4
DISCLOSURES OF DOCUMENTARY INFORMATION AND PRESENTATION MATERIAL

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for the disclosure of information capable of being printed, presented, or saved in an electronic format that supplements the processes outlined in chapter 3 of this manual.

a. Areas of Concern. In general, the disclosure of documents is of concern to an FDO because they are easily referenced, reproduced, or passed to a third party. Documentary information includes written documents, directives and other publications, correspondence, spreadsheets, databases, graphical slides, briefs and briefing notes, technical drawings, photographs, film or videotapes, audio recordings, etc., that convey CMI or CUI material or information. For the purposes of this chapter, all types of documentary information will be referred to as "documents," and all methods of disclosure (both oral/visual or physical/electronic transfer) shall be referred to as "disclosures."

b. Chapter Subtopics. Specific guidance is provided in this chapter for the disclosure review of documentary material; briefings or graphical slide presentations; off-site meetings and presentations; and the sanitizing for all types of documentary material.

2. False Impressions.

a. Per reference (a), it is the policy of the United States to avoid creating false impressions of its readiness to make available classified military materiel, technology, or information. Therefore, initial planning with foreign governments and international organizations concerning programs that might involve the eventual disclosure of classified military information may be conducted only if it is explicitly understood and acknowledged that no U.S. commitment to furnish such classified information or materiel is intended or implied until disclosure has been approved. Accordingly, proposals to foreign governments and international organizations, which result from either U.S. or combined initial planning, and which will lead to the eventual disclosure of classified military materiel, technology, or information, including intelligence

threat data or countermeasures information, must be authorized in advance by designated disclosure officials in the departments and agencies originating the information or by the National Disclosure Policy Committee (NDPC) and/or Military Intelligence Disclosure Policy Committee (MIDPC).

b. Reference (a) further states that if review of the total program indicates that the highest level of information to be disclosed under the program will exceed the classification levels authorized by the reference (a) Annexes, or is not in accordance with the disclosure criteria and conditions set forth in Section II of reference (a) (see Appendices G and H), the proposal should be denied or an exception to disclosure policy must be approved by the NDPC or MIDPC, as appropriate, prior to the initiation of the program.

3. Proponent Requirements. The information below supplements and expands upon the proponent requirements in chapter 3, paragraph 4 of this manual for documentary material.

a. Justification and Scope of Content. Documents may be disclosed in accordance with the terms of established international programs (e.g., Foreign Military Sales (FMS), international cooperative research and development, or Data/Information Exchange Agreements) or for operational military purposes (including organization, personnel, facilities, programs or activities). The information contained in these documents must be appropriate to the scope and limited to the intended purpose of the disclosure.

(1) Documents will not normally be disclosed without the consent of the originator or controlling authority, and when applicable, other offices with cognizance over the subject matter (aka, stakeholders). This process is commonly referred to as "staffing." If portions of a document are derived from another originator or controlling authority that is not the same office as the overall originator, consent must be sought and received from these additional information owners to the best extent possible. Stakeholder information may include information that falls outside of the cognizance of the overall document originator and that may be quoted, paraphrased, revealed, calculated, depicted, or presented in tabular formats from another source. For example, a tactics manual may contain intelligence and systems information, but is overall controlled

by an operational unit. To disclose the tactics manual, additional consent must be received from the activities that own the intelligence data and the systems information.

(2) Proponents of a disclosure action should initiate the staffing process with originators and stakeholders prior to submitting their disclosure request to the FDO. When staffing the disclosure proposal to reviewers, the initiator should provide each reviewer any applicable disclosure policies or precedence to assist in their review. This sort of background information may include past disclosure actions or existing FMS case configuration information, DON or DoD policies (including TTSARBs or excerpts), or the delegated disclosure limits specified by reference (a) or other higher authority. The background information should be limited to applicable information only, based on the purpose of the disclosure and the expertise being sought from the reviewer. A concurrence to disclose or concurrence with sanitizing guidance is only an input to an FDO in rendering a disclosure authorization but is not the final approval decision.

(a) For example, if the disclosure request is about a weapon warhead, the background information provided to reviewers should focus on that aspect of the weapon and not the full weapon schematics or range information, except to the extent that the information is required for context.

(b) Another example is if the disclosure request contains several technical factors, but the reviewer is only a subject matter expert in one of those factors, the background information should focus on that expert's factor, and their review should be highlighted to those places in the document where their commentary and/or concurrence is requested. Reviewers must base their concurrence to disclose or stipulate content to be sanitized (i.e., sanitizing guidance) on the benchmarks provided in the background information.

b. Document Markings. Documents to be authorized for disclosure by a DON disclosure authority shall be appropriately marked in accordance with all applicable regulations. Markings regarding specific countries or organizations (e.g., REL T0) applied to documents under disclosure review should be considered pre-decisional and labeled as such until final disclosure approval is received. DON-specific required

disclosure markings are contained in chapter 19 of this manual.

c. Document Updates and Changes. The DON does not automatically distribute new or revised documents that contain CMI or CUI to foreign governments, even when those foreign governments have received previous versions. The disclosure of a document to a foreign government does not imply or guarantee that future updates, modifications or alterations (or in the case of publications, changes, corrections or new editions) may be disclosable. Proponents must be aware that any updates, modifications or alterations must go through a disclosure review process.

d. Special Requirements for Briefings. Disclosure reviews of briefing materials shall not be limited to the slide set alone, but must take into account the overall scope of the information being provided in the presentation including discussions as well as graphics.

(1) In addition to other information required in chapter 3 of this manual, the following specific information should also accompany each graphical presentation submitted for a disclosure review:

(a) The purpose of the brief (be as specific as possible), including three to five key points that the briefer intends to convey to the audience.

(b) The audience to receive the brief, including nationalities, and positions or technical competencies (not names).

(c) Proposed disclosure limitations (general or specific).

(d) The entire presentation including speaker notes and source listing (i.e., where the information on the slide came from).

(e) Cutoff points for follow-on questions and answers.

(2) The disclosure of U.S. CMI at multinational classified forums for the sole purpose of providing parity with

foreign participants who are providing classified briefs is not sufficient justification to warrant a disclosure authorization.

4. Disclosure Analysis for Documents. The review of a document proposed for disclosure to a foreign government shall reflect the originator or controlling authority's consent, and when applicable, the consent of the stakeholders (e.g., SYSCOM engineers, OPNAV resource sponsor, Office of Naval Research lab, Fleet/Marine Corps tactics squadron, etc.), in addition to the FDO's review of the requirements contained in chapter 3 of this manual.

a. Information Limits. Per reference (a) Disclosure Criteria 5, disclosures are limited to the information necessary to the purpose for which the disclosure is being made (see Appendix G). Within the DON, FDOs must ensure that this criterion is satisfied in such a way that extraneous information is not disclosed, but information necessary to the disclosure is maintained. This certification is normally accomplished through the staffing process and relies heavily on the input of the originator or controlling authority, and stakeholders.

(1) After consummating a sale, lease, loan, or grant of a DON-sponsored weapon, system, or equipment, documentary information may be disclosed to the receiving country on a government-to-government basis to include information up to the level necessary for operation, basic employment, maintenance, and training, but not tactical employment information. The exact information disclosure limits are normally stipulated in the TTARB or in the case of a commercial sale, its export license.

(2) Tactical weapon, system, or equipment employment information against known targets, threats, or a pre-defined environment or scenario ("tactics"), may only be authorized for disclosure by FDOs at appropriate operational activities (e.g., the Navy or Marine Corps Component Commander, Warfare Centers, and Combat Development Commands). Tactics information proposed for disclosure shall be reviewed through the normal disclosure review process, including the originator and stakeholders. Background or intelligence data used to develop tactics are generally, not releasable and may require sanitizing; most tactics are based on intelligence information that may not be disclosable.

(3) FDOs performing disclosure reviews of documents previously released to a foreign government, but subsequently revised, modified, updated, or corrected, will focus their review primarily on the changed information unless otherwise warranted. The unchanged portions of the document will generally be presumed to be disclosable based on precedent. However, when a document contains significant modifications, then a completely new disclosure authorization may be required.

(4) Documents written for international cooperative programs/projects by DON-led cooperative offices and containing material derived from cooperative activities or funding under the cooperative agreement may be automatically distributed to members of the cooperative program/project without disclosure review (see chapter 9 of this manual). Updates and changes to Allied Multinational Publications may be automatically distributed without disclosure review. Other exceptions to allow automatic distribution of these types of documents must be approved by Navy IPO-01.

b. Required Disclosure Markings. Disclosure markings are contained in chapter 19 of this manual and shall be applied by the proponent to the material under disclosure review prior to submission to the FDO per paragraph 3.b above.

5. Special Disclosure Requirements for DON Laboratories and Research Facilities

a. Per reference (w), DON personnel, including those from DON laboratories and research facilities, must ensure that proposed presentations at meetings, symposia, seminars, or conferences are reviewed for dissemination and disclosure restrictions required by disclosure policies, or required in the interest of national security or other statutory or regulatory provisions, and marked in accordance with DoD marking standards and this manual.

b. Authors must submit the full text of their papers, or presentation graphics and speaker notes, for disclosure review before submitting them to the meeting or conference organizer or making the actual presentation. Disclosure approval of a summary or abstract in the early stages of preparation does not satisfy the requirement for final authorization of the full paper or presentation.

6. Document Sanitizing. Documents often require text, charts, graphs, and even entire sections to be removed before being authorized by an FDO for disclosure to a foreign government. In the DON, this procedure is generally termed "sanitizing." The degree of sanitizing, or even if sanitizing is required at all, will be dependent on the content of the document and the releasability of that information to the destination foreign government. See Appendix P for detailed document sanitizing procedures.

7. Defense Technical Information Center. The Defense Technical Information Center (DTIC) is the central DoD activity for providing access to and facilitating the exchange of scientific and technical information. DTIC offers a wide variety of products and services designed to assist its users, including foreign entities, in obtaining the information they need. Although DTIC has no disclosure authority for DON information, they have established a streamlined process for the handling of disclosure requests for classified, unclassified, and limited distribution documents in the DTIC library collection for several closely allied countries including Australia, Canada, France, South Korea, the Netherlands, and the United Kingdom. See Appendix Q for further information on DTIC disclosure reviews by DON activities.

8. U.S./Canada Joint Certification Program. Reference (x) benefits both U.S. and Canadian defense and high technology industries by facilitating their access to unclassified critical technology in the possession or under the control of the U.S. DoD or Canadian Department of National Defence (DND). See Appendix R for further information on the Joint Certification Program.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 5
DISCLOSURES OF SOFTWARE AND SOFTWARE DOCUMENTATION

1. General. This chapter provides specific guidance for the disclosure of computer software and software documentation (including source code), and not to the disclosure of documentary material in an electronic format (i.e., .doc, .pdf, etc.) contained in the previous chapter. To the extent possible, FDOs shall follow the procedures contained in chapter 3 in evaluating disclosure requests for software, in addition to the special requirements contained herein.

a. DoD Guidelines on International Transfers of Software Documentation. Per reference (y), the DON will give favorable consideration to requests for transfers of software documentation (including source code) consistent with national security interests and applicable laws, regulations, policies, and international agreements, reviewing each request on a case-by-case basis.

b. Areas of Disclosure-related Concern. Most modern DON air, surface, ground, and subsurface systems and subsystems, and DON-led weapon/warfare systems are increasingly dependent on software for the operation and control of their capabilities. Software may also be the actual end-item, such as software used on a computer operating system that may or may not interface through the operating system to other data. For these reasons, the disclosure of software is of concern to DON FDOs because software coding may not be man-readable or analyzed after development, leaving the implementation of disclosure guidance - - that may include the removal or blocking of non-authorized features, interfaces, or capabilities - - to those responsible for software design and support. Software developers or supporting activities on international programs must be aware of and adhere to processes that account for and implement foreign disclosure requirements during the design, development, testing, and maintenance/update lifecycle phases.

c. Responsibility. Oversight of foreign disclosure requirements for software is the responsibility of the DON sponsor or Program Office and should be tested and validated/verified as part of the software's developmental testing phase prior to the end-item's export/delivery.

2. False Impressions. Per reference (a), it is the policy of the United States to avoid creating false impressions of its readiness to make available classified military materiel, technology, or information. Therefore, initial planning with foreign governments and international organizations concerning programs that might involve the eventual disclosure of classified military information may be conducted only if it is explicitly understood and acknowledged that no U.S. commitment to furnish such classified information or materiel is intended or implied until disclosure has been approved, including but not limited to the disclosure of classified software, source code, algorithms, design rationale, test results, and data or database interfaces or linkages.

3. Code-Specific Software Disclosure Considerations

a. Classified Software Algorithms, Source Code, Production and Design Data

(1) Software algorithms, source code, production and design data that divulges Critical Program Information (CPI) or System Security Engineering (SSE) that encompasses anti-tamper and cybersecurity capabilities/techniques are not disclosable as an end-item under FMS cases. Per reference (z), before weapons systems or components containing CPI are offered in an FMS case, the DON Program Office case development agent will coordinate with the DoD Anti-Tamper Warrant Holder to ensure that sensitive technology or program information is defended against unlawful exploitation or loss and that an approved AT plan is in place.

(2) Classified software source code and software documentation that contains or allows access and/or insight to classified algorithms or design rationale are also considered to be manufacturing information and subject to Category 4 approvals per reference (a).

b. Unclassified Software Source Code and Documentation. Unclassified software source code and software documentation that are required for minor software maintenance, interface and/or integration, or to make administrative changes to tables, symbols, markers, or displays will be handled through normal Category 2 technology transfer channels. Foreign countries may be released limited software technical documentation including source code that enables administrative changes to tables,

markers, displays and users, including the capability to make changes in the database structure to implement country unique data fields for display and recall. This software technical documentation would be disclosed only when the disclosure of such "housekeeping" tools is determined not to increase the potential for compromise of sensitive U.S. data (such as threat parametric data), and if the software design is modularized in such a way to allow for removal of CPI and SSE related software technical information. Limited software technical documentation, including source code, may be considered for foreign disclosure when the foreign customer has a valid requirement per paragraph 4 below. Navy IPO-01 will determine the need for a case-by-case review based on the particulars of the country's request.

4. Software Disclosure Guidelines for Initial Transfers. Per reference (y), the following guidelines apply when developing disclosure decisions on the international transfer of software documentation (including source code). All recommendations by DON reviewing organizations to deny or require conditions for proposed software transfers will be accompanied by specific national security rationale supporting such recommendations.

a. Content of Transfer

(1) All requests to transfer software documentation (including source code) must identify the specific information contained in the documentation that is proposed for transfer, and the specific end-user and end-uses for the documentation.

(2) If the proposed transfer request is for a system, subsystem, or other item containing software that does not specifically request the transfer of software documentation, the reviewing FDO shall apply the following standard limitation statement to their disclosure authorization: "Because the transfer proposal did not request or address specific software documentation, no documentation may be transferred. Transfer of software documentation must be the subject of a separate specific request."

b. Software Documentation in Support of End-Items. DON organizations will give favorable consideration to the transfer of software documentation in support of end-items when all of the following have been appropriately addressed:

(1) The recipient has purchased or committed to purchase the associated end-item in appropriate quantities relative to the recipient's inventory.

(2) The recipient agrees to establish an appropriate level of indigenous software support for the end-item.

(3) The recipient agrees to use the provided software documentation only for operation and support of the associated end-item.

(4) The recipient acknowledges that the system performance or warranties (when applicable) may be invalidated if changes are made to the software.

(5) The risk of compromising critical DoD military capabilities, vulnerabilities, or intelligence data will not exceed the risk associated with end-item transfer, or any additional risk is offset by the benefit to the U.S. from the transfer of the software documentation.

c. Software Documentation in Support of Cooperative Programs. DON organizations will give favorable consideration to transfers of software documentation (including source code) in support of designated international cooperative programs when:

(1) A government-to-government agreement governs the program.

(2) In the development of the government-to government agreement, all of the guidelines in paragraph 4b above have been taken into account, as appropriate.

(3) The U.S. and cooperative partner(s) responsibilities (e.g. support, maintenance and defect repair) are explicitly addressed as part of the government-to-government agreement.

d. Software Documentation in Support of Production or Development Programs. DON organizations will give favorable consideration to transfers of software documentation (including source code) in support of production or development programs

(e.g. commercial export technical and manufacturing assistance agreements) not governed by a government-to-government agreement when:

(1) The guidelines in paragraphs 3a and 4b above have been taken into account, as appropriate.

(2) Critical DoD military capabilities, vulnerabilities, or intelligence data will not be compromised, or risk of compromise is offset by the benefit to the U.S. from the transfer of software documentation.

5. Software Disclosures Post-Initial Transfer. All software will require some form of modification during its lifecycle. Per reference (aa), the reasons that software can require changes post-deployment generally align with four types of software maintenance actions: Corrective, adaptive, perfective, and preventative. Each of these software maintenance actions have a foreign disclosure relationship as described below.

a. Corrective Software Maintenance. This type of software maintenance action is a reactive modification to correct discovered problems. It will normally stay within the scope, capability, and technical limits of a previously approved disclosure authorization. Corrective software maintenance may result from Defect Corrections. Defect Corrections - Fixing errors in design and coding.

b. Adaptive Software Maintenance. These types of software maintenance action are performed to maintain usability in a changed or changing environment. They should be evaluated on a case-by-case basis and may require a new disclosure authorization before the updated software is exported/delivered based on the underlying rationale for the change. Adaptive maintenance actions may result from:

(1) Threats - Modifying the software to respond to new threats; new cybersecurity functionality.

(2) Policy and Doctrine - Modifying the software as a result of changes to policy and/or doctrine.

(3) Safety - Modifying the software to improve safety.

(4) Interoperability - Modifying interfaces to stay interoperable with associated previously existing or new systems.

(5) Hardware Changes - Modifying software to interface or work with hardware upgrades.

(6) Technology Insertion - Improving software to incorporate new technologies.

(7) Functional Changes (user request) - Modifying the functionality or adding new functionality of the software based on user requests; this includes cybersecurity functional enhancements.

c. Perfective Software Maintenance. These types of software maintenance action are performed to provide one or more functional enhancements to the user. These modifications may require a new disclosure authorization if they alter the scope or technical capability of the weapon, system, or equipment they serve or operate, and should also be evaluated on a case-by-case basis. Perfective maintenance actions may result from:

(1) Functional Changes (user request) - Modifying the functionality or adding new functionality of the software based on user requests; this includes cybersecurity functional enhancements.

(2) Performance Enhancements (no user request) - Using more efficient coding algorithms that operate faster; functionality does not change but the operational speed does.

d. Preventative Software Maintenance. This type of software maintenance action is done to enhance the software's maintainability. These maintenance actions will normally stay within the scope, capability, and technical limits of a previously approved disclosure authorization and should only require a new disclosure authorization if they change the scope, capability, and technical limits of the end-item. Preventive maintenance actions may result from refactoring due to excessive complexity. This means cleaning up the code or code optimization for better software sustainability. This is usually done as a result of a static code analysis.

6. Software Disclosure Advisories. FDOs should also advise DON software sponsors or Program Offices regarding the topics detailed below, as applicable or necessary.

a. Cooperative Programs. In addition to the requirements of paragraph 5c above, Programs or Projects being conducted under Memorandums of Understanding/Agreement (MOUs/MOAs) or related Project Agreements (PA) requiring access to source code and source code documentation should be structured in such a way as to limit the programmatic access to source code to U.S. Government and U.S. contractor facilities in the United States.

b. Compiled versus Decompiled Software. Compiling software from man-readable source code into an installable machine code format is not a guarantee of content protection. Decompilers exist to reverse engineer or crack compiled software into a format that may provide man-readable information. DON software sponsors or Program Offices should determine through the software programmer or other cognizant sources whether decompiling is possible and if so, whether non-disclosable information may be accessible when decompiled. Per reference (ab), compiling is not an adequate protection measure to protect Critical Program Information (CPI).

c. Programmer's Comments or Remarks. DON software sponsor or Program Office should provide guidance to programmers or subject matter experts with cognizance over software proposed for foreign disclosure or export that comments or remarks contained in the man-readable portions of the software code may not provide information about disclosure limitations or export provisos/conditions (e.g., <!-- this segment's capability changed from x to y due to export restrictions -->).

d. Software Data Inputs or Interfaces. The disclosure of software does not constitute a disclosure authorization for DON data or databases necessary to operate or employ the software (i.e., mission planning software). Prior to authorizing the disclosure of CUI or CMI software, FDOs should determine whether the operation or functioning of the software is dependent on an interlace or interface with a DON, DoD, or other U.S. Agency database or information source (i.e., threat library, or meteorological or oceanographic database). If interlacing with a U.S. CUI or CMI data or source is required, those foreign disclosure authorizations should accompany the software

disclosure proposal or be included in the disclosure request together with their originator's or controlling authority's consent.

e. Use of Commercial Off-The-Shelf (COTS) or Open Source Software.

(1) Per reference (ac), it may be difficult to perform certain types of vulnerability and risk assessments and mitigating activities on COTS software for which the source code is not available for proprietary or other reasons. Software-related risks may exist and go unmitigated. Software vulnerability tools exist to identify publicly known vulnerabilities that are often used by malicious actors/agents to attack systems in widely used COTS and open source software (e.g., Windows, Linux, etc.). However, not all COTS or open source software is tested and documented in these tools, particularly if the software is for a special purpose or if the programming organization is small in scale.

(2) DON software sponsors or Program Offices must ensure through their subject matter experts that the relationships between identified COTS vulnerabilities and any CPI software or critical-function software packages are not disclosed, particularly when computer systems are designed using the open architecture (or COTS operating system) approach. For example, the fact that malicious actors may gain computer access into the operating system through an open communication port as published in a publicly available software vulnerability database, is public domain information and not subject to disclosure control. However, the fact that once inside the operating system, there may be one or more ways that a malicious actor may exploit a DON software that contains CPI or critical-function packages is not disclosable.

f. Software That Represents Former Hard-copy Documents. Some DON maintenance documents have been transformed into interlinked computer software intended to streamline and enhance maintenance processes, such as the software used in DON Interactive Electronic Technical Manual (IETM) laptop or tablet maintenance devices. Disclosure reviews of paper-to-software information should follow similar procedures as outlined in chapter 4 of this manual.

g. Software in Modeled or Simulated Systems. Per reference (ad), models include any physical, mathematical, or otherwise logical representation of a system, entity, phenomenon or process. Also per reference (ad), simulations include a method of implementing a model over time.

(1) DON Modeling and Simulation (M&S) activities encompass a wide range of functions disciplines including research and development, test and evaluation, education and training, operations, logistics, acquisition, assessment, doctrine development, and experimentation. M&S may involve representations of information under the cognizance of DON commands or activities but may also involve representations of functions of other military services or government agencies or the use of their information/databases.

(2) Disclosure reviews of DON M&S systems should follow the procedures established in chapter 3 and other topical chapters of this manual as dictated by the specifics of the model or simulation. M&S systems may need to be sanitized if representations include non-disclosable content per the guidance in Appendix P of this manual.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 6
OPERATIONAL DISCLOSURES

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for the disclosure of information relating to military exercises and operations that supplement the process outlined in chapter 3 of this manual. It also provides guidelines for embarkations by foreign military personnel or representatives (to include Foreign Liaison Officers (FLOs) and Personnel Exchange Program (PEP) participants) on DON aircraft, ships, submarines; to nuclear propulsion spaces; and to DON shipyards or contractor shipyards. The foreign visit requirements contained in chapter 11 of this manual may also apply to embarkations and shipyard visits.

a. Military Operations/Exercise Disclosure Guidelines. The primary operational foreign disclosure guideline document shall be included in Annex B-3 of the commander's Operational Order (OPORD). Annex B-3 establishes the commander's framework for sharing certain types of information with the operation/exercise participants (in general, or by individual countries or groups of countries). These orders may be amplified with more specific foreign disclosure requirements by the commander using Tasking Orders, a subset of an OPORD for disclosure purposes, or mission-specific disclosure instructions to specific commands or for shipriders, liaison personnel, etc. All of these types of disclosure guidelines are subject to the policies of reference (a), the general Delegation of Disclosure Authority (DDL) of the Commander signing the order, and limitations established by TTSARB decision memorandums or other Military Service's for weapons, systems, equipment, technology, and related information.

b. Information Cognizance. Although this chapter has a strong focus on the disclosure of military exercise and operations information (Category 5), there are times when information disclosures will include one or more additional categories (see Appendix I). Operational disclosure authorities must evaluate the full scope of information included in a disclosure request per chapter 3, paragraphs 5 and 6 of this manual to ensure proper staffing and approvals from the cognizant authorities, stakeholders, and cognizant FDOs. See chapter 3 paragraph 8 of this manual for information regarding disclosures to or use of NATO information.

2. False Impressions

a. Per reference (a), it is the policy of the United States to avoid creating false impressions of its readiness to make available classified military materiel, technology, or information. Therefore, initial planning with foreign governments and international organizations concerning programs that might involve the eventual disclosure of classified military information may be conducted only if it is explicitly understood and acknowledged that no U.S. commitment to furnish such classified information or materiel is intended or implied until disclosure has been approved. Accordingly, proposals to foreign governments and international organizations, which result from either U.S. or combined initial planning, and which will lead to the eventual disclosure of classified military materiel, technology, or information, including intelligence threat data or countermeasures information, must be authorized in advance by designated disclosure officials in the departments and agencies originating the information or by the National Disclosure Policy Committee (NDPC) and/or Military Intelligence Disclosure Policy Committee (MIDPC).

b. Reference (a) further states that if review of the total program indicates that the highest level of information to be disclosed under the program will exceed the classification levels authorized by the reference (a) Annexes, or is not in accordance with the disclosure criteria and conditions set forth in Section II of reference (a) (see Appendices G and H), the proposal should be denied or an exception to disclosure policy must be approved by the NDPC or MIDPC, as appropriate, prior to the initiation of the program.

3. Exercise Planning. When planning for international involvement in DON-led operations or exercises, the objectives as established in the OPORD, OPTASKs, Event Initiating Directive (EID), or other top-level document as published by the Officer Conducting the Exercise (OCE), should be used as a starting point for the disclosure analysis. Operation/Exercise planners should use the information contained in such documents as it relates to international participation to create specific, relevant, realistically obtainable, measurable, and supportive event goals. Properly stated goals provide the FDO with a solid basis for conducting their disclosure evaluation. Operations or Exercise Planners will be best served when they request FDO

representation from the Concept Development phase, through Initial and Mid-Planning Conference, to the Final Planning Conference or have properly trained Foreign Disclosure Representatives (FDRs) embedded in each warfare-centric planning cell throughout the planning process. Disclosure issue identification and resolution must occur through the entire planning process to ensure foreign disclosure is properly implemented during execution.

a. Types of Foreign Participation. Foreign militaries may be invited as "participants" or "observers". Participants, who are actively involved in an operational sense, will require a broader degree of disclosure than an observer, whose purpose is to simply watch all or designated portions of the exercise as designated by the OCE. The sensitivity posed by these characterizations (or roles), however, is that many foreign governments invited as "observers" see themselves as "participants" even though they have no operational involvement. FDOs must structure their disclosure authorizations according to the foreign participant's role, as well as considering Foreign Government Information (FGI) disclosure factors when determining the potential for disclosure of information to participants and observers. (See chapter 17 of this manual for FGI disclosures.)

b. Operational Scope of Foreign Participation. The operational scope of foreign participation shall be provided to the FDO by the exercise planners as early as possible and should include a list of warfare publications required (to be limited to necessary segments only, normally not the entire publication); command and communications equipment, classified network requirements, or intelligence disclosures and system access where these relate to the disclosure of system/network capabilities or in the information contained in or published to these system/networks; and other requirements that will allow each foreign participant military or observer to successfully perform their expected assignments. The scope may be derived from past precedent so long as policy or participating/observer nations have not changed, or from any of the planning meetings or conferences. The disclosure request shall also reconcile the material being requested with the foreign participant's known capabilities and/or vulnerabilities so that the request is applicable to the foreign platform, weapon, or system.

(1) The exercise planner's disclosure request should follow the in chapter 3, paragraph 3 of this manual as closely as possible. FDO assistance and guidance may be required. No CUI or CMI contained in the disclosure request may be provided to international participants or observers until disclosure authorization is received. Do not create any false impressions per paragraph 2 above or chapter 3 paragraph 9 of this manual.

(2) The FDO's disclosure authorization shall be based on the requirements identified in the scope and may include exclusions and/or sanitizing requirements. Obtaining full disclosure authorization for information outside of the cognizance of the operational FDO may require an extended period of time. Not all requested information may be found eligible for disclosure.

c. Routine Products and Daily Communications. FDOs shall provide, to the greatest extent practical, personnel conducting an exercise or operation with pre-coordinated disclosure guidance for routinely developed briefings, products, schedules, etc. - especially for those products derived from non-organic sources external to the operational commander. Planners should identify these sources as early as possible during the planning cycle by using lessons learned from prior events or through the planning cycle itself. Once identified as a disclosure issue, FDOs shall coordinate with cognizant disclosure officers from each source to obtain specific disclosure guidelines for the recurring use of their information. These guidelines may preclude multiple short-turnaround disclosure requests during operations or exercises when non-organic sourced information is routinely required.

d. PEP Participants Assigned to DON Commands. Foreign Personnel Exchange Program participants (PEPs) assigned to DON commands participating in international exercises or operations shall be overtly disclosed to international participants at the outset of exercise or operational planning. FGI disclosure considerations may apply.

4. Disclosures During Foreign Representative Embarks or Shipyard Visits. There are certain specific disclosure requirements during foreign representative embarkations on U.S. ships, aircraft, or submarines, or when visiting a DON or DON-

contractor shipyard, or when access is required to nuclear spaces. Certain equipment, spaces or facilities may require sanitizing or other levels of protection. A template for use as a starting point by security and or disclosure officials for foreign representative embarks is contained in this manual in Appendix S.

a. Ship Embarks. Policy concerning visits of personnel to afloat units is contained in references (n), (v), and (ae). This Manual does not affect the applicability of reference (ae) concerning "Embarkation in U.S. Naval Ships." The approving authority for visits of foreign nationals to afloat units is contained below.

(1) The commanding officer of a conventionally or nuclear-powered surface ship may authorize unofficial visits by foreign nationals while the ship is in port when there is no disclosure of CMI or CUI. Disclosure should be limited to information officially approved for public release only.

(2) The Naval Component Commanders, Numbered Fleet Commanders, Type Commanders, and Force Commanders may authorize visits to conventionally powered surface ships in their command involving the disclosure of CMI and CUI while the ship is in port or underway.

(3) The Naval Component Commanders, Numbered Fleet Commanders, Type Commanders, and Force Commanders may authorize visits to nuclear-powered surface ships in their command, less access to Nuclear Propulsion Spaces, involving the disclosure of CMI and CUI when the ship is in port or underway as long as there will be no disclosure of NNPI or RD/FRD.

(4) Only the CNO or VCNO (or DCNO (Naval Warfare), Director, Submarine Warfare Division, as delegated) may authorize visits by foreign nationals to Nuclear Propulsion Spaces or the disclosure of NNPI and/or RD/FRD. This authority may not be re-delegated.

b. Aircraft Embarks. The Naval or Marine Corps Component Commanders may authorize the embarkation of foreign nationals in USN/USMC aircraft for the purpose of practical demonstration and orientation under the guidance of sections 3.1 and 3.2 of reference (af). The disclosure of classified information in

connection with such embarkations must be strictly limited to the pertinent disclosure guidance for the aircraft for the country involved.

c. Submarine Embarks. The commanding officer of a submarine may authorize unofficial visits to the submarine when it is in port. No CMI, CUI, RD/FRD, or NNPI, may be disclosed, nor can access be granted to Nuclear Propulsion Spaces. The visit should be limited to information officially approved for public release. Only CNO (DCNO (Naval Warfare), Director, Submarine Warfare Division) may approve visits of 10 or more foreign nationals to a U.S. submarine. Additionally, only the CNO, VCNO, DCNO (Naval Warfare), or the Director, Submarine Warfare Division may approve a foreign visit to an underway submarine by representatives of other governments, NATO, or NATO member governments that do not satisfy all of the requirements below.

(1) The pertinent Naval Component Commander may authorize official visits by foreign representatives to a submarine in port involving the disclosure of CMI or CUI. However, the Naval Component Commander may not authorize the disclosure of RD/FRD or NNPI, nor can the Naval Component Commander grant access to Nuclear Propulsion Spaces. Only CNO (DCNO (Naval Warfare), Director, Submarine Warfare Division) shall approve visits of 10 or more foreign nationals to a submarine.

(2) The Naval Component Commanders may approve visits by representatives of the North Atlantic Treaty Organization (NATO) or NATO member governments to underway submarines in their command. All visits to an underway submarine shall be treated as classified, since it is virtually impossible to preclude the disclosure of classified information to trained foreign observers during cruises in nuclear-powered submarines.

(3) Visitors shall not have access to the Nuclear Propulsion Spaces of the submarine under any circumstances, unless the prior personal approval of the CNO or VCNO is obtained in advance.

(4) Each of the following criteria must be met for an underway visit to be approved in this manner:

(a) The visit does not exceed two days in duration.

(b) Fewer than ten foreign visitors are involved.

(c) The names and titles of personnel to embark shall be forwarded to CNO (DCNO (Naval Warfare), Director, Submarine Warfare Division) at least one week prior to embarkation.

(d) The visitors are not heads of state, cabinet level, media, intelligence, naval nuclear propulsion program personnel, or representatives from industry or academia involved in research related to submarine design or construction.

(e) Visitors shall not have access to submarine weapons, other systems, or to information pertaining to those systems, except in accordance with previously established disclosure policy. If no policy for a specific system exists, a formal request shall be forwarded to Navy IPO-01 via CNO (DCNO (Naval Warfare), Director, Submarine Warfare Division).

d. Access to Atomic Information, Naval Nuclear Propulsion Information, and Access to Nuclear Propulsion Spaces. See chapter 18 of this manual for additional information.

(1) Atomic Information or Restricted Data and Formerly Restricted Data (RD/FRD) shall not be disclosed to foreign nationals except when explicitly authorized personally by the CNO or VCNO. The disclosure of Atomic Information (RD/FRD) requires coordination with the Joint Atomic Information Exchange Group (JAIEG).

(2) Classified and unclassified Naval Nuclear Propulsion Information (NNPI) is not authorized without prior personal approval of the CNO or VCNO. Requests for visits that include disclosure of NNPI must be endorsed by CNO (Director, Naval Nuclear Propulsion) prior to being presented to CNO or VCNO for approval. Additionally, reference (ag) provides specific areas and CVN equipment/systems on the CVN 68 Class which requires NAVSEA 08 review and concurrence.

(3) Foreign nationals shall not have access to the nuclear propulsion spaces of nuclear-powered naval vessels without the prior personal approval of the CNO or VCNO in

writing. When these visits are approved, the visitors will be limited to high-level political or diplomatic personages who have no technical background. NNPI shall be protected as directed by the disclosure authorization issued by the CNO or VCNO. The CNO or VCNO may impose his/her own reporting requirement for all visits of foreign nationals to nuclear propulsion spaces in addition to the requirements imposed by reference (b).

e. Visits to Shipbuilding Facilities Engaged in the Repair, Conversion, Overhaul or Construction of Naval Vessels. The Commander, Naval Sea Systems Command (COMNAVSEASYSCOM) has been delegated exclusive authority for approval and denial of all visits regarding shipbuilding facilities engaged in repair, conversion, overhaul, or construction. These visits present unique security problems. The overall scope, complexity and sheer size of shipbuilding, repair, overhaul, and construction projects are not always compatible with normal security control measures. Accordingly, the following guidance is established for visits to sites at which naval vessels are under construction, conversion, repair, or overhaul:

(1) No person shall be allowed to go on board naval vessels under construction, conversion, repair, or overhaul except under the authority of COMNAVSEASYSCOM or a field representative assigned supervision of the vessel.

(2) No person shall be allowed at the construction, conversion, repair, or overhaul sites, or adjacent areas (i.e., shops within naval or commercial shipyards, repair facilities, docks, or piers) except on authority of COMNAVSEASYSCOM or the field representative assigned supervision of the vessel.

(3) A visitor granted such access should comply with all conditions and controls imposed by the COMNAVSEASYSCOM. Non-compliance shall serve as sufficient justification to cancel a visit authorization previously granted.

(4) Requests for a foreign visit to a Naval or commercial shipbuilding facility shall be placed through the FVS by the visitor's embassy. Navy IPO will then transfer the request to COMNAVSEASYSCOM for further action as the OPR. Foreign exchange personnel serving aboard a U.S. ship that makes

SECNAV M-5510.1
24 Jun 2019

a short unscheduled visit to a shipyard are subject to the exception contained in chapter 12, paragraph 4j of this manual.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 7
MILITARY INTELLIGENCE DISCLOSURES

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for the disclosure of information relating to military intelligence that supplements the process outlined in chapter 3 of this manual. The disclosure of classified military intelligence information in the Department of the Navy is delegated by the Navy International Programs Office (IPO) to the Deputy Chief of Naval Operations for Information Warfare (Director of Naval Intelligence), the Commander, Office of Naval Intelligence (COMONI), and the Commandant of the Marine Corps (Director of Intelligence, or DIRINT). These Directorates may issue their own procedures and guidance for the intelligence their Service originates insofar as they are consistent with references (a), (c), (ah) and its implementing policy guidance, and this manual.

2. False Impressions

a. Per reference (a), it is the policy of the United States to avoid creating false impressions of its readiness to make available classified military materiel, technology, or information. Therefore, initial planning with foreign governments and international organizations concerning programs that might involve the eventual disclosure of classified military information may be conducted only if it is explicitly understood and acknowledged that no U.S. commitment to furnish such classified information or materiel is intended or implied until disclosure has been approved. Accordingly, proposals to foreign governments and international organizations, which result from either U.S. or combined initial planning, and which will lead to the eventual disclosure of classified military materiel, technology, or information, including intelligence threat data or countermeasures information, must be authorized in advance by designated disclosure officials in the departments and agencies originating the information or by the National Disclosure Policy Committee (NDPC) and/or Military Intelligence Disclosure Policy Committee (MIDPC).

b. Reference (a) further states that if review of the total program indicates that the highest level of information to be disclosed under the program will exceed the classification levels authorized by the reference (a) Annexes, or is not in

accordance with the disclosure criteria and conditions set forth in Section II of reference (a) (see Appendices G and H), the proposal should be denied or an exception to disclosure policy must be approved by the NDPC or MIDPC, as appropriate, prior to the initiation of the program.

3. Disclosure Policies

a. Military Intelligence Disclosure Policy. Reference (a) establishes the policies governing the disclosure of classified military intelligence developed or derived from Navy or Marine Corps sources or sensors, or under the cognizance of the Navy or Marine Corps, including the analysis produced and information disseminated by the Director of Naval Intelligence (DCNO N2N6), the Director of Marine Corps Intelligence (DCMC G2), the Office of Naval Intelligence (ONI), the Marine Corps Intelligence Activity (MCIA), or Navy or Marine Corps elements or subordinate units to foreign governments.

b. National Intelligence Disclosure Policy. Reference (ah) establishes the policies governing the disclosure of classified national intelligence information, including the analysis produced and information disseminated by Intelligence Community (IC) elements to foreign entities. Reference (ah) also establishes policy for the protection of intelligence sources and methods as those pertain to foreign disclosure.

4. DON Intelligence Product Guidelines. The production of intelligence reports and products at a level suitable for foreign disclosure supports both the IC and U.S. policy makers. DON IC elements should produce intelligence products and reports marked for foreign disclosure. Per reference (ah), the following general report and product guidelines apply:

a. DON IC elements shall limit the use of restrictive dissemination control markings to the minimum necessary.

b. All documents considered for foreign disclosure shall be marked in accordance with reference (ai), and chapter 19 of this manual.

c. If it is not possible to issue a report or product without restrictive dissemination controls, DON IC elements

shall, consistent with reference (ai), clearly identify those portions not authorized for disclosure to foreign entities.

d. When feasible, intelligence that cannot be disclosed shall be separated arranging content according to disclosure levels (i.e., "tear line" segregating of content), portion marking, or use of annexes separate from that which may be disclosed.

5. DON Intelligence Disclosure Procedures. Per references (a) and (aj), the procedures outlined in chapter 3 of this manual apply to Category 8 military intelligence disclosures made by DON IC elements. This includes meeting the Five Disclosure Criteria (Appendix C); the staffing and review process; and possible document sanitizing or segregating content per paragraph 4d above prior to disclosure.

6. Use of the NOFORN Caveat. Reference (ak) states that the dissemination marking "NOFORN" (meaning "Not Releasable to Foreign Nationals") is an intelligence control marking used to identify intelligence which an originator has determined meets the criteria of reference (ai) and which may not be provided in any form to foreign governments (including coalition partners), international organizations, foreign nationals, or immigrant aliens without the originator's approval. DON FDOs may not authorize the disclosure of any information containing a NOFORN caveat.

a. NOFORN Use Limited to Intelligence Information Only. Within DoD, NOFORN is authorized for use ONLY on intelligence and intelligence-related information and products with two exceptions. The exceptions are Naval Nuclear Propulsion Information (NNPI) and reference (a), both of which may be marked "NOFORN." Other than those two exceptions, there is no authorized DoD use for the NOFORN caveat on non-intelligence information.

b. Review and Sanitizing of NOFORN for Disclosure Purposes. Existing documents originally marked "NOFORN," but subsequently determined by the originator of the intelligence to be disclosable, must be re-reviewed by the FDO and when deemed to be authorized for disclosure, remarked with the proper disclosure markings prior to being provided to foreign nationals. If the document is deemed to be disclosable in its

entirety, the "NOFORN" marking may be lined through and the document remarked with the revised overall page and portion markings. Any portions of a document not approved for disclosure must be redacted; the remaining portions of the document must be remarked as necessary. A record copy of the disclosed document shall be annotated with the disclosing authority (e.g., identity of the command with foreign disclosure authority, and source of originator's consent) making the disclosure decision, and the date of the decision. When circumstances warrant, notify all document holders of the disclosure decision.

CHAPTER 8
FOREIGN MILITARY SALES AND LEASES

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for making disclosure decisions regarding the development and execution of Foreign Military Sales (FMS) and Leases to foreign governments that supplement the process outlined in chapter 3 of this manual. From a disclosure perspective, reviews associated with leases shall follow the same procedures as FMS.

a. Disclosure Review Requirements. Both references (b) and (z) require disclosure authorizations from an appropriate Foreign Disclosure Officer (FDO) prior to sales, loans, leases, and grants of defense articles and services and prescribe transfer arrangements. Before responding to an FMS request, the FDO shall conduct a disclosure review to ensure that the response complies with existing national, DoD, and DON disclosure policies, and that the prescribed transfer arrangements have been approved by the responsible security offices.

b. General Information Limitations. Per reference (b), disclosure of information relating to an equipment transfer is generally limited to that information necessary to operate, maintain, and employ the equipment. Hardware/software design data, certain source code, and manufacturing and production data require additional approvals. System vulnerabilities to countermeasures technology will also normally not be released unless authorized by an FDO as a deliverable specified in the security cooperation case.

2. False Impressions. Creating a false impression of the U.S. Government's willingness to make military materiel, technology, or information available to friends and allies in advance of obtaining disclosure approval for an FMS case or lease should be avoided, particularly pre-case development activities. However, in order to increase speed, work more in parallel and accelerate partner decision process, usage of a false impression disclaimer may be suitable. Additional guidance on the transfer of information in the absence of full and complete policy and the use of a false impression disclaimer can be found in chapter 3, paragraph 9 and Appendix O.

3. Standard FMS Case Types

a. The most typical types of FMS cases an FDO may encounter are Defined Order, Blanket Order, and Cooperative Logistics Supply Support Arrangement (CLSSA). These cases generally allow DoD to provide FMS purchasers the same kinds of defense articles and services used by U.S. Forces – subject to any disclosure limitations. Defined Order and Blanket Order cases are also routinely used to provide hardware or services to support commercial end items, obsolete end items, (including end items that have undergone system support buy outs) and selected non-U.S. origin military equipment. A more detailed description of each type of FMS case is contained at Appendix T. Descriptions of other types of FMS cases may also be found in reference (z).

b. Processes must be established and maintained by responsible DON organizations for Blanket Order and CLSSA case orders placed directly by foreign customers to ensure that deliveries are consistent with foreign disclosure policies. The procedures to review Defined Order cases are contained within the remainder of this chapter.

4. Initial Case Development Disclosures

a. Per reference (b), initial disclosures prior to the signing of a Letter of Offer and Acceptance (LOA) for a FMS Defined Order case will be limited to general information usually no higher than the CONFIDENTIAL level on general capabilities, performance characteristics, support requirements, and price and availability until a formal purchase commitment has been made.

b. For DON information governed by a foreign disclosure policy, specific pre-LOA disclosure limitations may be found in the TTSARB decision memorandum Terms and Conditions.

(1) Disclosure Mode. The pre-LOA disclosure mode will be as stipulated in the disclosure approval by the FDO. Proponent requests for oral/visual only shall normally be accommodated.

(2) Disclosures to Foreign Non-Government Personnel. Occasionally foreign government personnel may desire the presence of one of their own support or defense industry

contractors during pre-LOA presentations by DON representatives. These non-government personnel do not formally constitute a Third Party Transfer (TPT), per reference (a), until an FMS LOA is signed, but these requests should be closely reviewed by FDOs with a general policy of denial. Exceptions shall be coordinated with Navy IPO-01D.

(3) Foreign Reviews of DON Publications and Training Materials/Trainers. Foreign government personnel may also request to review or be exposed to sample DON publications, training materials, or training aides/trainers/simulators for evaluation purposes prior to formalizing their FMS request. These types of evaluations may expose the foreign representative to information that may not be disclosable to the recipient government, or that will require sanitizing prior to inclusion in the FMS LOA. If approved, FDOs must ensure that only disclosable sections or segments are displayed on an oral/visual basis only. Exceptions or special circumstances, such as foreign requests for demonstrations or ride-alongs, shall be coordinated with Navy IPO-01D.

5. P&A and Pre-LOA Disclosure Reviews for Defined Order Cases. Disclosure reviews of defined order FMS cases under development shall be based on a foreign government's official Letter of Request (LOR) and all applicable foreign disclosure policies relating to the item(s) being requested in the LOR.

a. Minimum LOR Requirements. To perform a disclosure review of an LOR, it must contain the information outlined below. If the LOR lacks the below information, the Navy IPO-02 Country Program Director (CPD) shall contact the requestor and obtain this information. If the requestor does not know what specific system will meet their need, but they have a generic description of what is required, the CPD must obtain technical assistance from the applicable DON program offices prior to requesting a disclosure determination by an FDO.

(1) System nomenclature and/or sufficient description of the defense articles and services being requested; including training, logistic support, supporting documentation, etc. Include what platform the requested weapon system will be installed on and classification of equipment and documentation.

(2) Sufficient purpose and justification, including identification of platform and operational environment (e.g. ship class, mission areas/capabilities, and requirements for integration with other combat systems and communications links).

(3) If a request is for Significant Military Equipment/Major Defense Equipment (SME/MDE) a country team assessment (CTA) is required in accordance with reference (z). The CTA will also be used if an Exception to the National Disclosure Policy (ENDP) is required. Per reference (z), a Pre-LOR Assessment Request (PAR) developed by the U.S. in-country security cooperation office may be used in lieu of a formal LOR and a CTA for ENDP purposes.

b. FDO Disclosure Review. The CPD will forward the LOR to the applicable SYSCOM Program Office for coordination with the applicable Program or Case Manager for development in accordance with reference (z). The Program Office or Case Manager will coordinate with their supporting FDO for a disclosure determination.

(1) The FDO's disclosure determination shall address the following:

(a) That the items being requested (hardware, software, weapons, systems, or equipment, and their classification levels) are disclosable in accordance with applicable DON foreign disclosure policies, including applicable TTSARB decision memorandum numbers. The critical/sensitive components of the items being disclosed should be clearly delineated and related to their respective disclosure policies.

(b) That logistics support, including spare parts, support and maintenance equipment, and publications necessary for the operation and maintenance of the items are disclosable.

(c) That mission planning and training support are disclosable, including the use of trainers/simulators, computer-based trainers, and DON training facilities and curriculums.

(d) If the disclosure determination is within the tasked FDO's delegated disclosure authority, the FDO should document the determination and should state, "This draft [LOA/lease/P&A] has been approved by the [SYSCOM] Foreign

Disclosure Officer and is releasable in accordance with [specific policy]." in the Defense Security Assistance Management System remarks section to Navy IPO-02. "No objection to release" is not an acceptable statement.

(2) If the disclosure determination exceeds the FDO's delegated disclosure authority, the above findings shall be communicated to the tasking Program Office or Case Manager. Based on coordination with the PO or CM, additional FDO actions may be required per chapter 3, paragraph 6f in this manual.

6. Case Execution

a. Disclosures related to a signed LOA must adhere to the FMS case scope, terms, and conditions. The following types of information, as an example, shall not be disclosed unless specifically identified in the FMS case disclosure authorization. To release any of these items, a separate disclosure approval by the cognizant FDO and an amendment to the FMS case are required.

(1) Information that would reveal the details of design, development, production, or manufacture.

(2) Depot level maintenance information.

(3) Software source code and related documentation.

(4) Research and development data.

(5) Test results, such as Operational Evaluation (OPEVAL) and Technical Evaluation (TECHEVAL) reports and other sources of information, that would reveal system susceptibilities and vulnerabilities.

(6) Tactical training and information.

b. CUI Disclosures. Approved FMS cases that have gone through a disclosure review prior to the signing by both parties of the LOA provides certain abilities to disclose CUI to Program or Deputy Program Managers, and FMS Case Managers (or their designee) where the information is within the scope, configuration, and technical limits of an active FMS case. A

checklist for determining whether these personnel may disclose CUI may be found at Appendix U.

c. Configurations. Special care shall be exercised to ensure that FMS case-related information and follow-on support (including training, documentation, and spare parts) to be provided are consistent with the configuration approved by the DON and DoD for disclosure or export, or with equipment which is already in or approved for the country's inventory. Care must be exercised when a country has been provided an export or commercial variant of an item; documentation may have to be sanitized.

d. Briefings and Documentation. Briefings and documentation that include information on U.S. systems or programs which are not part of the FMS case, but are considered by the Program Manager (PM) to be appropriate for disclosure to the customer government, must undergo a separate disclosure review by the FDO.

e. Amendments and Modifications. Case amendments and modifications that affect the scope of the case generally require a separate disclosure authorization. FMS case managers should not make commitments to release system performance upgrades unless a disclosure review is performed by an FDO.

f. Foreign Visits. Foreign visits to the U.S. associated with an FMS case must be processed via the Foreign Visits System (FVS) per chapter 11 in this manual.

7. FMS Case Manager Disclosure Responsibilities. The role of the FMS Case Manager is critical to the successful management and execution of the foreign disclosure functions of FMS cases. Case Managers will ensure that the information and material being provided is consistent with the configuration approved for that country. To best manage these functions, FMS Case Managers should:

a. Maintain a complete list or inventory of the items procured in the case, to the most detailed level practical, along with any associated foreign disclosure restrictions, limitations, or export configurations as provided for in the case disclosure authorization.

b. Modify this list or inventory as the case is amended, configurations change, etc., along with their new disclosure authorizations, restrictions, or limitations.

c. Make specific or applicable portions of this list or inventory available to the FDO when items, documentation, training, etc., are proposed for a disclosure authorization. Also make portions available to information originators or stakeholders when seeking originator's or stakeholder's consent for case-related disclosures, especially when guidance must be developed to sanitize documents to a foreign configuration.

d. Maintain a file of case-related disclosure authorizations, citing these past precedents when submitting new disclosure proposals to the FDO for related items or information.

e. Coordinate the disclosure approval of FMS case-related CUI training curriculums with the training facility and the cognizant FDO(s).

8. Third Party Transfers of FMS Information. The U.S. Government (USG) requires recipients of U.S.-origin defense articles, services, or technical data to obtain written consent from the Department of State prior to transfer, disposal, or change of end-use of its U.S.-origin articles, services, or data. Such approval is required for all transfer, change of end-use or destination not previously authorized in the original acquisition. Included are defense articles and technical data obtained through the U.S. Government Foreign Military Sales (FMS) Program, Grants (i.e. Military Assistance Program or Excess Defense Article), or Direct Commercial Sales (DCS). The State Department's Bureau of Political-Military Affairs (PM) Office of Regional Security and Arms Transfers (RSAT) is only responsible for processing third party transfers involving FMS and grant-origin defense articles. Retransfers of DCS items are processed by the State Department's Directorate of Defense Trade Controls (DDTC).

a. Legal Authority. Section 3(a) of reference (k) specifically addresses third party transfers: "In considering a request for approval for any transfer of any weapon, weapons system, munitions, aircraft, military boat, military vessel, or other implement of war to another country, the President will

not give his consent to the transfer unless the United States would itself transfer the defense article under consideration to that country."

b. Third Party Transfer Application. The divesting government is responsible for submitting the written third party transfer request to the USG for consideration. The standard third party transfer questionnaire can be found online at <https://www.state.gov/t/pm/rsat/>

c. FDO and Program Office Responsibilities. DON FDOs and Program Office representatives are only responsible for evaluating and validating third party transfer requests for compliance with foreign disclosure policy, and limiting the information authorized for retransfer to that information required for the purpose stated in the transfer request.

9. FMS Transportation

a. Government-to-Government Transfer. Classified information or material must be transferred through official government channels (e.g., U.S. Postal Service and military postal service registered mail, diplomatic pouch, Defense Transportation Service (DTS), Defense Courier Service (DCS) or other government courier, or through similar official channels arranged by the receiving foreign government or international organization), or through other arrangements (e.g., hand carry by designated courier or commercial transportation and a transportation plan for freight). The latter arrangements must be agreed upon in writing on a case-by-case basis for specific programs, and must provide for the secure transfer from the point of origin to the ultimate destination. Top Secret information, however, must always be transferred via official government channels (e.g., U.S. Government courier or U.S. Government approved secure communications systems). Reference (n) must be consulted for the proper transfer arrangements for classified information.

b. Transfer Pursuant to a Government Sale. The transfer of classified articles or other classified material that result from a government sale shall be in compliance with references (n) and (z). The necessary security arrangements are made during the negotiation of the FMS agreement with the purchasing government (i.e., the Transportation Plan). The DON security

office that supports the DON FMS case executing agency is responsible under an FMS sale to ensure that all security requirements necessary for a government-to-government transfer are in place and are in compliance with references (n) and (z) prior to the materiel being released to the purchasing government's representative, unless specific written arrangements are included in the contract that instruct the U.S. contractor to initiate the transfer. The DON security office supporting the DON FMS case administering office is responsible for approval of transportation plans in those cases where the transfer is made by the DON.

c. Transfer Pursuant to a Commercial Sale. Transfers under commercial sales are the responsibility of the U.S. contractor and must conform with references (u) and (am).

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 9
INTERNATIONAL ARMAMENTS COOPERATION DISCLOSURES

1. General. International cooperative projects are implemented by the DON with one or more participating foreign nations per the authorities granted by reference (an). International Agreements (IAs) set forth the terms and conditions under which participating governments agree to cooperate in military research, development, test and evaluation (RDT&E); standardization; production; in-service support; information and personnel exchanges; and operational arrangements. The four primary types of IAs are detailed at Appendix V.

a. Agreement Titles. IAs include Memorandum of Understanding or Agreement (MOU/MOA) and their sub-agreement Project Arrangements (PA), or Information Exchange Program (IEP) MOU/MOAs and their sub-agreement Annexes. IAs may also be referred to by a variety of names, including Armaments Cooperation, International Armaments Cooperation, Defense Cooperation in Armaments, or simply "cooperative programs".

b. Defining Components

(1) Acquisition IAs, per reference (ao), are any acquisition program or technology projects that include participation by the U.S. and one or more foreign nations during any phase of a system's life cycle. They are defined by the fact that they all involve (1) research, development, test, evaluation and/or production and logistics; (2) mutual and equitable sharing of effort, cost and risk; and (3) sharing of the resulting information, equipment or other benefits. Acquisition IAs may also involve other stages of the acquisition lifecycle.

(2) Operational IAs, per reference (ap), are defined by the fact that they involve (1) technical, operational, working, or similar operational arrangements; (2) cooperative or reciprocal operational, logistical, training, or other military support; (3) combined military planning, command relationships, military exercises and operations, minor and emergency forced deployments, and operational exchange and liaison programs; (4) collection and exchange of military intelligence information; (5) collection and exchange of military information and data other than military intelligence; (6) health and medical

agreements; (7) communication agreements; (8) and other operationally related agreements. Detailed procedures for the development, negotiation, and approvals for operational IAs may be found in reference (an).

2. False Impressions. Reference (a) requires the DON to determine the foreign disclosure requirements prior to the negotiation of an international agreement. Therefore, DON personnel shall not enter discussions that imply a commitment to negotiate an agreement until negotiating authority has been obtained and foreign disclosure guidelines have been provided.

3. IA and PA/Annex Compositions. IAs set forth the terms and conditions under which participating governments agree to cooperate. Some IAs, such as those for developmental programs, engineering and manufacturing development, and in-service support for an acquisition program are used to execute the project. Other IAs, such as those for RDT&E or information exchanges, use an unfunded master IA as a framework agreement, and execute work or information exchanges under PAs or IEP Annexes, respectfully. These sub-agreements are individually approved, and more tailored and refined to a specific scope.

a. IA Components. The basic components of an IA (e.g., MOUs or MOAs) are:

- | | |
|---------------------------|-----------------------------|
| - Objectives | - Scope of Work |
| - Management | - Financial Provisions |
| - Contracting Provisions | - Disclosure and Use of |
| - Controlled Unclassified | - Project Information |
| Information | - Third Party Sales and |
| - Security | - Transfers |
| - Visits | - Customs, Duties and Taxes |
| - Settlement of Disputes | - Amendments, Termination, |
| - Liability and Claims | and Duration |

b. PA Components. The basic components of a PA are:

- | | |
|---|---------------------------|
| - Objectives of Project | - Scope of Project |
| - Management of Project | - Cost Sharing of Project |
| - Work Sharing of Project | - Termination of Project |
| - Contractual Arrangements and Acquisition Strategy | |
| - Duration of Project | |

c. IEP Annex Components. The basic components of an IEP Annexes are:

- | | |
|-----------------------|--------------------------|
| - Objectives of Annex | - Scope of Annex |
| - Management of Annex | - Sharing of Information |
| - Duration of Annex | - Termination of Annex |

d. Summary Statement of Intent (SSOI). An SSOI is used within the DoD as a staffing and request tool in the development and approval process for IAs and PAs. The SSOI constitutes a summary of the IA covering the operational requirement of the proposed project; identification of the partner nation(s); applicable legal authority; benefits/risk to the U.S.; potential industrial base; funding availability and technology transfer issues; and proponents of the project. The OSD-approved SSOI format and guidance for its use is provided in the IA Generator (a Navy IPO-01C product) or may also be obtained from your cognizant FDO. The basic components of an SSOI are:

- | | |
|-------------------|-------------------------------|
| - Short Title | - Technology Transfer and |
| - Partner Nations | Foreign Disclosure |
| - Proponent | - Contracting |
| - Description | - Deviations |
| - Fiscal | - U.S. Industrial Base Impact |
| - Legal Authority | - Negotiator |
| - Counsel | |

e. The important information needed in the SSOI for disclosure purposes includes background on any previous disclosure precedents, the highest classification level anticipated for the life of the program and their categories, specific information about the technology and its sensitivity, and any identified Critical Program Information (CPI). Close coordination is necessary between the DON negotiating team and the Disclosure Policy Division at Navy IPO to ensure the IA does not exceed established disclosure policies or parameters. If establishing a disclosure precedent through the IA may be controversial, negotiations may be delayed until a disclosure consensus is reached to avoid the creation of a false impression to the foreign party.

4. Execution of Foreign Disclosure Authority Under IAs.
International agreements, in and of themselves, do not authorize DON officials to disclose specific Classified Military

Information (CMI) or Controlled Unclassified Information (CUI) to foreign entities. DON personnel shall not disclose CMI or CUI under an IA except pursuant to a Delegation of Disclosure Authority Letter (DDL) or Cooperative Disclosure Letter (CDL) approved and issued by Navy IPO. DDLs provide disclosure authority and guidance to DON Program/Project Managers (PMs) and Technical Project Officers (TPOs) for implementation of IAs. Under no circumstances may the contents of DDLs or CDLs be disclosed or acknowledged to foreign representatives.

a. IA Information Types. There are two basic groups of information used within IAs:

(1) Background information is national or contractor-proprietary information that is not generated in the performance of an MOU/MOA or PA. It is normally disclosed to the international participants by a participating nation or one of their designated contractors because it is useful or necessary to the project's effort. The disclosure of contractor-proprietary information may only occur with the owner's consent, and export licensing requirements from the contractor's national government may apply.

(2) Foreground information is information generated in the performance of an MOU/MOA or PA. There are no disclosure approvals required for Foreground information as it belongs to the participants.

b. Background Information Disclosure. The disclosure of U.S. Government Background information into a cooperative project is done under the terms of the DDL or CDL approved and issued by Navy IPO-01D to PMs and TPOs per the disclosure process discussed in chapter 3 and other applicable chapters of this Manual. The DDL or CDL contains specific disclosure guidance and/or restrictions associated with the designated PM's or TPO's authority to disclose CUI and CMI within the scope of their IA.

(1) Navy IPO-01, the PM or TPO, and the PM or TPO's cognizant FDO develop the draft DDL, which is then formally coordinated with other cognizant offices as necessary. Navy IPO-01D will issue a final DDL. All disclosure decisions made under these DDLs must be recorded in accordance with chapter 3 of this manual.

(2) IAs occasionally contain clauses regarding continuations to follow-on RDT&E phases, or manufacturing or production follow-on development. PMs must limit their disclosures during follow-on discussions to the guidance and restrictions in their DDL, or per other guidance received, particularly for systems or technologies that are conceptual and where the development of disclosure guidance may require extensive coordination through a major command FDO with Navy IPO. Follow-on development discussions and plans must not create a false impression about the U.S. government's willingness to share CMI or CUI when disclosure authority has not yet been received.

(3) IA DDLs do not authorize transfers from the U.S. Government to foreign commercial (non-governmental) organizations (e.g., defense contractors). The DDLs also do not authorize PMs to direct the transfer of defense articles and/or technical data from U.S. contractors to the foreign government to foreign industry without an export license or an exemption to reference (am). Navy IPO is the sole authority within the DON authorized to certify the use of reference (am) exemptions per chapter 13 of this manual.

(4) DDLs issued for Information and Data Exchange Programs (IEP) only provide for the exchange of research and development information or data only. Their associated Annex is not a mechanism for the exchange of any samples, materiel (in any form other than as a storage medium for the transfer of data), equipment, personnel, or funds. There is no legal authority under the IEP to conduct "joint work," "joint tests," or cooperative programs and studies with a foreign government. Information or Data Exchange Agreements and their DDLs are generally limited to the exchange of existing information or data and do not provide for the generation of information or data. The IEP DDL also does not provide any authority for making disclosures for training, loans, leases, procurement, or sales of defense articles or services in accordance with reference (k).

(5) For IAs that establish Cooperative Program Personnel (CPP) positions, the IA DDL shall govern the disclosure of U.S. Background information to CPPs. (See chapter 12 of this manual for CPP disclosure guidance.)

c. Disclosure of Military Information Under TTCP. The Technical Cooperation Program (TTCP) is an OSD Master Agreement available to Service S&T communities to provide for exchange of information and projects in Science S&T areas of interest. DON representatives proposing to disclosure information to various TTCP Subgroups, Technical Panels and Action Groups must submit their requests through their chain of command to their cognizant FDO. These requests shall be forwarded sufficiently in advance of scheduled meetings to permit required staffing. FDO-approved disclosures must be confined to only the information necessary to realize the TTCP's objectives of cooperative non-atomic research and development. Active participation by DON personnel in any TTCP Subgroups, Technical Panels and Action Groups, meaning more than one engagement during a calendar year, may request a DDL or CDL from Navy IPO-01D.

5. Disclosures to Non-Participants

a. Disclosures of DON Background Information. DON information disclosed to a cooperative project or exchanged under an annex may not be disclosed or transferred by project or annex personnel or their designated contractors to a third-party government or national that is not a member of the project or annex without the consent of the DON. Because third party disclosures generally fall outside of the scope of PM or TPO DDLs, these requests must be forwarded by the PM or TPO to the cognizant FDO or Navy IPO for authorization. For cooperative project designated contractors, third party retransfers may be requested through an export license application.

b. Disclosures of Project Foreground Information. The third party disclosures of Project Foreground information shall follow the procedures set forth in the governing MOU or MOA, and the implementing guidance found in the Project Security Instruction (PSI). Foreground information that contains clearly identifiable DON Background information must follow the procedures in paragraph 5a above prior to it being mentioned, offered, or discussed by project personnel with a third party to avoid the creation of a false impression.

6. Cooperative Information Disclosure Markings. DON Background information disclosed into a cooperative project or annex must be marked per the standards specified in chapter 19 of this

manual.

a. **Foreground Documents Containing DON Background Information.** Project Foreground documents do not require the application of disclosure-related markings unless any DON Background information contained in the document can be clearly identified or is paraphrased, revealed, or compiled. If the DON information is identifiable, then the Foreground document must contain a statement on the front cover, or in the footer of the first page if there is no front cover, or in the opening paragraph of the document that it contains USA Background information.

b. **PSI Marking Standards.** A PSI provides specific security implementing guidelines to be followed by cooperative projects when protecting Foreground and Background CMI, CUI, or controlled technical data is required. PSIs may establish unique markings for project distribution that may replace DoD Distribution Statements per Enclosure (5) to reference (aq). DON personnel working with cooperative projects must follow the guidelines provided in each project's PSI for Foreground information. Sample project distribution markings for PSIs are contained in this manual at Appendix W.

c. **Joint Classification Marking.** Per reference (ak), the Joint classification marking (//JOINT) may be used on CMI owned or produced by more than one country/international organization, such as in a cooperative program or project.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 10
TRAINING COURSE DISCLOSURES

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for making disclosure decisions regarding foreign military training that supplement the process outlined in chapter 3 of this manual. Students representing a foreign country, including military personnel, contractors, or government representatives (herein referred to as "foreign students") may take part in DON training. These trainings may be related to Foreign Military Sales (FMS) cases in accordance with reference (ar); military operations and exercises; or other lawful and authorized purposes. Any Classified Military Information (CMI) presented to foreign students must first be authorized for foreign disclosure by Navy IPO-01D2. CUI training shall be reviewed for disclosure by the sponsoring DON activity (e.g., SYSCOM Program Office for FMS training, or Navy or Marine Corps operational headquarters for Mobile Training Teams (MTTs) or On-The-Job Training (OJT)), and authorized for disclosure by that organization's Foreign Disclosure Officer (FDO).

a. Definition of Training. Section 47(5) of reference (k), defines training as formal or informal instruction of foreign students in the U.S. or overseas by officers or employees of the U.S. Government, contract technicians, and contractors (including manual at civilian institutions). Training methods include formal classroom presentations; correspondence courses; technical, educational or information publications/media of all kinds; training aids; orientations; training exercises; and military advice to foreign military units and/or forces.

b. Basis of Disclosure Review. Disclosure reviews of standard classroom training, OJT, or MTT curriculums shall be based on the curriculum provided to DON personnel. Depending on the course and the disclosure limitations, foreign student attendance may be combined with DON students or the provided on a stand-alone basis to students of one country.

(1) Care should be taken to ensure that foreign students are not given access to information, material, equipment, or capabilities not approved for disclosure to their government, regardless of whether it is classified or unclassified.

(2) When given as a combined class, foreign students may be required to be excused from the classroom for periods of time when the presentation contains non-disclosable information. If student absence from the class is anticipated for a substantial or key portions of the course, then attendance should be denied or an alternative training program sought.

(3) Foreign attendance at a DON training course does not mean that everything associated with the conduct of the class is authorized for transfer to the student's government. A separate disclosure review for the complete training set would be required, including training tools and devices, instructor guides, and reference material.

c. Transfers of CMI Under Foreign Training. Foreign training is not an appropriate mechanism for the transfer of classified technical manuals to a foreign country. Approval of course attendance is not normally to be used as a method for permanently transferring hard copy versions of CMI to foreign governments via their students. Foreign students are not normally eligible for enrollment in classified DON online courses, correspondence courses, or extension courses.

d. Use of Invitational Travel Orders. Foreign students scheduled to receive security cooperation training within the DON must have an Invitational Travel Order (ITO), form DD2285, issued by the U.S. Security Cooperation Office (SCO) in their country. The Foreign Visit System (FVS) shall not be used as a vehicle for scheduling foreign student training or providing disclosure authorizations for foreign training. The Naval Education and Training Security Assistance Field Activity (NETSAFA) and the Marine Corps Training and Education Command (TECOM) shall not confirm a quota for the issuance of ITOs for classified curriculums that have not been reviewed and received a formal disclosure authorization.

2. False Impressions. Some DON courses contain course-critical information or use of DON-only systems or technologies that may not be disclosed and may precludes foreign attendance, and other courses may require modification and/or sanitizing prior to foreign student presentation. DON personnel should not create a false impression regarding foreign student attendance by offering or implying student quotas to courses that have not

been reviewed for foreign disclosure by a disclosure official per this chapter.

3. Foreign Student Operations and Maintenance Training

a. FMS Operations and Maintenance (O&M) Training Limitations. Training disclosures related to a signed FMS case must adhere to the FMS case scope, configuration, and technical limits, and will normally be limited to basic operation and the defined maintenance level of the procured items. Foreign training on higher-level maintenance, tactics, intelligence information, access to DON resources or databases, or other unique requirements shall only be included in the foreign curriculum when authorized in the FMS case, and in accordance with the FMS case disclosure authorization (see chapter 8, paragraphs 5 and 6 of this manual). Where possible, O&M training shall use foreign-sanitized O&M documentation, especially for courses that only contain foreign students.

b. Training About U.S. Equipment, Weapons, or Systems. Per reference (b), foreign students may receive training on U.S. equipment, weapons, or systems (herein referred to as "equipment") that involves the disclosure of CMI or CUI if the equipment is already in the inventory of the foreign government, or if there is an expectation that the equipment will be acquired. The DON accepts the "expectation" provision as met when the foreign government has concluded an international agreement or signed a letter of offer and acceptance (LOA) with the U.S. to acquire the equipment or training. The Navy International Programs Office, Technology Security and Cooperative Programs Directorate (Navy IPO-01), may authorize, on a case-by-case and country-by-country basis, training on equipment not in the receiving country's inventory or where there is no expectation for acquisition if such training is accompanied by substantial justification from the proponent and complies with the disclosure requirements in chapter 3 of this manual.

c. Foreign Training Using U.S. Equipment. Any sensitive, unique, or U.S.-only features of weapons, systems, or equipment used or referenced in the training of U.S. personnel, but not approved for disclosure to the foreign student's government, must be protected from inadvertent disclosure during foreign training. This includes U.S. training devices, simulators, and

operational platforms. Particular attention must be paid to intelligence mission data, threat libraries, electronic warfare databases, command and control networks, and information on U.S. platform capabilities utilized in training scenarios. Use of releasable (REL) data or notional threats and databases, and setup and monitoring by U.S. personnel, will normally be required.

(1) Per chapter 12 of this manual, exchange personnel may be authorized to instruct U.S. and foreign students in accordance with the command's DDL for the PEP. See paragraph 9d in this chapter for additional information.

(2) Disclosure approval does not imply equipment or training facility availability; these are not FDO functions.

4. Special Disclosure Approvals Necessary Before Foreign Training

a. Communications Security Training. Foreign students will not be authorized to receive Communications Security (COMSEC) information or cryptographic equipment maintenance training unless permitted under the provisions of the cryptographic equipment's disclosure authorization to the student's government.

b. Atomic Information and Nuclear Propulsion Training. Foreign students shall not be permitted to enroll in courses involving Atomic Information (Restricted Data/ Formerly Restricted Data (RD/FRD)) or Naval Nuclear Propulsion Information (NNPI), classified or unclassified, unless Navy IPO-01 specifically authorizes their access to such information.

5. Disclosure Procedures for Classified Training Courses. The procedures outlined in this paragraph apply to formal schoolhouse training courses requested by foreign students. NETSAFA or TECOM will not confirm foreign student training quotas for DON classified courses until each course has undergone a disclosure review and a Delegation of Disclosure Authorization Letter (DDL) has been issued to the school for the curriculum being sought and the country desiring to attend.

a. Review of Course Content. Once it is proposed that a foreign student attend a classified DON training course, NETSAFA

shall notify Navy IPO-01D of the foreign training request and provide course instructor or curriculum development Point of Contact (POC) information (as designated by the cognizant training activity) to Navy IPO. TECOM will make direct contact with the school-designated POC to begin the disclosure process. The Navy IPO/TECOM classified training FDO shall communicate with the POC to seek an understanding of the curriculum, training objectives, and to request course-related materials that will be required to perform their foreign disclosure staffing review per chapters 3 and 4 of this manual (see Appendix X). Reviewer responses may range from recommending the course be taught "as is," to sanitizing specific content, or recommend the complete removal of certain material. Navy IPO or TECOM shall consolidate the responses and provide the school a DDL for the course, specific to the country(ies) proposed for attendance. Navy IPO shall provide a copy of their training DDLs to NETSAFA. TECOM shall provide a copy of their training DDLs to Marine Corps Security Cooperation Group (MCSCG).

b. Classified Course Changes. When changes are made to the course content of a course previously attended by a foreign student, only the changed items require a disclosure review and the previously issued DDL will be amended if necessary.

c. Adding Countries to Prior Disclosure Authorizations. When an additional country proposes to attend a course that has previously been authorized for other countries, the course curriculum must be reviewed by the Navy IPO or TECOM classified training FDO. The FDO will review the current curriculum and DDL to determine if a complete re-staffing of the course is required to include the additional country. If approved, the DDL for the course shall be updated to include the additional country and any new course limitations stipulated in the DDL, if necessary.

d. References to Non-Disclosable Documents and Material. DON schools are to avoid the proliferation of bibliographies, document references, or materials pertaining to classified information that is not releasable to the parent governments of the foreign students. The disclosure of bibliographies and lists of classified documents is discouraged unless each classified document listed is determined to be disclosable to the foreign student's country.

e. Tactics and Other Unique Disclosures

(1) Tactics training disclosures made during DON foreign training shall be limited to the content and scope of tactical publications approved for disclosure to the receiving country, or as authorized by the Navy or Marine Corps Component Commander with cognizance over the receiving country's normal areas of operation. For the purposes of the FDM, tactics means the disclosure of weapon, system, or equipment employment information against known targets, threats, or pre-defined environments or scenarios, and that are normally published in tactics publications.

(2) Some DON training courses require reference to or direct use of classified DON Tactics, Techniques, or Procedures (TTP), or other information beyond that required for the basic operation of the foreign-acquired DON equipment. Tactical weapon, system, or equipment employment information against known targets, threats, or a pre-defined environment or scenario ("tactics"), may only be authorized for disclosure by FDOs at appropriate operational activities (e.g., the Navy or Marine Corps Component Commander, Warfare Centers, and Combat Development Commands). Tactics information proposed for disclosure shall be reviewed through the normal disclosure review process, including the originator and stakeholders. Background or intelligence data used to develop tactics are generally not releasable and may require sanitizing; most tactics are based on intelligence information that may not be disclosable. Sanitizing and/or deleting certain items from the foreign curriculum may be required.

f. Standard Classified Training DDL Language. DDLs for classified training courses will contain certain standard language:

(1) "Disclosure will be on an oral and visual basis only. Oral and visual disclosure is defined as to brief orally, expose to view, or permit use under U.S. supervision in order to permit the transfer of knowledge or information. Oral and visual disclosure does not allow the physical transfer of

documents, material, or equipment to a foreign government or its representatives."

(2) "Classified manuals and reading material provided to international students must remain under U.S. control at all times. Unmonitored access by students is strictly prohibited. In order to comply with these restrictions, a monitor must be physically present in the classroom or lab when international students use or have access to classified manuals or reading material."

(3) "International students must be briefed that all controlled unclassified manuals or reading material provided to them must remain under their control at all times; that it may not be copied, reproduced, or distributed to anyone else, and that all controlled unclassified material must be returned to the school at the conclusion of the training course."

(4) "Disclosure is limited to the information, publications, training aids, equipment, and other materials provided by [the course POC] for this course with the following restrictions: [as appropriate]."

6. Disclosure Procedures for CUI Training Courses. The majority of procedures outlined in paragraph 5 above also apply to disclosure reviews of formal CUI schoolhouse training courses requested by foreign governments. Specific differences with the content of paragraph 5 are outlined below. NETSAFA or TECOM will not confirm foreign student training quotas for DON CUI courses until each course has undergone a disclosure review and a disclosure authorization has been issued to the cognizant activity for the curriculum being sought for the country / countries desiring to attend.

a. Review of Course Content. The review of course materials shall follow the procedures outlined in paragraph 5a above, but the coordination shall be between the course instructor or curriculum development point of contact (POC) information (as designated by the cognizant training activity) and the SYSCOM Program Office FMS Case Manager or other DON training sponsor for non-FMS courses.

b. For courses requested through NETSAFA or TECOM, NETSAFA or TECOM will serve as the disclosure coordinator and use their knowledge of the foreign government's training requirements and combatant commander's country-specific engagement goals to work

with CUI information originators and/or subject matter experts to evaluate the disclosability of the course information.

(1) If the disclosure coordinator has identified CUI disclosure coverage such as an FMS case or holds their own authority via a DDL, he or she may provide the school with a disclosure authorization.

(2) If CUI disclosure coverage has not been identified or held via a DDL, the disclosure coordinator shall forward the case to the cognizant FDO for a disclosure determination. The disclosure coordinator shall notify the training activity upon resolution of the disclosure review.

(3) Other DON training sponsors shall forward the fully staffed training disclosure case to the first FDO in their chain of command for a disclosure determination. If approved, the training sponsor shall provide a copy of the FDO's disclosure authorization to the school and with a copy to NETSAFA or TECOM.

c. Standard CUI Training Disclosure Authorization Language. The standard language in paragraphs 5f.(1), (2), and (4) above also apply to CUI training disclosure authorizations.

7. Contractor-Provided Training on Behalf of the DON. Training provided by DON contractors on behalf of the DON shall follow the export license procedures established in references (am) or (as). Certain license exemptions may apply.

8. Disclosure Procedures for Operational DON Training. Not all foreign student training is provided in the formal schoolhouse environment. Other foreign training may be provided by On-The-Job Training (OJT) courses at Navy or Marine Corps commands or activities or delivered by Mobile Training Teams (MTTs). If these courses entail access to CMI or CUI, they will require a disclosure authorization by a cognizant FDO.

a. MTT Training. Training conducted by MTTs shall follow the review procedures established in paragraphs 5 and 6 of this chapter.

b. On-the-Job Training (OJT). OJT courses should only be approved in conjunction with other structured training or approved as part of a broader training curricula. OJT should

observe the disclosure guidance for the associated classroom instruction, FMS case, or cooperative program. If additional guidance is required, OJT trainers should seek it from the cognizant FDO.

9. Foreign Liaison and Exchange Program Personnel Training. chapter 12 of this manual details the differences between foreign liaison, exchange program, and cooperative program personnel (that may be either officer or enlisted) assigned to billets at DON commands and activities. There are differences between these personnel categories with regard to their attendance, and in some cases instructing, DON training courses. Each foreign billet's DDL should be used as a starting point for determining information disclosure limits.

a. Foreign Liaison Officer (FLO). FLOs are assigned to DON commands or activities as representatives of their government and military service. They may attend a DON training course in the same manner as any other foreign student, and are subject to the same disclosure limitations as described in this chapter. DON units may not request training quota for FLOs.

b. Cooperative Program Personnel (CPP). CPPs are normally assigned to DON-led cooperative program offices that lead weapon, system, or equipment development programs funded and owned by the group of participating governments. Their DON-led cooperative program office may request training quotas, but their disclosure review will be based on both information that is cooperatively disclosable as well as standard DON disclosure limitations to each CPP's parent government for DON-owned information. CPPs typically fall within a DON-led cooperative program office chain of command, but in a hybrid fashion as they still mostly represent their parent country's interests.

c. Personnel Exchange Program (PEP) Students. PEPs are foreign personnel assigned directly to a DON command or activity who work for the DON (and not their parent government) for the duration of their tour of duty. Their command may request training quota for PEPs that are required in the performance of their assigned functions. However, because they are foreign personnel, PEP attendance at DON training courses is still subject to a disclosure review for each course they attend to ascertain that the course information is disclosable to their parent government.

d. Personnel Exchange Program (PEP) Instructors. PEPs may be assigned to DON commands or activities that teach official DON training courses. These personnel replace a DON instructor who typically is assigned to the PEP's own position in their parent country. PEP instructors, however, are not DON personnel and their DDL specifies the levels and types of information that may be disclosed to them. Their instructor duties should be designed accordingly.

10. Other Training-Related Disclosures

a. Unique Curriculum Development. DON activities participating in discussions and proposals for foreign training should concentrate their discussions on the foreign government's training objectives vice attendance at specific DON courses. If an initial review of the training objectives determines that a substantial amount of the course content would require removal for a particular country, or if a computer-based curriculum cannot be sanitized, then a unique course for that country may be required.

(1) Creation of a new or unique course would be at the receiving country's expense.

(2) Disclosure issues related to the sale of course curricula are normally separate from reviews for foreign course attendance. Instructor guides, background information, training aids, data input sources, and other material may require sanitizing or changes at the receiving country's expense.

b. Field Trips During Training. Short excursions by international military students to DoD facilities that are directly related to the approved curriculum may not require a FVS visit request. The DON instructor shall coordinate directly with the facility to be visited. DON activities are encouraged to accommodate visits to their facilities in a similar fashion.

c. Student Notes and Retainable Instructional Materials. Student notes (which may be written in any language) and other training material (unclassified or classified that falls within the disclosure authorization) may be returned to the student at the conclusion of the training course as described below.

(1) At the discretion of the commanding officer of the training activity, student notes and retainable instructional material (e.g., workbooks, student guides) derived from unclassified courses will either be given to the student or be forwarded directly to an address designated by the student. Postage is the responsibility of the student or his or her government if mailing is requested.

(2) Student notes derived from classified courses will be reviewed and marked by the DON training provider with the appropriate U.S. security classification markings. Student notes that cannot be reviewed because they are written in a foreign language should be marked with the highest classification of information disclosed during the course. All classified materials will be conspicuously marked by stamp, or other means, to indicate the (1) highest classification of included material, (2) date review completed, (3) name and rank of reviewing official, (4) name of cognizant activity, (5) training course involved, and (6) student's name and service. After being marked appropriately, the classified material will be forwarded directly to the SCO in the student's parent country for further transmittal to the foreign government. In the case of ship's crew training, classified student notes may alternatively be delivered directly to the ship. All students will be cautioned that classified notes must be safeguarded in a manner appropriate to the classification. Classified material which contains COMSEC information must be forwarded via Commander, Naval Security Group (COMNAVSECGRU), who will forward the material to the appropriate in-country authority.

d. Development of Computer-Based Trainers (CBTs) or Training Tools/Simulators. DON activities responsible for the development and/or operation of computer-based training devices, simulators, or other training tools that are potentially applicable to a Foreign Military Sales (FMS) program or to foreign training in general, should, to the greatest extent possible, be designed or developed in a modular fashion or in a fashion that may be easily tailored or sanitized. Training courses whose curriculums are upgraded from hard copy to computer-based systems, and that have a history of curriculum presentation to foreign students, must have computer-based training devices designed and developed in a manner capable of tailoring or sanitizing course content for foreign students.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 11
ONE-TIME AND RECURRING OFFICIAL FOREIGN VISITS

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for making disclosure decisions regarding one-time and recurring official visits to DON facilities by foreign nationals that supplements the process outlined in chapter 3 of this manual. Reference (f) establishes the International Visits Program (IVP) and provides policy guidance for the control over visits of foreign nationals and foreign representatives of international organizations to Department of the Navy (DON) activities and cleared contractor facilities. The disclosure processes implemented by reference (i) and this chapter are in accordance with references (a) and (b).

a. Requisite for Hosting Foreign Visitors. Per reference (i), hosting official foreign national visits is necessary to establish or support bilateral or multinational agreements and programs. Official foreign visitor access must be controlled properly to avoid inadvertent or unauthorized disclosure.

b. Official Foreign Visit. Per reference (i), an official foreign visit is an occasion when a foreign national is sponsored by his or her government or by an international organization visits to perform official business approved by the government or the organization. These visits often involve the disclosure of Classified Military Information (CMI) or Controlled Unclassified Information (CUI). The decision to grant access to CMI or CUI during official visits shall be consistent with the security and foreign policy interests of the United States.

c. Unofficial Foreign Visit. Per reference (i), an unofficial foreign visit is an occasion when a foreign national is not sponsored by his or her government or an international organization visits.

(1) Examples of unofficial visits include foreign nationals representing private business interests, foreign nationals employed by DoD contractors, and foreign nationals participating in events open to the general public.

(2) Courtesy calls are also considered unofficial visits even if the visitor is an official representative of a foreign government. Courtesy calls shall be limited to general protocol interactions but shall not involve the disclosure of CMI or CUI. If the courtesy visit has the potential to involve CMI or CUI, then the visit is no longer a courtesy call and shall be treated as an official visit.

d. Foreign Visit Request (FVR). A foreign visit request is required for all official visits to DON activities and cleared contractor facilities except as provided for in paragraph 3 below. Each FVR must be site-specific and purpose-specific. Incomplete or poorly purposed FVRs should not be processed by DON activities. The function of the FVR process is to provide the requesting foreign government's purpose for the visit, their security assurance for the list of visitors (for classified visits), and each visitor's security clearance level; to provide DoD and DoD contractor personnel disclosure guidance; and to create a permanent record for the disclosure of CMI and CUI to foreign visitors.

2. False Impressions. No foreign national shall be invited by a DON representative to any one-time or recurring visit, meeting, symposia, seminar, or conference, whether in the U.S. or abroad, with the potential for disclosing U.S. CMI or CUI until an appropriate FDO has completed a review of the information to be discussed or presented and has issued a disclosure decision. For self-invited foreign visits, DON personnel shall avoid any commitment to host the visit and disclose CMI or CUI until an OPR has approved the visit request and provided disclosure guidance.

3. The Foreign Visit System

a. The DoD Foreign Visit System (FVS), operated and maintained by Defense Technology Security Administration (DTSA), provides staffing and database support for the processing and recording of visit requests by foreign nationals to DoD activities or authorized contractor facilities. The FVS consists of two different parts: An unclassified and a classified system. The unclassified system allows foreign embassies to submit foreign visit requests online to the appropriate military department where it is then drawn into a classified system. The classified system provides staffing

capabilities to support the decision-making process. After a disclosure decision has been reached on a specific visit request, the FVS is able to transmit a visit confirmation message to the requesting embassy via unclassified means. The FVS also generates a record of the disclosure decision.

b. The FVS recognizes the following types of official visits by foreign nationals or their representatives, under the sponsorship of their government or an international organization, to a DoD component or DoD contractor facility.

(1) One-time Visits. A single, short-term visit to a single facility for a specific purpose. A one-time visit normally will not exceed thirty days.

(2) Emergency Visits. Emergency visits are those one-time, short notice visits that are submitted by the foreign government or international organization and are identified as such. An emergency visit request will be limited to situations in which failure to conduct the visit will jeopardize an official government project, program, or contract. The request will not be accepted less than one full working day prior to the visit. Since the concurrence of the host facility is always required, obtaining their tentative approval in advance will expedite the processing of the emergency visit request. Emergency visit requests should not be submitted to circumvent routine visit procedures. If circumvention is suspected, it should be reported to Navy IPO so that appropriate action can be taken to preclude such submissions in the future.

(3) Recurring Visits. Multiple visits to a single facility on an intermittent basis in support of an on-going international agreement, contract, or program. A recurring visit will not exceed one year's duration, and acceptance by the host facility will be program-dependent or as specified by local facility regulations. Apart from emergency visits, the pertinent foreign office or visitor(s) shall give the host activity at least 72-hour notice of the actual date and time of the intended visit, following approval of the recurring FVR. All activities have the right to refuse any visit if the visitor arrives without such notice.

(4) Extended Visits. An extended visit is a long-term Foreign Visit Request (FVR) from the visitor's parent government

to a single facility submitted via the DoD Foreign Visit System (FVS) and approved by the DON Office of Primary Responsibility (OPR). Extended visits are normally submitted in support of an on-going international agreement, contract, or program when the visitor is required to be on continuous assignment with a DON activity or a DoD contractor facility. This type of FVR is used for such programs as a foreign government contract or joint program, a foreign liaison assignment, participation in an exchange program, or assignment as cooperative program personnel. (See chapter 12 in this manual.)

(5) Visit Amendments. The requesting embassy may amend official visit requests. Amendments are limited to the date(s) of the visit and/or the names of the visitors. If any other element of the visit request requires an amendment, a new visit request must be submitted. Emergency visits may not be amended.

(6) Office of Primary Responsibility (OPR). An OPR, as it relates to the foreign visit approval process, is the office with delegated disclosure authority over the technical content of the visit; that has online access to the FVS; and that makes the final decision on a foreign visit request. For approved visits, the OPR will enter any applicable disclosure restrictions and guidance into the FVS. Major DON activities may be designated as OPRs as determined by Navy IPO-01.

4. Exemptions to the FVS. The following types of visits are exempt from the FVR process. For other unique or special arrangement visits, follow the procedures in chapter 1, paragraph 8 of this manual.

a. Unofficial Visitors. Visits by foreign nationals who are not representatives of their government in an official capacity are exempt from the visit request process. These visits shall be governed by local security practices in accordance with standard physical and operational security requirements.

b. Unclassified Information at Contractor Facilities. Visits conducted at DON contractor facilities that involve access to only unclassified information. This exemption is subject to the following three limitations:

(1) In some cases, a government contract will require a contractor to administer all foreign visits to its facilities via the FVS. When a contractor has an obligation of this nature, then FVS visit requests must be submitted by the parent embassy of the proposed foreign visitor.

(2) The subject matter of the proposed visit must be unrelated to DON programs.

(3) The contractor holds a valid export license, or the information to be disclosed does not require an export license.

c. Visits by Foreign National Contractors. Reference (u) regulates visits by foreign national employees of U.S. defense contractors. Access to export-controlled technical data by foreign national employees of U.S. contractors is authorized in accordance with an export license or by another written U.S. Government authorization that the employing contractor obtains. When these employees visit another contractor facility or DON component, the employing facility should provide a copy of the export license or other written authorization to the security office or FDO of the facility to be visited.

d. Invitational Travel Orders (ITOs). Visits by foreign nationals to participate in security assistance training using ITOs provided by their in-country U.S. Security Cooperation Office are exempt from the FVS. Reference (k) prohibits the provisioning of U.S. "defense articles and services" to a foreign government without payment. Training is a "defense service." Within the DON, the Foreign Visit System (FVS) shall not be used to seek disclosure authorization for disclosing training course information to foreign governments, international organizations, or their representatives. Training-related disclosures are covered in chapter 10 of this manual.

e. Unclassified Orientation Tours. Visits by foreign nationals traveling on ITOs for Orientation Tours arranged under the Security Assistance Training Program (SATP) when CMI will not be disclosed are exempt from the FVS. If disclosure of CMI is required as part of the orientation tour, then an FVS request must be submitted by the foreign visitor's embassy in Washington, D.C. to certify the visitor's security clearance.

f. U.S./Canada Joint Certification Program (JCP). Unclassified visits by Canadian government officials and certified Canadian contractors through the U.S./Canada JCP are exempt per reference (x).

g. Joint Contact Team Program. Visits sponsored and administered by the U.S. European Command under its Joint Contact Team Program are exempt, if the visitors are traveling on ITOs and that no CMI will be disclosed.

h. Professional Development Orientation and Familiarization Tour Programs. Unclassified visits that fall under the auspices of Professional Development Orientation and Familiarization Tour Programs, conducted by Unified Commands or fleet commanders and funded using Traditional Combatant Commander (COCOM) Activities resources, are exempt. If disclosure of CMI or CUI is anticipated, then a visit authorization is required.

i. Unclassified DON Employment of Foreign Nationals. The long-term unclassified employment of foreign nationals is exempt. (See chapter 3, paragraph 8 in this manual.)

j. Chief of Naval Operations (CNO) Counterpart Visits. CNO Counterpart Visits are exempt from embassy submission of foreign visit requests. Arrangements for visits by the heads of foreign navies conducted through this program are the overall responsibility of CNO (Director of Naval Intelligence, Assistant for Foreign Liaison). Upon notification by the Assistant for Foreign Liaison, Navy IPO will input a foreign visit request into the FVS and provide disclosure guidance for the counterpart visit. The Assistant for Foreign Liaison will then disseminate the disclosure guidance, as required, to those activities hosting the CNO counterparts and entourage.

k. DON Overseas Locations. Visits to U.S. Navy and USMC facilities at overseas locations are exempt. Control of these visits will be in accordance with the guidance established by their chain-of-command (e.g., guidance as directed by Navy or Marine Corps Theater Commanders, or other authority).

l. Public Areas or Locations. Visits to areas or locations accessible to the public are exempt when they only involve information officially approved for public release. Official meetings in commercial facilities (e.g., hotel conference

facilities) that entail the disclosure of CMI or CUI requires the submission of a FVR and the same level of disclosure review as meetings held at DON or cleared contractor facilities. Meeting hosts should coordinate with information and physical security professionals when planning the meeting. FVRs shall not be staffed to the commercial location as part of the staffing process.

m. Virtual Visits. Telephone, Video TeleConferencing (VTC), secure VTC, Tandberg, and other virtual communication or meetings are exempt. Any CMI or CUI to be disclosed requires the same level of disclosure review as meetings held at DON or cleared contractor facilities.

5. FVS Disclosure Review Process. Official foreign visitors may be permitted access to CMI or CUI that is authorized for disclosure to their government and necessary to the stated purpose of their visit. Only Navy IPO, or a Foreign Disclosure Officer (FDO), or other official delegated authority by a Delegation of Disclosure Authority Letter (DDL) may approve access to CMI and CUI by visiting foreign nationals.

a. Process Initiation. The FVS process begins when a foreign embassy located in Washington, D.C., or the designated office of an international organization, submits a FVR to visit a DON component. FVRs are required to be submitted no less than 21 working days prior to the first day of the proposed visit.

(1) Embassies with terminals connected to DoD's Security Policy Automation Network (SPAN) FVS must submit their visit requests electronically. The FVS automatically forwards to Navy IPO visit requests to DON commands, activities, and contractor facilities under contract to the DON.

(2) Embassies or international organizations without FVS connectivity shall submit visit requests via facsimile to Navy IPO in accordance with the procedures set forth in reference (m). Navy IPO will then enter the requests into the FVS.

b. Staffing and Review. The Office of Primary Responsibility (OPR) shall staff the FVR using the disclosure procedures outlined in chapter 3 of this manual. The primary reviewer in the case of one time and recurring visits is the knowledgeable U.S. person designated in the FVR, whom shall also

serve as the point-of-contact for the requesting embassy. The knowledgeable U.S. person may or may not be the technical subject matter expert or even be at the facility to be visited, but this person must be able to evaluate the subject / justification in the FVR and assist the OPR in developing disclosure guidance. In those cases, where the knowledgeable U.S. person is not the appropriate reviewing point of contact for the subject matter designated in the FVR, the OPR shall either attempt to locate the appropriate knowledgeable U.S. person or they may return the visit to the embassy. Foreign visit requests that require a level of disclosure that exceeds the OPR's authority will be transferred online to their next senior OPR in their chain of command or Navy IPO for action. When a transfer is necessary, the original OPR will include their disclosure recommendation and justification to preclude re-staffing. FVRs that have been incorrectly assigned and fall under the cognizance of another OPR shall be transferred online directly to the proper OPR.

c. OPR Decision. The OPR will decide each FVR based upon the review of applicable policies and the recommendations received from staffing. Although the final decision for hosting an official visit during the requested timeframe is at the discretion of the host command or facility, their decision does not provide authority for them to actually host or deny the visit or to disclose information without the final visit adjudication in the FVS. Only an OPR may adjudicate visit requests using one of the following decision inputs for each FVR.

(1) Approval. The OPR may approve the request. The OPR shall enter the appropriate section of the request: The approval decision, the approved level of classified disclosure, and specific disclosure guidance that the host(s) of the visit intends to use. Once the OPR closes the request in the FVS, the system automatically notifies the embassy or international organization of the approval if the recipient has an online FVS capability. If the embassy or international organization is not online, the system generates a letter that can either be mailed or facsimiled to the requesting embassy or international organization. It is strongly recommended that a facsimile copy be sent to preclude notification delays. Simultaneously, the facility hosting the visit shall be notified by either email, facsimile, letter, Defense Message System (DMS) message, or the

FVS, of the approved disclosure level for the visit as well as any specific disclosure guidance. It should be noted that the requesting foreign embassy only receives a simple approval notice and the contact information for the U.S. Point of Contact (POC) for the visit. The foreign embassy does not, however, receive any notice of the approval disclosure/classification level for the visit or any of the disclosure limits stipulated by the OPR.

(2) Denial. The OPR must judiciously apply this option because a denial may result in political, cultural, or military repercussions. An OPR may only deny a visit request when all the information relating to the visit exceeds the disclosure classification level authorized for the visitor's government and that other alternatives for meeting the visit's purpose are not available. All denials will be coordinated with Navy IPO (IPO-01D FVS OPR) prior to transmission via the FVS.

(3) Returned Without Action (RWA). If a visit request is incomplete or the visit cannot be approved for any reason besides that which is disclosure policy related, the OPR shall return the request to the embassy with an accompanying explanation. By returning the request with comments, the visit can be edited and resubmitted by the sending embassy or organization without having to initiate an entirely new request. For example, if the return without action is due to a scheduling conflict, the OPR might wish to recommend alternative dates for the visit.

(4) Returned without Sponsorship ("non-sponsored"). If the visit request is for a visit to a contractor facility and the OPR cannot identify any specific DON program or contract that supports the visit, the OPR may return the request without sponsorship. The lack of sponsorship does not prevent the visit, but merely denotes that the visit is not related to a DON program or contract. Most non-sponsored visits simply provide an official foreign government certification of a visitor's security clearance level.

(a) Participation by DON personnel in non-sponsored visits is not authorized.

(b) Non-sponsored visits may take place if the information to be disclosed is information officially approved

for public release only, or if the contractor has a valid export license to disclose the information.

(5) Cancellation. Either the OPR or the requesting embassy may cancel a request. This is an administrative action that removes requests because of a change in schedule or other circumstances. It also allows either party to remove duplicate requests.

(6) Highest Level of Classified Information. The OPR will specify the highest classification level of U.S. information to be disclosed during the visit based on the staffing and review results, the limits of applicable U.S. disclosure policies, and the lowest classification level of the visitors listed in the FVR.

(7) Disclosure Guidance. Per reference (i), an approved properly documented FVS authorization constitutes an authorization to disclose the information specified and may constitute an exemption to the licensing requirements of references (am) or (as) for government programs. The FVS shall not be used to circumvent export licensing requirements that are imposed on defense contractors by references (am) or (as) for commercial programs.

(a) The OPR's disclosure guidance must be specific to the location and purpose specified in the FVR. In the absence of specific disclosure guidance (e.g., visit approved, but no disclosure guidance provided), visit hosts must obtain separate disclosure authorization from an FDO for any information to be disclosed during the visit.

(b) OPRs should include certain standard language to the maximum extent possible in the disclosure guidance section of their visit approvals. These statements may be found at Appendix Y.

6. Post-Adjudication FVS Process

a. Visit Authorization. The visit disclosure authorization (i.e., the FVS visit approval) will be transmitted to the security office of the activity or contractor facility to be visited by letter, fax, email, or DMS message. The authorization will either approve the disclosure of CMI or CUI,

or limit the disclosure to information officially approved for public release. The authorization must be disseminated to the U.S. government or contractor personnel who will host the visitor(s) at the facility.

(1) The specific restrictions contained in an approved visit should never be disclosed to the visitor(s). The visitor(s) may be advised, however, of the highest overall level of classified information that will not be exceeded during the visit. Also, the visitor(s) must be advised of the classification level of any information actually disclosed so that the visitor(s) can properly protect it. Any unusually persistent effort by the visitor to obtain information that is not authorized for disclosure should be reported to the disclosure-approving authority and the command's security manager.

(2) Hosting commands should also note that nothing in this Manual should be construed as granting authority to override any applicable security or other requirement issued to protect personnel, information, and property at the facility to be visited.

b. Disclosure Restrictions or Limitations. The disclosure authorization will set a classification level that cannot be exceeded during a visit. If the objectives of the visit can be accomplished by the disclosure of information at a lower classification level than that authorized in the visit approval notification, it is the responsibility of the host(s) to limit the disclosure accordingly. If the host(s) determines that the purposes of the visit cannot be accomplished within the limits of the disclosure authorization, then the host(s) must communicate this directly to the authority that approved the visit, to seek resolution prior to the start of the visit.

c. Disclosure Mode. A visit authorization does not include authority to physically or electronically provide documents to a visitor, unless that authority has been explicitly granted within the disclosure authorization. When disclosure guidance is not clearly stated in an approved visit, then consult the OPR or FDO. If a new request for documents occurs during the visit, it should be processed in accordance with the procedures for the disclosure of documents in chapters 3 and 4 of this manual.

d. Visit Amendments. The OPR should review the FVS "Amendment" folder daily to see if any cases have been amended. When a visit is amended, the FVS is updated to reflect the amendment, but the FVS does not automatically notify the OPR that an amendment has been made to a visit. The requesting embassy may amend the visit request with respect to the date(s) of the visit and/or the names of the visitors only. If any other element of the visit request requires an amendment, a new visit request must be submitted.

7. Foreign Visitor Pre-Arrival Notice. With the exception of emergency visits, the pertinent foreign office or visitor(s) shall give the host activity at least 72-hours' notice of the actual date and time the visit is intended, following approval of a visit. Activities have the right to refuse any visit if the visitor arrives without such notice.

8. Host Command Responsibilities. The host command or facility shall appoint a Foreign Visit Host/Coordinator (and escorts if required by local command regulations) for each foreign visit, and designate representatives from applicable physical and information security offices to work with the Foreign Visit Host/Coordinator to prepare for the visit. Best practice recommendations for the hosting command may be found at Appendix Z. Local commands may adopt these recommendations, or they may develop their own foreign visit regulations to better accommodate their own unique set of circumstances and security needs.

a. Physical Security and Facility Access. The list of visitors provided by the FVS may assist with facility access and/or base security procedures, but the FVS is primarily a foreign disclosure system. Local base or facility badging regulations shall apply to all one-time and recurring official foreign visitors.

b. FVS-Confirmation Module (CM). DoD sponsored visits by foreign nationals to the DON, except visits at activities or events that are open to the general public, shall be documented using the Foreign Visits System Confirmation Module (FVS-CM) where practicable. Contractors shall maintain records of foreign visitors as required by reference (u).

c. Terrorist and Criminal Screening. To ensure compliance with reference (at), all DON Components are responsible for ensuring that all foreign personnel under their cognizance are screened for terrorist and criminal associations prior to arrival, and that their arrival and departure dates are documented in an automated system that feeds specific foreign visitor data into the DoD Cornerstone system. This requirement is met when a foreign visit request (FVR) is submitted into OSD's Foreign Visit System (FVS) and subsequently approved. It should be further noted that reference (at) also requires that all DoD Components shall cooperate with DoD intelligence, counterintelligence, law enforcement, and security elements to ensure the stay of DoD-hosted foreign personnel is as secure and safe as possible for all parties.

9. Visits to DON Commands and Facilities Outside of the United States. Control of visits to DON commands and facilities outside the United States will be in accordance with the guidance established by their chain-of-command (e.g., guidance as directed by Navy or Marine Corps Theater Commanders, or other authority). Disclosure approval remains a requirement for all foreign visits, regardless of location, that is specific to the visit location and the purpose of the visit.

10. Foreign Visits Requiring Special Arrangements. The following visits necessitate additional considerations and/or special processing.

a. Visits to Shipbuilding Facilities Engaged in the Repair, Conversion, Overhaul or Construction of Naval Vessels. The Commander, Naval Sea Systems Command (COMNAVSEASYS COM) has been delegated exclusive authority for approval and denial of all visits regarding shipbuilding facilities engaged in repair, conversion, overhaul, or construction. These visits present unique security problems. The overall scope, complexity and sheer size of shipbuilding, repair, overhaul, and construction projects are not always compatible with normal security control measures. See chapter 6 of this manual for specific procedures.

b. Intelligence-Related Visits. Requests for visits to the Office of Naval Intelligence (ONI) will be transferred to ONI for action. USMC visit requests to the Headquarters, Marine Corps (HQMC) Director of Intelligence (DIRINT), will be transferred to the HQMC OPR for action. Any visit requests

outside of ONI or DIRINT that involve the potential disclosure of intelligence information that would exceed the authority of the cognizant OPR will be transferred to ONI or HQMC for final action.

c. Embarkation of Foreign Personnel on USN/USMC Aircraft. See chapter 6 of this manual for specific procedures.

d. Embarkation of Foreign Personnel on U.S. Ships and Submarines. See chapter 6 of this manual for specific procedures.

e. Visits Involving Atomic Information, Naval Nuclear Propulsion Information, and Access to Nuclear Propulsion Spaces. See chapters 6 and 18 of this manual for specific disclosure procedures.

f. Visits to Contractor Facilities. The disclosure of classified information or certain controlled technical data to foreign nationals qualifies as an export under U.S. law and regulations (references (am) and (as)). A State or Commerce Department export license is required of all U.S. contractors for the export of classified and export-controlled unclassified information disclosed during foreign visits, unless a DoD component sponsors the visit or an export license exemption applies.

(1) DoD-sponsored foreign visits to U.S. contractors constitute an exemption from the export-license requirement under Sections 125.4 and 125.5 of reference (am). OPRs shall only approve foreign visit requests to U.S. contractor facilities when the proposed visit is directly connected to a specific current or proposed DON program. Requests for visits that are not related to a specific DON program with the foreign government or entity must be returned to the requestor without sponsorship.

(2) DON components will not sponsor foreign visits merely to enable contractors to avoid the licensing requirements of references (am) and (as).

CHAPTER 12
EXTENDED VISITS

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for making disclosure decisions regarding extended visits to DON facilities by foreign nationals that supplements the process outlined in chapter 3 of this manual. This chapter implements reference (i) and governs extended visits of foreign nationals and representatives of foreign governments and international organizations to Department of the Navy (DON) commands and activities.

a. Definition. An extended visit is established through a long-term Foreign Visit Request (FVR) from the visitor's parent government to a single facility submitted via the DoD Foreign Visit System (FVS) and approved by the DON Office of Primary Responsibility (OPR). Extended visits are normally submitted in support of an on-going international agreement, contract, or program when the visitor is required to be on continuous assignment with a DON activity or a DoD contractor facility. This type of FVR is used for such programs as a foreign government contract or joint program, a foreign liaison assignment, participation in an exchange program, or assignment to a cooperative program.

b. FVR Submission and Processing Requirement. The visit request submission and processing requirements for extended visits are the same as those established for one-time and recurring visits (per chapter 11 of this manual), with the main difference being that extended visits should be submitted a minimum of 45-days in advance of the commencement date of the assignment. An FVR is required for all extended visitors regardless of location (e.g., overseas facilities or shipboard assignments). Host activities will normally not refuse extended visitors since their assignment is normally linked to a joint or cooperative program previously agreed to by a representative of the United States.

c. Delegation of Disclosure Authorization Letters (DDLs) for Extended Visits. Foreign Disclosure Officer (FDOs) with cognizance over an activity with an extended visitor shall create a DDL for each extended visitor's billet (not an individual) based on the job description, the level and type of information required for their duties, and the information's

ability to be disclosed to the visitor's parent government. There may be instances when the duties of an extended visitor are limited, particularly in the case of exchange visitors, to less than the duties of that billet when filled by a DON representative.

(1) Activities will ensure compliance with the contents of the DDL applicable to an extended visitor assigned to their activity.

(2) The contents of the disclosure authorization shall not be disclosed to the foreign visitor, except for any certification form requiring the visitor's signature. This prohibition does not preclude the host from informing the visitor of the upper limit of the access being authorized during the assignment, in general terms. However, under no circumstances will specific disclosure limitations be revealed to the extended visitor.

(3) Navy IPO shall assume DDL cognizance for extended visitors associated with cooperative programs and for operational personnel. For Cooperative Program Personnel (CPP), their disclosure guidance will be contained in the overall international agreement DDL issued by Navy IPO for the program or project.

d. Host Command U.S. Contact Officer. A Contact Officer must be appointed in writing by the extended visitor's host command for all extended visitors to govern compliance with each billet's DDL. Contact Officers must be equal or higher in rank than the foreign visitor to which they are assigned, and commands may assign multiple extended visitors to a single Contact Officer depending upon personnel availability. See paragraph 8 below for specific Contact Officer responsibilities.

2. Types of Extended Visitors

a. Foreign Liaison Officer (FLO). A FLO is an officer or enlisted representative of a foreign military organization assigned by his or her government to a USN/USMC activity with DON approval. A FLO works only for his or her parent foreign government and represents its interests to the DON and may never perform U.S. Government duties or responsibilities. FLOs may be categorized into three types:

(1) Security Assistance FLOs may be assigned to DON activities to oversee Foreign Military Sales (FMS) implementation. These assignments must be covered through either an FMS Letter of Offer and Acceptance (LOA) that establishes a FLO requirement or an international Memorandum of Understanding (MOU).

(2) Operational FLOs may be assigned as an interface between their command elements and a U.S. command in support of operational matters such as combined operations and planning. These assignments must be implemented via an MOU that establishes the FLO requirement. The Chief of Naval Operations (CNO) and the Commandant of the Marine Corps (CMC) shall be responsible for the establishment of Operational FLO MOUs for their respective Services and may be further delegate this function as they deem appropriate.

(3) National Representative FLOs may be assigned to their national embassy or diplomatic mission as military attachés to conduct liaison activities with the DON. These FLOs do not require extended visit authorizations, nor DDLs. They do, however, require an approved visit authorization per chapter 11 of this manual when making one-time or recurring visits to DON facilities and discussing substantive or technical matters, or classified or controlled unclassified information. An attaché accredited to the DON does not require a visit request via the Foreign Visit System (FVS) when the purpose of their visit is only a courtesy call (see chapter 11, paragraph 1c(2) in this manual).

b. Personnel Exchange Program (PEP). The PEP encompasses all exchange programs that include the assignment of officer, enlisted, or civilian foreign nationals to positions within DoD components under an approved billet or position description, and the terms of a bilateral or non-reciprocal personnel exchange agreement. PEPs may be categorized into four types:

(1) Military PEP. This program includes all assignments of foreign military personnel to authorized USN/USMC billets, normally on a reciprocal basis.

(2) Engineer and Scientist Exchange Program (ESEP). This program includes all assignments of civilian and military

engineers and scientists to DON Research, Development, Test, and Evaluation (RDT&E) facilities.

(3) Administrative PEP. This program includes all assignments of civilian and military specialist personnel to administrative, logistics, finance, health, legal, and planning billets within DON.

(4) Defense Intelligence PEP. This program includes all assignments of military intelligence analysts within DON intelligence communities. The Director, Defense Intelligence Agency (DIA) has been designated as the Executive Agent for this program. All assignments under this program to DON activities are coordinated through Navy and Marine Corps intelligence organizations as appropriate. DDLs will be issued in accordance with DIA-provided direction and procedures.

c. Cooperative Program Personnel (CPP). CPPs are foreign nationals (military or civilian employees of the counterpart foreign government defense establishment(s)) assigned to bilateral or multilateral program or project offices that are hosted by a DON activity. They may be assigned as a part of international project management staff or as a national representative per the terms of the international agreement. To qualify as a CPP, foreign government representatives: (1) Must be assigned to an international program or project office hosted by a DON component per the terms of an international agreement; (2) must report to and take direction from a DoD-appointed U.S. Program or Project Manager (or equivalent); and (3) must not be a foreign government representative described as a liaison officer or observer.

d. Special Exchanges. In rare circumstances, Navy IPO may issue a disclosure authorization for an extended visitor who is not a participant in one of the established programs discussed in this chapter. This will occur only after careful review and determination by Navy IPO that it is in the best interests of the U.S. to do so. For example, an extended visit request may be approved to support the assignment of employees of a foreign contractor to a cooperative program or project when the foreign contractor is directly under a DON contract. Disclosures for this example would be in accordance with terms of the cooperative program or project DDL.

3. False Impressions. Creating a false impression of the U.S. Government's willingness to disclose military hardware, software, weapons, systems, technology, or information to extended visitors in advance of obtaining disclosure authorization must be avoided. Additionally, proposals to or discussion with foreign governments regarding the establishment of an extended visitor billet that may lead to the eventual disclosure of Classified Military Information (CMI) or Controlled Unclassified Information (CUI) must be authorized in advance by an FDO or Navy IPO.

4. Procedures Applicable to All DON Extended Visitors. The following procedures apply to all DON extended visitors.

a. Unescorted Access. Extended visitors shall be granted unescorted access to DON facilities, or areas within DON facilities where access is controlled, only when: (1) Security measures are in place to control access to applicable information and operations areas within the facility beyond what is authorized in their DDL; and (2) a badge or pass clearly identifies the extended visitor as a foreign national and is valid for the facility only during normal duty hours.

b. Escorted Access. Extended visitors may be authorized escorted access to any space for which they are cleared when the host facility's Commanding Officer has determined that they have an operational, program, or technical requirement, and where access is within the scope of their DDL. The Commanding Officer is responsible for securing any information within those spaces that is not releasable to the visitor.

c. Identification. The host command must ensure that the foreign visitor is clearly identified as a foreign national when dealing with others through oral, written, and electronic communications. If provided an email account, it must clearly identify him or her as a foreign national, including current assignment and country of origin. The email address shall comply with established DoD naming conventions. Specific guidance is normally provided in the DDL.

d. Information Systems (IS). Extended visitors shall not have access to IS' unless all materials on the IS are sanitized or protected such that the only material available to the visitor is authorized for disclosure by their DDL. Prior to

granting access, compliance with local, DON, and DoD information assurance and computer security guidance must be confirmed by the appropriately responsible local personnel. Specific guidance is normally provided in the DDL.

e. Prohibited Access. Extended visitors shall not have uncontrolled access to classified message traffic, library facilities, card catalogues, or databases. They shall not have access to bibliographies with listings of classified publications per reference (b).

f. SIPRNET. Secure Internet Protocol Routing Network (SIPRNET) access may be authorized for certain extended visitors. See the billet DDL to determine accessibility. Do not create a false impression regarding the availability of SIPRNET to an extended visitor.

g. Secure Telephone Equipment (STE). Controlled access to a STE may be permitted in accordance with reference (au) if the terminal is keyed for the visitor's classification level and a visual identifier denotes the user's status as a foreign national. The supervising official must ensure that the calling party or party called is informed of the extended visitor's access limits. Authority to authorize access will be contained in the DDL.

h. Access to Cryptographic Materials. Foreign visitors shall only have access to cryptographic spaces, equipment, or material when authorized by the National Security Agency (NSA) or the Director of Central Intelligence (DCI) in coordination with Navy IPO and CNO. Security clearances passed through Special Security Officer (SSO) channels do not constitute a disclosure or access authorization for cryptographic materials.

i. Custody of CMI or CUI. Extended visitors are not to possess classified information unless explicitly authorized by the DDL. They shall not have custody of CMI or CUI except during normal duty hours at their place of assignment, when such access is necessary to perform their assigned duties, and then only when the information is authorized for disclosure.

j. Visits to DON and Commercial Shipyards. The Commander, Naval Sea Systems Command (COMNAVSEASYS COM) has been delegated exclusive authority for approving official visits to all DON and

commercial shipbuilding and repair facilities. Foreign personnel assigned as PEPs to afloat commands, however, can anticipate short, unscheduled shipyard visits during their assignment. The prior approval of COMNAVSEASYSKOM is required for all foreign personnel to enter a shipyard or repair facility. See chapter 6, paragraph 4e in this manual for more details.

(1) If a short shipyard visit is imminent for a PEP assigned to a ship or submarine, the Contact Officer shall make direct contact with COMNAVSEASYSKOM (Security Office) to secure the entry. If the Contact Officer cannot obtain authorization for the PEP to accompany the host command into a shipyard, the host command shall contact their Service's Personnel Office (PEP Coordinator) to arrange a temporary transfer.

(2) For FLOs and CPPs, they must arrange to have a formal visit request submitted by their embassy to COMNAVSEASYSKOM to obtain authorization for entry prior to arrival at the shipyard. This request should be submitted a minimum of 21 working days in advance of the arrival.

k. Interaction with Contractors. The disclosure of classified information or certain controlled technical data to extended visitors by U.S. contractors may qualify as an export under reference (am) or (as). A State or Commerce Department export license or exemption may be required of U.S. contractors for the export of classified and export-controlled unclassified information disclosed to extended foreign visitors. See chapter 13, paragraph 1b(1) in this manual for more detail.

5. Responsibilities and Prohibitions for FLOs. An MOU or LOA formally establishes the legal basis for the FLO position(s) and covers such matters as the responsibilities and obligations of the governments, authorized activities, security requirements, financial arrangements, and claims. The MOU or LOA also establishes that the duties of the FLO shall be limited to representational responsibilities for his or her government per the agreement by which the billet is established.

a. Performance of Command or Facility Tasking. A FLO shall not perform any activities that are the responsibility of an employee or command element of the U.S. command or facility to which they are assigned. They may not be tasked by the command;

they may not be assigned a command job code or title (that might imply that they are representing the DON or U.S. Government); and they should not be provided command uniform name tags.

b. DON or U.S. Government Representation. A FLO may not represent the DON in any capacity and may not enter any contracts on behalf of the DON or the U.S. Government.

c. Custody of Documents. FLOs may not take custody of documentary information except as couriers. They may only act as couriers when they are authorized in writing to serve their government as couriers, and then only when the documentary information has been approved for disclosure to their government. The nature of courier credentials will vary from country-to-country.

d. Disclosure Limitations. FLO disclosure guidelines are contained in the billet DDL. A FLO may have access to CMI or CUI in accordance with the DDL upon approval of their extended visit request in the FVS.

e. Facility Limitation. Extended visit authorizations for a FLO will be limited to the command or activity to which the individual is assigned. All visits by FLOs to commands and activities other than the one to which they are assigned require the approval of a foreign visit request submitted by the FLO's parent government. Disclosure guidance for external commands or activities shall be contained in the approved visit authorization.

6. Responsibilities and Prohibitions for PEPs. Whether military or civilian, foreign personnel assigned to PEP positions shall be integrated into the U.S. workforce at the DON host command subject to the limitation in paragraph 6b below. They shall neither act as representatives of their parent government, nor act as a conduit for the exchange of CMI or CUI. Additionally, PEPs are not foreign national employees of the DON per chapter 3, paragraph 8 of this manual and U.S. industry may require export authorizations when providing information to the PEP.

a. DON or U.S. Government Representation. PEPs shall not exercise responsibilities that are reserved by law or regulation for an officer or employee of the U.S. Government. For example,

PEPs shall not perform the responsibilities of a contracting officer's representative (COR), contracting officer's technical representative (COTR), classified document custodian, security officer, escort for foreign national visitors, or senior watch officer/end-of-day security checker. They shall not be provided codes for arming or disarming alarm systems for classified open storage offices, and they shall not be the last person out or first person in an office or facility.

b. Disclosure Limitations. PEPs shall not be assigned to positions that would result in their access to CMI or CUI which has not been authorized for disclosure by their DDL, or that exceeds the levels authorized for disclosure to their government by DON policies or NDP-1. A PEP's integration into the workforce does not alleviate this disclosure limitation. PEP disclosure guidelines are contained in the billet DDL. A PEP may have access to CMI or CUI upon approval of their extended visit request in the FVS.

c. Visits or Temporary Duty (TDY) Assignments

(1) PEP visit authorizations will usually be limited to the command or activity to which the individual is assigned and any subordinate commands. However, visits to DON commands or activities not subordinate to the host command, or to appropriate DoD contractor facilities, may be authorized and arranged by the host command when the purpose of the visit falls within the scope of the PEP's billet description and DDL. The Contact Officer is authorized to communicate directly with the activity to be visited to arrange the visit, subject to that command's concurrence. The Contact Officer must ensure that the security office and the officials who will host the visit are provided a copy of the PEP's DDL and approved visit authorization (for classified visits) prior to the visit.

(2) Visits by PEPs to commands and activities for a purpose outside the scope of their billet description should be rare and will normally be denied except under unique circumstances. DoD policy generally prohibits a PEP from acting in the dual capacity as a FLO while assigned to a DoD component. The PEP shall inform their embassy that a one-time visit request is required and inform their Contact Officer, whom shall inform the FVS Coordinator at Navy IPO.

d. PEP Disclosure Review. FDOs with cognizance over an activity with a PEP shall conduct a disclosure review of each proposed billet/position description before the billet is finalized and an initial PEP assigned via the FVS. One purpose of this disclosure review is to prevent the possibility of a PEP being assigned to a billet where they will be unable to perform one or more critical functions due to disclosure limitations to the PEP's parent government. Another purpose of the review is to generate the "Information Authorized for Disclosure" portion of the DDL based on their billet description. All disclosure issues must be resolved prior to the approval of the billet description. The billet's DDL will then be generated based upon the results of the review, the PEP's job description, the level and type of information required for their duties, and the information's ability to be disclosed to the PEP's parent government.

7. Responsibilities and Prohibitions for CPPs. An International Agreement (IA) such as a Memorandum of Understanding (MOU) formally establishes the legal basis for the CPP position(s) and covers such matters as the responsibilities and obligations of the governments, authorized activities, security requirements, financial arrangements, and claims. The IA also establishes the general duties of the CPP and that the person(s) assigned shall be directed by the DON Program or Project Manager.

a. Performance of U.S. Host or Parent Command Tasking. A CPP is assigned to a specific cooperative program or project and shall not perform any activities of the host or parent U.S. command or facility outside of the scope of the project. They should not be assigned a host or parent command job code or title that might imply that they are representing the DON or U.S. Government.

b. Function as CPP and FLO. CPPs shall not act in a dual capacity as an official/employee in the international program office and a liaison officer for their government (e.g., FLO) while assigned to a DON component. In extraordinary cases, requests for exceptions must be accompanied by a request from the parent government of the individual and submitted in writing to Navy IPO by the pertinent international program office via the FDO in their chain of command. The request must contain sufficient justification as well as separate disclosure guidance

and safeguards for the individual's two distinct roles. When justified, Navy IPO will seek formal approval from the Office of the Under Secretary of Defense (Policy).

c. DON or U.S. Government Representation. CPPs shall not be assigned to positions reserved by law or regulation for an officer or employee of the U.S. Government. For example, they shall not perform the responsibilities of a U.S. contracting officer's representative (COR), component duty officer, classified document custodian, security officer, or escort for foreign nationals.

d. Disclosure Limitations. CPPs shall not be assigned to positions that could result in their access to CMI or CUI that has not been authorized for release to their government and that is outside of the scope of information disclosed to their assigned cooperative program or project. CPPs serving as couriers between the DON and a foreign government for requests and transmissions of CMI and CUI shall act in accordance with the terms of the cooperative program or project's Program Security Instruction. CPP disclosure guidelines are typically contained in the program or project DDL. A CPP may have access to CMI or CUI in accordance with the DDL upon approval of their extended visit request in the FVS.

e. Facility Limitation. Extended visit authorizations for a CPP will be limited to the command or activity to which the individual is assigned. All visits by CPPs to commands and activities other than the one to which they are assigned require the approval of a foreign visit request submitted by the CPP's parent government. Disclosure guidance for external commands or activities shall be contained in the approved visit authorization.

8. U.S. Contact Officer Responsibilities. An extended visit Contact Officer is primarily assigned to oversee the disclosure authorizations and restrictions contained in an extended visit billet DDL for all types of extended visitors. They may be responsible for one or more extended visitors at the discretion of the host command and the anticipated levels of disclosure coordination required. Contact Officers responsible for more than one type of foreign visitor may also need to manage different disclosure requirements for each, even for extended visitors from the same country but different assignments

(e.g., an Australian PEP and CPP working in the same program office). Contact Officers have the following specific duties and responsibilities:

a. Manage Extended Visit Disclosures. Control access to CUI and CMI in accordance with the program or project DDL, local command policy, and in coordination with FDOs.

b. Provide Disclosure Guidance. Act as the subject matter expert regarding the DDL and the FVR, and provide guidance to all personnel who will have contact with the assigned foreign personnel.

c. Coordinate Disclosures Outside the DDL. Coordinate all foreign disclosure that is not clearly outlined in the DDL with the command FDO or FDR, or if one is not assigned, the first FDO or FDR in the chain of command.

d. Coordinate Official Requests. Coordinate FLO actions and official requests for information with the stakeholders and the FDO, as appropriate.

e. Coordinate Disclosure for PEP Visits. Provide the DDL to commands that host one-time or recurring visits by PEPs for official visits that are in the line of duty for the PEP billet. For classified PEP visits, the Contact Office or Command Security Manager shall provide a copy of the PEP's extended visit authorization to certify the PEP's security clearance and access level.

f. Contact Officer Training. Navy IPO-01, Headquarters Marine Corps (PP&O), or the cognizant FDO may specify Contact Officer training. The Defense Security Service Center for Development of Security Excellence (CDSE) offers Contact Officer training, course number GS301.CU, found on line within website at www.cdse.edu.

g. Maintain Records. Maintain copies of appropriate international agreements regarding the PEP/FLO/PPP assignments; contact Navy IPO, Headquarters Marine Corps (PP&O (PLU)), or the cognizant FDO for the latest copies of international agreements or LOAs.

h. Provide Continuity. Provide proper turnover with replacement Contract Officers and notify the chain of command about possible gaps in coverage.

9. Extended Visitor Training. Per reference (av), training may not be conducted under the PEP except as necessary to familiarize, orient, or certify PEPs regarding unique aspects of the positions to which they are assigned. Initial training required prior to assuming the duties of a PEP assignment may be conducted through an FMS case via an Invitational Travel Orders (ITO). Care should be taken to ensure proper transition from the ITO authorities to an approved extended foreign visit and DDL. FLOs and CPPs shall not receive training unless the U.S. Government is reimbursed for the costs of such training.

10. Extended Visitor Certification Forms. All PEPs and CPPs assigned to DON facilities shall sign a certification form indicating that they will comply with all limitations on their access to information and all security regulations designed to protect U.S. information. Some FLOs may be required to sign a similar certification when a requirement is contained in the MOU that establishes the position.

11. Disclosures to U.S. Personnel Detailed to Exchange Billets

a. For disclosure purposes, U.S. personnel detailed to foreign exchange billets with a foreign government or international organization shall generally be treated as foreign representatives when they are acting in their official billet capacity, regardless of whether in the U.S. or elsewhere. When visiting DON commands or activities, they shall require foreign visit requests submitted by their hosting foreign government or international organization, and they shall only be provided documents and information disclosable to their host.

b. On occasions when U.S. personnel step out of their official foreign billet capacity and are acting in their role as a member of the DON, U.S. personnel making disclosures of information to them must decide whether the information being conveyed is for the individual's professional development or U.S. only use, or if it is being provided because it is useful or relevant to the purpose of their foreign assignment. If the latter, then the disclosure must be authorized to their host and

SECNAV M-5510.1
24 Jun 2019

the U.S. person shall no longer be considered acting in their DON role.

CHAPTER 13
EXPORT LICENSE REVIEWS AND DETERMINATIONS

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for the application of disclosure policy to the export license review and determination process that supplement the process outlined in chapter 3 of this manual. Reference (aw) gives Navy IPO the responsibility to coordinate the review of export licenses referred to the DON. Per reference (c), although exports are not by definition "Foreign Disclosures," the same foreign disclosure considerations and security requirements that apply to foreign disclosure decisions shall also be applied in formulating the DON recommendations on export license applications. While the foreign disclosure determination provides guidance on the releasability of technical data and/or hardware, export controls provide guidance on the appropriate means to enable the transfer of that which is authorized for release.

a. U.S. Export Control Regulations. In accordance with references (am) and (as), the export of defense articles, defense services, related technical data, and dual-use (military and civilian) commodities and related technology must be the subject of an approved export license authorization or of a waiver to the license requirement in the form of an exception (ITAR) or of an exception (EAR) - note that license requirements under the EAR may be limited based on the reasons for control and/or on the country of destination. Reference (am) is managed by the Department of State (DOS), Directorate of Defense Trade Controls (DDTC), and contains the U.S. Munitions List (USML) (Part 121) that lists the technologies subject to the jurisdiction of the DOS. Reference (as) is managed by the Department of Commerce (DOC), Bureau of Industry and Security (BIS), and lists the commodities subject to the jurisdiction of DOC in the Commerce Controlled List (CCL) (Part 738). The export control requirements set forth in references (am) and (as) regulate the permanent export and the temporary import activities undertaken by U.S. industry either to pursue international opportunities on its own, or in support of government-to-government arrangements, to include cooperative arrangement of foreign military sales.

b. ITAR and EAR Applicability

(1) DON organizations and activities are subject to U.S. export control regulations. References (am) and (as) exempt the majority of DON international interactions from licensing requirements. These exemptions, however, do not eliminate the requirement for a properly documented foreign disclosure authorization for items, information, or services governed under either export regulation set. Paragraph 6 of this chapter will address specific circumstances when licensing requirements may apply to DON activities. Navy IPO-01A is the DON resource for export control matters.

(2) U.S. industry is subject to U.S. export control regulations. Foreign industry may also be subject to U.S. export regulations in certain circumstances. The exporting entity's Empowered Official is ultimately and solely responsible for their company's export regulation compliance, including company personnel interactions with foreign nationals assigned to or visiting with DON commands and activities that may constitute an "export" per references (am) and (as). DON personnel shall not be involved in advising or interpreting a company's compliance with export license regulations. This responsibility belongs solely with the company's empowered official. Additionally, DON personnel do not have the authority to direct an export by a contractor.

c. License Review Processing Time Lines. Navy IPO strives to meet the Defense Technology Security Administration (DTSA) time lines of twenty-five days or less. Navy IPO normally seeks a response from DON Activities reviewing export requests within seven calendar days. Navy IPO will strive to negotiate extensions from DTSA when national security concerns warrant additional time to complete the DON review. While delays in the review of export license applications can jeopardize defense trade initiatives and can have an adverse effect on the U.S. industrial base, reviewers need to ensure that DON equities are adequately protected.

2. False Impressions. When reviewing an export license request, it is important to ensure that approval of the request does not create a false impression. This includes disclosure approvals for technology, services, or information, as well as any programmatic and/or contracting considerations. For example, it would not be appropriate to approve an export

license request for marketing if DON, DoD, or national policies would not support the ultimate export of the end item.

3. Disclosure Review Procedures. Navy IPO reviews licenses received from DoD DTSA. Navy IPO will seek appropriate DON subject matter expertise to assess how the subject export may affect DON equities, both from a foreign disclosure/technology protection and from an execution standpoint, in the case of export requests supporting either FMS cases or cooperative agreements. The DON offices are required to respond to the request within seven calendar days.

a. Basic Considerations. DON officials reviewing export licenses should consider whether the technology being proposed for export is in accordance with DON, DoD, and national disclosure policies or if no policy exists, whether the request poses a threat to national security. If necessary, they should consult with their cognizant FDO for interpretation of current DoD and DON disclosure policy. Additionally, reviewers external to Navy IPO should provide a technical review of the license request.

b. License Review Details. See Appendix AA for specific details that reviewers should consider when reviewing an export license.

c. Review Recommendation. DON officials can recommend approval, approval with provisos or conditions, disapproval with supporting rationale, or that the license request be returned without action when there is insufficient information upon which to make a recommendation. Provisos or conditions that reviewers include in their recommendation may be edited or deleted as the license process proceeds up the review chain back to either DOS or DOC without notification to the agency that originated the proviso. DTSA does grant reviewing agencies 18 business hours to comment on the final draft DOD recommendation by posting the License Draft Final (LDF) in the U.S. Export Control System (USXPORTS) prior to submitting that position to DOS. Navy IPO can recommend edits to that LDF, object to it and even escalate its disagreement should DTSA not concur with the DON recommended edits. Supporting escalation may require Flag-level engagement. Navy IPO will coordinate the DON objection with DON subject matter expert organization to determine whether escalation is necessary.

d. Final DON Recommendation. Navy IPO's recommendation concerning export licenses will be in accordance with the criteria in chapter 3 of this manual, including reviewer recommendations.

4. Special Export Control Considerations

a. Acting as Transmittal Agent. DON organizations who act as a transmittal agent on behalf of a private individual or firm, either as a convenience or to satisfy security requirements, may themselves be subject to the export license requirements. In such instances, the private individual or firm involved may be required to obtain an export authorization from DDTC or BIS as appropriate and name the DON transmittal agent as an intermediate consignee.

b. U.S. Lawful Permanent Resident. The transfer of unclassified export controlled information to a lawful permanent resident or protected individual, per reference (ax), is not subject to the export license process, and access to this information does not require a disclosure authorization.

c. Foreign National Employee of the DON. The disclosure to a foreign national who is an authorized employee of the DON shall follow the procedures in chapter 3, paragraph 8c of this manual.

d. Foreign National Employee of U.S. Contractors. The transfer or disclosure of technical data to a foreign national who is an authorized employee of a U.S. contractor or other Non-Governmental Organization (NGO) will be handled under the provisions of this chapter and reference (u).

5. Export Controls on DON Developmental Programs. The USD(AT&L) shall not approve any foreign military sale, commitment to sell, or DoD agreement for licensing the export of any ACAT I or II system that has not successfully completed its Operational Test and Evaluation (OT&E) and has not been granted approval for full rate U.S. production per reference (ay). This policy is not intended to interfere with any legitimate government sponsored discussions of potential cooperative opportunities for both development and production programs, involving key allies, provided only that such discussions

include a clear and unambiguous articulation of this policy. This policy is also not intended to interfere with any reasonable advance business planning and marketing discussions with potential foreign customers by defense contractors, provided that authorized licenses for these discussions include a requirement that the contractor notify in writing potential customers of this policy. Therefore, countries will be advised that the U.S. Government will not make a purchase decision on developmental items until they successfully complete Operational Evaluation (OPEVAL).

6. DON Activity Working in a Quasi-Commercial Capacity for a Foreign Private Entity. There may be occasions when a DON organization or activity may perform work under a direct commercial arrangement with a foreign private entity per references (az), (ba), (bb), and (bc). In those instances, an ITAR or EAR export license authorization for the export of defense articles, performance of defense services, or the exchange of technical data may be required because the DON activity is acting outside of the direct interest of the U.S. Government. DON activities engaged in these types of arrangements should work closely with Navy IPO-01A to determine their disclosure and/or export obligations prior to entering into such arrangements. Applications for licenses or technical assistance agreements shall be coordinated through Navy IPO-01A. DON organizations are not required to register with DDTC or BIS in these instances, but compliance measures must be put in place by these organizations in accordance with the applicable export regulations.

7. DON-Sponsored ITAR Exemptions. DON Activities may receive requests from U.S. industry to execute a foreign transfer under the aegis of an ITAR exemption. This type of request is sometimes referred to as a DON-sponsored exemption. While ITAR exemptions do not require "certifications", only the Navy IPO Director, Export Licensing Division (IPO- 01A), may "certify" an ITAR exemption certification request generated by U.S. industry. This authority has not been delegated to FDOs or field activities.

a. Request Requirements. The DON activity receiving a request for an ITAR exemption must ensure IPO-01A is provided with several documents to support the request. These include the following: A completed exemption checklist, normally

completed by the DON Activity in coordination with the requesting company's Empowered Official, should be provided to IPO-01A at the earliest to enable IPO-01A to determine whether the request can be satisfied; endorsement letter signed by the cognizant DON activity and a disclosure endorsement issued by the cognizant FDO. At a minimum, the memorandum should contain the following information. See Appendix BB for more details.

- (1) Justification (why the exemption is necessary in lieu of an export license)
- (2) Description of item(s) and copy of technical data
- (3) Disclosure review/approval by appropriate DON FDO
- (4) End-user/recipient of technical data
- (5) Proposed duration or end date
- (6) Method of transmission
- (7) Applicable ITAR exemption paragraph

b. DON ITAR Exemption Certifying Authority. The Navy IPO Director, Export Licensing Division (IPO- 01A), as the DON ITAR Exemption Certifying Authority, will review the proposal and conduct any additional coordination required. Note that the FDO responsibility in this process is only to provide a disclosure concurrence and not to determine if the "certification" can be granted. Navy IPO-01A will maintain a record of all DON-sponsored ITAR exemption authorizations.

8. DON-Sponsored EAR Exemptions. Pursuant to the implementation of the Export Control Reform initiative, the use "GOV" License Exception (§740.11 of reference (as)) is administered by cognizant DON activities in line with applicable EAR guidance for the transfer of those commodities that are subject to the control of the DOC. See Appendix CC for more information.

9. Commodity Jurisdictions. The Commodity Jurisdiction (CJ) process enables a company to obtain formal DOS guidance regarding the jurisdiction (i.e., the export control regime - ITAR control versus EAR control). The adjudication of these

SECNAV M-5510.1
24 Jun 2019

requests considers the origin of the commodity, its application, usage and critical performance parameters. A comprehensive review needs to fully consider the degree to which the commodity supports a warfighter requirement to ensure crown jewel technologies be maintained under the stricter controls of the ITAR to prevent the possibility of its proliferation and the loss of U.S. military superiority in that specific technology area.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 14
SHIP AND AIRCRAFT TRANSFER DISCLOSURE REVIEWS

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for making disclosure decisions regarding ship and aircraft transfers to a foreign government that supplements the process outlined in chapter 3 of this manual. The transfer of U.S. excess naval vessels (i.e. naval vessels that have been, or will be, removed from service) to eligible countries significantly improves their capabilities at a much lower cost than new construction while eliminating inactive excess ships from U.S. inventories. "Ship transfers" can also lead to the foreign acquisition of U.S. shipboard systems, equipment and services in support of the transferred vessel.

a. Determining Foreign Availability. The Chief of Naval Operations (CNO) is responsible for determining which naval aircraft and vessels are available for foreign transfer consistent with the short and long term operational and mobilization requirements of the DON.

b. Ship Transfers. Reference (bd) provides policy guidance and procedures for the transfer of excess U.S. naval vessels to foreign governments and international organizations.

(1) Naval vessel transfers support U.S. foreign policy objectives by satisfying defense requirements of allied and friendly governments and by strengthening mutual defense arrangements with those governments. The transfer of U.S. naval vessels significantly improves the capabilities of foreign navies, which make conservative investments (compared to the cost of new construction) to acquire and modify these vessels for their own operations.

(2) The cognizant FDO shall review systems and materiel associated with proposed transfers to ensure compliance with the DON, DOD, and national disclosure policies. Transfers of U.S. naval vessels are coordinated by Navy IPO and in most cases, implemented by NAVSEA.

c. Aircraft Transfers. References (k) and (be) authorize the transfer of DON Aircraft excess to the naval inventory through Foreign Military Sales (FMS) and Security Assistance

Programs as implemented by reference (bf). Transfers of U.S. Navy and Marine Corps aircraft are coordinated by Navy IPO and implemented by NAVAIR. The cognizant FDO shall review systems and materiel associated with proposed transfers to ensure compliance with the DON, DOD, and national disclosure policies.

2. False Impressions. Creating a false impression of the U.S. Government's willingness to make military materiel, technology, or information available to friends and allies before obtaining full disclosure approval for a ship or aircraft transfer must be avoided, particularly during initial inspections or tours. Not all viewable mission systems, weapons or weapons platforms, or components may be determined to be disclosable or transferrable. DON personnel hosting visits to ships or aircraft designated as candidates for foreign transfer must explicitly brief and receive foreign acknowledgement that no U.S. commitment to furnish viewable weapons, systems, or components – particularly if classified – is intended or implied until disclosure has been approved. When feasible, visits should be timed to follow disclosure approval.

3. Procedures

a. After the approval of the ship allocation list or designation of excess aircraft, Navy IPO distributes the list to the cognizant DON Program Managers. Based on the ship's or aircraft's current configuration, the program manager will develop a proposed transferrable configuration in accordance with DON, DoD, and national disclosure policies. The proposed transferrable configuration is reviewed and coordinated with the Foreign Disclosure Officer (FDO) to determine whether the items contained on the list are releasable to the prospective foreign entity. This disclosure review shall include all equipment, weapons, systems, support equipment, software, information, and documentation associated with the proposed transfer.

b. For weapons or systems that come under the cognizance of another Navy organization, the FDO shall coordinate the request with the cognizant Navy organization for a disclosure recommendation.

c. If the SYSCOM FDO cannot make a determination on the disclosure of an item because it is not within their disclosure authority, then the FDO shall forward a recommendation to Navy

IPO-01D and include whether or not a previously non-disclosable item should be reconsidered for disclosure (e.g., due to foreign availability, technology obsolescence, removal costs, etc.).

d. If a determination is made that some of the equipment is not releasable, then the FDO shall inform the program manager that the item must be removed, generally at DON expense.

e. If a determination is made that some of the equipment needs modification (tailoring) then the FDO shall inform the program manager that the item must be modified in accordance with the guidance that the item manager provides, generally at the customer's expense.

f. After completion of the foreign disclosure review, the final configuration list, to include those items that must be removed, is sent by the Navy Program Manager to Navy IPO. Navy IPO is responsible for management oversight of the transfer process and providing guidance on equipment removals for compliance with disclosure policy.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 15
PARTICIPATION BY FOREIGN CONTRACTORS IN DON PROCUREMENTS

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for making disclosure decisions regarding participation by foreign contractors in the DON procurement process that supplements the process outlined in chapter 3 of this manual. It pertains solely to the disclosure of DON CMI or CUI to foreign contractors who may desire to act in the capacity of prime contractors on DON procurements. The provisions of this chapter apply to both foreign contractors and U.S. contractors under foreign ownership, control, or influence with a classified facility clearance from the government of the foreign owner or other foreign government. This chapter does not include transactional commodity purchases of commercially available foreign items where there is no requirement to disclose U.S. export-controlled unclassified information or specifications over the life of the end use of the item. All DON procurement and contracting officials shall comply with the contents of this chapter. Chapter 16 of this manual contains further guidance on U. S. contractors under foreign ownership, control or influence.

a. Full and Open Competition. Consistent with reference (bg), it is Department of Defense (DoD) policy to ensure full and open competition in solicitations leading to the award of DoD contracts.

(1) Foreign contractors from countries with whom the DoD has a reciprocal procurement Memoranda of Understanding (MOU) shall be afforded the opportunity whenever possible to participate in solicitations and negotiations leading to the award of DoD equipment contracts. Additionally, contractors from countries who have not concluded of a reciprocal procurement MOU with the U.S. may also be considered for participation in DON procurement.

(2) In order for any foreign contractor to participate, however, all information necessary to perform as a prime contractor must be releasable to the government of their country of origin pursuant to DON disclosure policy and references (a), (am) and (as), and the provisions of other U. S. statutes. For example, statutes may prohibit foreign participation for national security, mobilization and emergency purposes, when

sensitive technology is involved, or for small business set-asides.

b. Non-Qualified Contractors. There may be instances when access by the government of a foreign contractor to Classified Military Information (CMI) or Controlled Unclassified Information (CUI) is not permissible under the National Disclosure Policy (NDP-1), or DON or other disclosure policy. In this case, foreign contractors may be considered non-qualified suppliers under Part 9 of reference (bh), thus preventing their participation as a prime contractor. However, non-qualified suppliers may participate in a DON procurement as a subcontractor under a qualified prime subject to the prime's ability to export to them under the conditions of references (am) and (as).

c. Preclusion of Foreign Firms. If the foreign disclosure review results in restrictions on foreign participation, limitations on full and open competition shall be published in the solicitation announcement. Under no circumstances will unusual technical or security requirements be imposed solely for the purpose of precluding the acquisition of defense equipment or services from foreign firms.

d. Prime-to-Sub Coordination. The disclosure of information by a U. S. prime contractor to a foreign subcontractor shall be processed under the Department of State licensing requirements identified in reference (am).

2. False Impressions. To be consistent with the false impressions policy of reference (a), contracting activities shall initiate a foreign disclosure review with their Foreign Disclosure Officer (FDO) and other internal cognizant offices in order to determine whether or not foreign participation will be permitted, and if so, the extent of foreign participation that will be permitted. This review should take place before announcing a solicitation to avoid the creation of any false impressions in fairness to all potential contractors, and to avoid any subsequent delays in the procurement process.

3. Procedures for Classified and CUI DON Procurements. The following procedures shall be followed when reviewing foreign contractor requests for information on DON contracts:

a. Early Determination. Cognizant DON commands/activities shall determine, at the earliest stage of the acquisition cycle, if a requirement exists for disclosing CMI and/or CUI during any phase of a competition, negotiation, contract award, or contract performance that may preclude a foreign contractor's participation. This would include participation in bidder conferences, release of technical data packages, visits to DON commands or to DoD contractors, and for testing/maintenance operations. Disclosures of classified information or CUI, and commitments concerning likely participation, shall not be made to foreign contractors or their governments pending disclosure authorization by the FDO, Navy IPO, and/or the National Disclosure Policy Committee (NDPC).

b. Disclosure Review. The FDO's foreign disclosure review shall include:

- (1) A description of all phases of the program;
- (2) The identification of countries whose contractors are likely to participate, and the specific contractors if known;
- (3) The extent of the foreign contractors' expected involvement at each phase, including access to controlled facilities;
- (4) A specific description of CMI that would have to be disclosed with the security classification levels involved, and the identification of technical data that is CUI and export-controlled; and
- (5) Whether or not U.S. production information (Category 4) would have to be disclosed. (See Appendix I).

c. FDO Responsibilities in Contracting. Although the authority to include or exclude foreign contractors from participating in DON procurement resides with the contracting officer, FDOs are responsible for determining whether the information/materiel involved in the procurement is releasable to the government(s) of the foreign contractor(s).

- (1) FDOs may include provisos in their disclosure authorization that certain information is not disclosable to

foreign governments and work relating to that information may only be performed by cleared U.S. contractors.

(2) If the disclosure decision exceeds an FDO's delegated disclosure authority, but the FDO recommends approval of the disclosure, the FDO will forward a fully justified recommendation to Navy IPO, who will reply with the final decision. It is the responsibility of the FDO to notify the contracting officer of the final disclosure decision.

d. Bid Package Transfers. Bid packages and other contract related documentation containing classified information may be requested by foreign contractors and, if approved for disclosure, shall be released on a government-to-government basis only through the foreign government's embassy in the U.S. unless other procedures are approved by Navy IPO.

e. Expeditious Processing. It is important that the above disclosure actions be initiated and processed expeditiously so the disclosure review does not delay the DON procurement process.

4. Technology Control Plan. In the case of third party nationals working for a contractor, subcontractor, or prospective contractor or subcontractor that should not have access to contract information, (excluding as authorized by references (am) or (as)), a Technology Control Plan (TCP, or national document equivalent in scope to a Technology Control Plan) must be enacted and enforced at the contractor / subcontractor or prospective contractor/subcontractor facility in order to preclude third party national access to classified information or CUI. The contractor/subcontractor or prospective contractor/subcontractor will be responsible for the creation and implementation of the TCP. The Contracting Officer's Technical Representative (COTR) should approve the TCP for foreign prime contractors. The foreign prime should approve TCP's for their subcontractors. A sample TCP may be found online at reference (bi). Disclosure authorization by FDOs may contain a proviso that information may not be transferred to a contractor/subcontractor or prospective contractor/subcontractor unless a TCP is in place.

5. Export-Control Requirement

a. Throughout the contract solicitation, selection, and award processes, the FDO's disclosure authorization must include a recommendation to the contracting officer that all solicitations and actual contracts will contain flow-down clauses. These clauses shall bind the foreign contractor or prospective contractor to not retransfer or otherwise use export-controlled information furnished by the soliciting activity for any purpose other than responding to the solicitation unless awarded the contract. Any contractor or prospective contractor will flow these clauses to their subcontractors or prospective subcontractors prior to the transfer of any U.S. export-controlled information.

b. A sample of binding text can be found in the U.S. Defense Acquisition Regulations at reference (bj).

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 16
DISCLOSURES TO U.S. COMPANIES UNDER FOREIGN OWNERSHIP,
CONTROL, OR INFLUENCE

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for the application of disclosure policy to the disclosures of CMI and CUI to companies under Foreign Ownership, Control, or Influence (FOCI) that supplement the process outlined in chapter 3 of this manual. All U.S. companies (including foreign-owned U.S. firms incorporated in the U.S.) are subject to all U.S. export laws and regulations, including the requirement to obtain an export license before releasing export controlled data to foreign employees, officers, or owners of the company. U.S. companies are particularly susceptible to FOCI at any time as a result of mergers, acquisitions, or takeovers. This vulnerability presents a need for awareness of specific policies and procedures affecting the disclosure of export controlled information under FOCI.

a. In accordance with reference (t), any company that is owned, controlled, or influenced by a foreign interest is ineligible for a DoD facility security clearance to access and/or store U.S. classified information. A company is considered to be operating under FOCI whenever a foreign interest has the power, direct or indirect, whether or not exercised, and whether or not exercisable, to direct or decide matters affecting the management or operations of that company in a manner which may result in unauthorized access to classified information or may adversely affect the performance of classified contracts. Additional information about FOCI may be found online at reference (bk).

b. If a foreign firm acquires or merges with a U.S. company that holds a current facility clearance, the clearance will be suspended or revoked until the unacceptable aspects of FOCI are negated or mitigated to a level acceptable to the Defense Security Service (DSS), as the administrative agent for the National Industrial Security Program responsible for implementing reference (u). Mitigation measures are necessary because foreign ownership, control or influence may result in the compromise of classified or controlled information that could jeopardize U.S. national security interests.

2. False Impressions. DON organizations and their personnel should avoid actions that create a false impression that the U.S. is willing to enter into any arrangement with a U.S. company under FOCI that will involve the eventual disclosure of CMI or CUI - until the FOCI mitigation has been approved by DSS and a DoD facility clearance has been issued.

3. FOCI Mitigation Process. The DSS executes all arrangements made on behalf of the U.S. Government to grant facility security clearances to U.S. companies under FOCI. The following FOCI policies and procedures are mandated by references (u) and implemented by the DSS for the DoD and DoD components. These policies and procedures are not augmented or amplified by the DON. There are several alternative remedies that provide for a company under FOCI to gain or retain a facility security clearance by preventing the foreign interest of the company from having access to export controlled information. Per reference (bk), these remedies include a Proxy Agreement, Voting Trust, Board Resolution (Corporation), Special Security Agreement (SSA), Security Control Agreement (SCA), or in some cases, a Limited Facility Clearance. There are no FOCI mitigation requirements mandated by reference (u) for unclassified information.

a. Proxy Agreement and Voting Trust Agreement. The Proxy Agreement (PA) and Voting Trust Agreement (VTA) may be used when a cleared company is effectively owned or controlled by a foreign entity. The PA and VTA are substantially identical arrangements whereby the voting rights of the foreign owned stock are vested in cleared US citizens approved by the Federal Government (DSS). Neither arrangement imposes any restrictions on the company's eligibility to have access to classified information or to compete for classified contracts.

(1) Establishment of the PA or VTA involves the selection of three Proxy Holders or Trustees who must be directors of the cleared company's board.

(2) The Proxy Holders or Trustees exercise all prerogatives of ownership with complete freedom to act independently from the foreign stockholders, with the following exceptions:

(a) The Proxy Holders or Trustees must obtain approval from the foreign shareholder regarding the following matters:

1. The sale or disposal of the corporation's assets or a substantial part.
2. Pledges, mortgages or other encumbrances on the capital stock
3. Corporate mergers, consolidations, or reorganization
4. The dissolution of the corporation
5. The filing of a bankruptcy petition

(b) The Proxy Holder or Trustees assume full responsibility for the voting stock and for exercising all management prerogatives, except as described above.

(3) The company must be organized, structured and financed to be capable of operating as a viable business entity independent from the foreign shareholder.

(4) Individuals serving as Proxy Holders or Trustees must be US citizens, residing within the United States, completely "disinterested" individuals with no prior involvement with the cleared company, the corporate body with which it is affiliated, or the foreign shareholder and they must be eligible for a personnel security clearance at the level of the facility clearance.

(5) Management positions requiring personnel security clearances must be filled by US citizens residing in the US.

(6) The difference between the Proxy Agreement and the Voting Trust Agreement is that under the Voting Trust Agreement the foreign owner transfers legal title in the company to the Trustees that are approved by DSS.

b. Board Resolution. The Board Resolution may be used when the foreign entity does not own voting stock sufficient to elect a representative to the company's governing board (e.g., A

British national owns 10 percent of the company's voting stock and that 10 percent stock ownership does not allow the British National to appoint a representative to the company's board of directors).

c. Security Control Agreement. The Security Control Agreement (SCA) may be used when the cleared company is not effectively owned or controlled by a foreign entity and the foreign interest is entitled to representation on the company's governing board (e.g., A Danish corporation owns 25 percent of the cleared company's voting stock and that 25 percent ownership allows the Danish corporation to appoint a representative(s) to the company's governing board). There are no access limitations under a SCA.

d. Special Security Agreement. The Special Security Agreement (SSA) may be used when a company is effectively owned or controlled by a foreign entity. Access to proscribed information (TS, SCI, SAP, COMSEC or RD) by a company cleared under an SSA may require that the Government Contracting Activity complete a National Interest Determination to determine that the release of proscribed information to the company shall not harm the national security interest of the United States. The SCA and SSA are similar agreements in the respect that they:

(1) Impose substantial industrial security and export control measures within an institutionalized set of corporate practices and procedures.

(2) Require active involvement of senior management and certain Board members in security matters (who must be cleared, US citizens) (Officer/Directors and Outside Directors).

(3) Provide for the establishment of a Government Security Committee (GSC) to oversee classified and export controlled matters (the GSC consists of cleared Officer/Directors and Outside Directors).

(4) Preserve the foreign shareholder's right to be represented (Inside Director(s)) on the Board of Directors with a direct voice in the business management of the company while denying unauthorized access to classified information.

e. Procedure Without FOCI Mitigation or Negation. In the absence of one of the legal arrangement above to negate or mitigate FOCI, these firms continue to be treated as if they were foreign firms. These firms may still compete for and perform under classified U.S. defense contracts if they obtain a Limited Facility Clearance and if appropriate foreign disclosure approvals have been made. A foreign disclosure authorization by an FDO is required for any information to be disclosed. Only in the case of a Limited Facility Clearance is a "Foreign Disclosure" decision required for a U.S. firm.

4. Post-FOCI Negotiation or Mitigation. U.S. firms that have implemented one of the legal arrangements in paragraph 3 above for mitigating or negating the effects of FOCI are no longer considered FOCI firms; they are to be treated as U.S. firms and no additional foreign disclosure decision is required for the release of information to them.

5. Limited Facility Clearance

a. A Limited Facility Clearance (LFC) may be granted only upon satisfaction of the following criteria:

(1) There is an Industrial Security Agreement with the foreign government of the country from which the foreign ownership is derived;

(2) Access to classified information will be limited to performance on a contract, subcontract or program involving the government of the country from which foreign ownership is derived; and

(3) Release of classified information must comply with the U.S. National Disclosure Policy.

b. LFC Justification. For a variety of reasons, a Limited Facility Clearance is rarely chosen as a remedy for FOCI. Access limitations are inherent with the granting of Limited Facility Clearances. In order for DSS to grant a Limited Facility Clearance, they must obtain a request from the Department of the Navy signed by an "empowered official," an appropriate senior official able to represent the command (e.g., program manager, Program Executive Officer (PEO), or flag officer). The requesting command must: cite the compelling

need, acknowledge that a Limited Facility Clearance is not a mitigation of FOCI, and accept the security risks involved. Only Navy IPO or a Foreign Disclosure Officer (FDO) may authorize the release of export-controlled information to those companies with a Limited Facility Clearance.

c. Personnel Employed by LFC Companies. Personnel representing or employed by companies with a Limited Facility Clearance who must visit a DoD-controlled facility must submit a visit request in accordance with reference (u). Access to export-controlled information by such personnel is restricted to that which is otherwise releasable to the foreign countries associated with the FOCI company. Requests for visits by such personnel to DON commands and activities cannot be originated by foreign embassies because the companies are not performing foreign government sponsored work.

6. Committee on Foreign Investment in the U.S. The Committee on Foreign Investment in the U.S. (CFIUS) reviews the filings of proposed acquisitions of U.S. companies by foreign companies or mergers of foreign and U.S. companies. The DoD portion of this review is for the purpose of determining if the proposed merger or acquisition will have an adverse impact on National Security. This process occurs prior to the implementation of FOCI policies and procedures.

a. CFIUS Function. CFIUS is chaired by the Department of the Treasury, which coordinates the interagency reviews. Filed CFIUS cases are required to have U.S. Government reviews completed within 30 days. The Department of the Treasury sends them to the Department of Defense coordinator who sends them to the Department of the Navy (DON) coordinator, usually within 2-3 days of filing. Navy IPO currently coordinates these cases for the DON and must notify the Department of Defense coordinator by the 20th day regarding the DON position on the proposed acquisition or merger. DON may choose one of two recommendations: (1) No objection; or (2) recommend a 45-day further investigation (for when the acquisition is of such concern that even the normal FOCI negation methods will not be considered adequate or no FOCI negation agreement can be reached between the U.S. government and the parties to the transaction). The latter is only used in rare cases because the 45-day further investigation requires that the case be sent to the President of

the United States at the end of the investigation for a final decision.

b. FOCI Mitigation in CFIUS. A separate industrial security review is carried out in parallel by the Defense Security Service (DSS) for those companies having classified contracts. DSS will determine if the proposed corporate acquisition will require FOCI negation or mitigation, notify the parties to the proposed acquisition, and request their preliminary acceptance of DSS's recommended remedy in order to retain their facility security clearance.

c. Information Confidentiality. DON personnel participating in CFIUS reviews shall treat case related information as Controlled Unclassified Information and follow Treasury Department confidentiality guidelines.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 17
DISCLOSURES OF FOREIGN GOVERNMENT INFORMATION

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for the application of disclosure policy to the disclosures of Foreign Government Information (FGI) that supplement the process outlined in chapter 3 of this manual. Information provided to the U.S. by a foreign government or governments, an international organization, or any element thereof, with the expectation that the information, the source of the information, or both are to be held in confidence; produced by the U.S. pursuant to or as a result of a joint arrangement with a foreign government or governments, or an international organization of governments, or any element thereof, requiring that the information, the arrangement, or both are to be held in confidence; or information received and treated as FGI under the terms of reference (bl).

a. Protection. Per reference (bl), the U.S. shall protect FGI in accordance with the terms of international agreements and will provide protection of any FGI to a level equivalent to that provided by the originating foreign government or international organization. These agreements include the NATO Security Agreement, signed by all NATO member nations; individual bi-lateral general security agreements between the U.S. and foreign governments; and the various international program agreements that include provisions mandated by the Arms Export Control Act concerning security, retransfer, end-use, and protection.

b. "In Confidence" Information. If information is provided or produced on the condition that it will be held "in confidence" but without classification, it shall be protected as Controlled Unclassified Information (CUI) in accordance with references (n) and (bm).

2. False Impressions. No commitments, expressed or implied, will be made to a third party regarding the availability of FGI prior to receiving authorization from the foreign government or international organization owning entity.

3. FGI Disclosures. The disclosure of FGI in any form to any third party or third party entity, which includes foreign national employees of the DoD and U.S. defense contractors, is

prohibited without the prior consent of the originating foreign government or international organization, unless specifically permitted by the terms of a treaty, agreement, or other bilateral arrangement. The identity of the originating foreign government or international organization will not be revealed or acknowledged pending disclosure approval.

a. FGI Disclosure Review Process. A Foreign Disclosure Officer (FDO) shall not authorize DON personnel to disclose FGI to a third party except with the specific written authorization of the originating foreign government. DON organizations proposing the release of FGI shall provide the appropriate FDO sufficient background and justification including the following information:

(1) The specific information that is proposed for third-party disclosure and the related source from which the information was derived (e.g., MOU).

(2) The country, countries, or international organization to which the information would be disclosed.

(3) The foreign government or international organization that originated the information.

(4) The benefits to be derived by the U.S., by the recipient, and by the originating foreign government or international organization.

(5) The channels, procedures, and methods (i.e., oral, visual, documentary, or equipment) by which the information will be disclosed, including the specific security arrangements.

(6) The event and the planned date for which the third-party disclosure is required. (Keep in mind that a response may take up to six months to process.)

b. FDO Disclosure Authorization. The proponent of the transfer shall provide to the FDO with the response from the originator of the information (foreign government or international organization). If the request is approved, or approved subject to conditions, the disclosure authorization from the FDO must convey the originator's conditions as part of the approval correspondence.

4. Disclosures of Cooperatively Developed Information. For guidance on the disclosure of cooperatively developed information, see chapter 9, paragraph 5b of this manual.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 18
DISCLOSURES OF RESTRICTED AND FORMERLY RESTRICTED DATA

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel for the application of disclosure policy to the disclosures of U.S. Restricted Data (RD) and Formerly Restricted Data (FRD) that supplement the process outlined in chapter 3 of this manual. The foreign disclosure of atomic information (i.e., RD) and FRD) is normally associated with arrangements that involve the development of nuclear weapons or with nuclear planning matters involving countries and international organizations with which the U.S. has entered into Agreements for Cooperation. However, such information may also be associated with other matters, such as the hardening of communications systems against electro-magnetic pulse emanations from nuclear detonations.

a. Joint Atomic Information Exchange Group (JAIEG). The Secretaries of Defense and Energy, per reference (bn), established the JAIEG to review proposed disclosures of atomic information to ensure that the information falls within the terms of a pertinent agreement.

b. RD and FRD Disclosure Policy. Reference (bo) specifies that atomic information may be disclosed to foreign governments and regional defense forces (e.g., international organizations) only in accordance with an Agreement for Cooperation (a normal MOA/MOU does not suffice), which is subject to legislative review, and a statutory determination that the cooperation will not constitute an unreasonable risk to national defense and common security. The JAIEG must authorize the disclosure of atomic information to any foreign national prior to the information's transfer.

2. Disclosure Procedures. Proposals to disclose atomic information to a foreign government or international organization shall be forwarded to Navy IPO-01, who shall coordinate the proposal with the JAIEG. Proposals will be submitted as described below.

a. Disclosure Proposals. Proposals for the disclosure of documents containing atomic information (e.g., with RD/FRD markings) to a foreign government or international organization

shall contain at least two copies of the pertinent documents and be forwarded to Navy IPO-01 with the following supporting information:

(1) The portions of the document that are proposed for disclosure, including any proposed restrictions or provisos.

(2) The identity of the foreign government or international organization to which disclosure is proposed.

(3) The identity of the agency or office of the proposed recipient foreign government or international organization.

(4) The justification to support the need-to-know of the proposed recipient, to include the identification of the applicable program of cooperation and the identification of the supporting agreement.

(5) The identification of the portions of the proposed disclosure that are under the jurisdiction of the DON as well as any portions that are under the jurisdiction of another government, international organization, or another U.S. department or agency.

b. Navy IPO-01 will forward the document or documents to the intended recipient, if JAIEG approves the disclosure.

c. Disclosures with Oral/Visual Only. Any atomic information proposed for oral/visual presentation must be provided to Navy IPO in its full written text. Two copies of all presentations that contain atomic information proposed for disclosure must be forwarded to Navy IPO-01 at least 60 days prior to the date of the proposed disclosure. The material to be forwarded to Navy IPO-01 shall include the supporting information described in paragraph 2.a above, and all graphic material, visual aids, and documents intended for use in the presentation. Navy IPO-01 shall convey the JAIEG response, as well as any additional guidance necessary, to the DON organization that submitted the request.

d. Reporting Requirements for Actual Disclosures. A report shall be submitted directly to Navy IPO-01 within 14 days following the presentation for which the disclosure was requested. If information was authorized for disclosure but was

not disclosed, a report is still required. Reports pertaining to presentations where atomic information was or was not disclosed shall contain only the information listed below (do not include project reports, program reports, or similar material). The required information includes:

- (1) The date and place of the presentation;
- (2) The Navy IPO-01 letter serial number under which the atomic information was authorized for disclosure;
- (3) The name, nationality, and organization of all persons who attended the presentation; and
- (4) An exact description of the atomic information actually disclosed; or, if no atomic information was disclosed, a statement that no atomic information was disclosed and the rationale supporting that decision.

3. US/UK Polaris Sales Agreement and Polaris Trident II Technical Arrangement. A Delegation of Disclosure Authority Letter (DDL), which authorizes the transmittal of specified atomic information under this program, has been issued to the Director, Strategic Systems Program (SSP). Proposed changes to the scope of atomic information that is authorized under the DDL shall be submitted to Navy IPO-01 in accordance with paragraph 2 above.

4. Unauthorized Disclosure. Unauthorized disclosure of atomic information to foreign nationals shall be reported immediately to the Naval Criminal Investigative Service (NCIS) and Navy IPO-01. The report shall include an exact description of the atomic information that was disclosed, the identity of the foreign national(s), and the circumstances under which the disclosure occurred.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 19
DISCLOSURE MARKING REQUIREMENTS

1. General. This chapter provides specific guidance to disclosure authorities and DON personnel regarding marking requirements for certain document and software (hereinafter "information") that are in addition to the marking requirements of reference (ak) and supplements the processes outlined in chapter 3 of this manual. This chapter also contains markings applied to sanitized documents that may be unique to DON foreign disclosures. These markings are mandated only for information authorized by a DON Foreign Disclosure Officer (FDO) for disclosure to a foreign government. They are not mandated for information prepared for domestic Navy or Marine Corps use.

2. Conditions for Foreign Use Marking. CMI or CUI information authorized for disclosure to a foreign government(s) shall be marked on the cover, or the first page or presentation slide inside the cover, or in the footer of the first page of a document where there is no cover (in a font size no smaller than 8 pts), or below the texts of emails to foreign government representatives containing CMI or CUI, normally two lines below the Distribution Statement (if there is one) with the marking below detailing the conditions upon which the information is being provided to the receiving government(s). In software, this marking will be inserted in a manner where the foreign user may easily view or discover it, such as in a startup splash screen (if applicable), or as a menu item in the Help or About menus.

a. Purpose. While the conditions outlined in this marking are often contained in overarching international agreements, it is necessary to include it in individual disclosures for the knowledge of user-level foreign personnel who may not have access to such agreements.

b. Use on Domestic Documents. The Conditions for Foreign Use marking may be placed on domestic documents or software by the controlling authority or originator after coordination with the cognizant FDO.

c. Marking. The Conditions for Foreign Use marking is contained below and is to be applied with the title "Disclosure:" using the normal font of the document, or for

documents containing a Distribution Statement and/or an Export Control Warning, in the same font and character attributes of the titles of these markings.

Disclosure: This information is furnished upon the condition that it or knowledge of its possession will not be disclosed to another nation, and that it will not be used for other than the military purpose for which it is being provided without specific authority from the U.S. Department of the Navy; that individual or corporate proprietary rights contained within, whether patented or not, will be respected; that the information will be provided the same degree of security afforded it by the U.S. Department of Defense. Regardless of any declassification markings, this information may not be downgraded or declassified by a foreign recipient without the written approval of the originating U.S. agency. (bolding for emphasis only in this manual)

3. False Impressions Disclaimer Marking. Although it is preferable that all necessary disclosure approvals be obtained in advance of providing any information on a program or issue to a foreign representative, it is recognized that exceptions do arise.

a. Navy IPO-01 is the only approving authority for release of CMI that has not been fully vetted through the policy development process. Approvals of these requests are generally very conservative and normally only approved when Navy IPO-01 determines all disclosure authorizations are obtainable. Disclosures of this nature must be requested following the processes in Chapter 3, paragraphs 4 and 6, as well as Appendix 0 of this manual. The justification and urgency of the request must be fully explained.

b. Disclosure of CUI, including CUI in support of a program or initiative involving CMI, may be approved for disclosure by the cognizant information owner if the recipient is a FVEY partner (that includes the USA, Australia, Canada, Great Britain, and New Zealand) OR if a non-FVEY partner is favorably included in a DON TTSARB decision.

c. Information approved via the above authorizations must contain a Disclaimer Statement detailed in Appendix 0 of this manual.

4. Distribution Statement and Export Control Warning. Per reference (aq), distribution statements are to be used by document originators or controlling authorities to denote the extent to which the information to which they pertain are available for secondary distribution, release, and dissemination without additional approvals or authorizations, to DoD offices/agencies only, or DoD and U.S. DoD contractors, or U.S. Government offices/agencies only, or U.S. Government and Government contractors.

a. Distribution Statement Modifications. The wording of the distribution statements specified by reference (aq) may not be modified to accommodate additional distribution, such as distribution to foreign governments. Such release is outside the scope of secondary DoD distribution.

b. Use on Documents Authorized for Disclosure. FDOs shall not mandate any modifications to the wording of distribution statements or export control warnings on DON documents authorized for foreign disclosure.

5. Cooperatively-Generated Distribution Markings. By default, distribution of cooperatively-generated information (aka, "Foreground information") is to those countries that participated in its development. The use of U.S. distribution statements per reference (aq) on such information is not appropriate. Instead and as authorized by reference (aq), special dissemination markings may be applied to information generated under a cooperative program or project. As best practices, Appendix W contains dissemination markings that may be used or modified at the discretion of each cooperative program or project.

6. Not Releasable to Foreign Nationals (NOFORN) Caveat. FDOs may not authorize the disclosure of NOFORN material or information to foreign governments or their representatives. At the sole discretion of the original classification authority, the NOFORN caveat may be removed, or the non-disclosable content may be sanitized and then remarked as Releasable To (REL TO) for disclosure to designated foreign governments. It should be noted that the NOFORN caveat is only intended to be applied to certain types of intelligence information and NNPI.

7. Document Sanitizing. Per Chapter 4 of this manual, certain DON information may require sanitizing prior to it being authorized by an FDO for disclosure to a foreign government. The process used to develop sanitizing guidance is contained in Appendix P. This section deals with the actual sanitizing process and associated markings that should be used by persons designated to sanitize DON information.

a. "Edited for" Marking. A sanitized document that has had substantive, technical, or operational content removed for foreign disclosure or other purposes shall be marked on the front cover as "Edited for XYZ" where "XYZ" is the U.S. Geopolitical Entities, Names, and Codes (GENC) standard tri-graph country codes¹. "Edited for" is intended as a signal for DON personnel that this document has been modified from its domestic counterpart.

(1) This marking shall be placed on the upper left or right side of technical publications under the publication number, or under the date or change number (when present, in the upper left or right corner under the publication number), or if no publication number is present, under the document title or subtitle, or at the end of the subject line.

(2) When used for FMS-related technical or maintenance publications, this marking shall not be used with multiple country tri-graphs because country configurations and capabilities may vary.

(3) In those cases where a single sanitizing effort produces a document that applies to multiple foreign countries, and the publication does not reveal capabilities or configurations or tactical/operational information that may vary from country-to-country, the tri-graph country code may be replaced with an appropriate identifier for the approved countries (e.g., "Edited for MK-46 FMS" or "Edited for P-8

¹ The three-letter country codes or identifiers used in these markings are derived from the Geopolitical Entities, Names, and Codes (GENC) Standard. GENC is the U.S. Government profile of ISO 3166 Codes for the representation of names of countries and their subdivisions. It specifies an authoritative set of country codes and names for use by the Federal Government for information exchange, using ISO 3166 (Parts 1 and 2) names and code elements wherever possible, with modifications only where necessary to comply with U.S. law and U.S. Government recognition policy. This list may be found online at <https://nsgreg.nga.mil/genc/discovery>.

FMS/Cooperative", or "Edited for RIMPAC 2018").

(4) The "Edited for XYZ" marking shall not be used on customized publications where the content has been consolidated (e.g., paragraph 3.1.1 is redacted and paragraph 3.1.2 and subsequent paragraphs are renumbered to 3.1.1 and onward consecutively). These types of documents are now unique to the receiving foreign government and should be retitled or have the publication designator renumbered (per publication regulations) for the receiving foreign government (e.g., AUS-1.23.4).

b. Information Redactions and Use of "[Reserved]". The redacting and then consolidating a document by consecutively renumbering chapters, paragraph, tables, graphs, etc., into a completely new version is neither required nor desired unless specifically mandated by the foreign customer.

(1) By consolidating the content, configuration control between the U.S. and sanitized version is lost, and a new "customized" foreign document is created. Additionally, future corrections to the domestic version may be difficult to apply to a constantly changing consolidated sanitized variant.

(2) To keep paragraph numbering in a sanitized document consistent with its domestic DON counterpart, segments of a document that are completely removed shall be marked as "[Reserved]". This notation may be used for volumes, chapters, paragraphs, subparagraphs, figures, tables, etc., when all content, including the title, is redacted. For example, if there are three paragraphs in a section, but the second paragraph must be redacted based on the sanitizing guidance, then the second paragraph would be marked, "2. [Reserved]". (Note: Within this Manual, "[Reserved]" is used as a placeholder for future content.)

c. Blank Space from Redactions. When a document is sanitized, certain paragraphs, tables, figures, etc., may be eliminated from the content (i.e., redacted). This process may leave gaps in a document, some of which may be large. White space within pages is acceptable, but completely blank pages, or multiple pages marked "Intentionally Left Blank" are not. Multiple blank pages may be annotated as "Pages X - XX [Reserved]".

d. Hard Copy Sanitizing. When hard-copy documents are sanitized, the options for removing and/or obscuring content available to sanitizing agents per reference (l), are:

(1) Physically remove information with an Exacto-style razor knife or scissors. Photocopy the sanitized pages as required, and compile into a final product. Caution must be taken when removing information from double-sided pages.

(2) Black-out or tape over the information requiring removal using one of the following approved products. After obscuring the information to be removed, create black and white photocopy and review the final product to verify that no obscured information is visible.

(a) Charpak Graphic Tape (black plastic tape)

(b) Post-it Correction and Cover-up Tape (white paper tape, 2-line, id #652, from 3M)

(c) Pres-a-ply correction tape (white-1 line), id #43 161, from Dennison

(d) Liquid Paper Dryline (white) from PaperMate

(3) The above processes are labor- and time-intensive, but ultimately produce the most protected document for foreign disclosure purposes since it is not possible to reverse engineer or electronically discover the removed information.

(4) Under no circumstances shall sanitizing be attempted by marking out non-disclosable portions using pencil or ink scratch-outs, black felt markers, or yellow Post-it note paper, and then attempting to copy the page for foreign release. These techniques may not properly obscure the content and particularly with the black felt pen, the original content may be visible at high magnification levels due to the differences in pixilation (grayscale) between the printed ink and the marker color.

e. Electronic Sanitizing. Electronic documents often contain hidden data such as tracked changes or "undos" that may not be disclosable. When electronic documents are sanitized (particularly Word, Excel, PowerPoint, or PDF files), the

SECNAV M-5510.1
24 Jun 2019

procedures in references (bp) and (bq) may assist in removing hidden data and should be followed to the best extent possible.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

CHAPTER 20
FOREIGN DISCLOSURE MANUAL CHANGE PROCESS

1. General. The DON Foreign Disclosure Manual is intended to be a dynamic document that may be updated on a periodic basis to reflect current DON, DoD, and national foreign disclosure processes and procedures. This chapter provides guidance on how Foreign Disclosure Officers (FDOs) or other DON personnel may submit changes for consideration during periodic FDM reviews.

2. Categories of Change Recommendations. There are three categories of change recommendations for the FDM. Upon adjudication by Navy IPO-01, change recommendations may be accepted, partially accepted, or rejected.

a. Critical. A critical change recommendation must identify a violation of a law or a contradiction of an Executive Branch, DoD, or DON policy; or an unnecessary risk to the safety of U.S., DoD, or DON personnel (particularly operational military personnel); or impose an unreasonable burden to DON manpower or DON funding resources.

b. Substantive. A substantive change recommendation will identify parts of the FDM that seem unnecessary, incorrect, misleading, confusing, or inconsistent with other sections. It may also be used to document disagreement with stated responsibilities, requirements, or procedures.

c. Administrative. An administrative change recommendation may be used to identify non-substantive aspects of the document requiring change, such as dates of reference, organizational symbols, format, or grammar.

3. Change Submission Process. FDM change recommendations shall be submitted via email by DON FDOs or other DON personnel to Navy IPO using the FDM Change Form at Appendix DD as an attachment. All change recommendations must be fully justified by the requestor.

4. Adjudication of Changes. On a periodic basis, Navy IPO-01 shall adjudicate the change recommendations received in their order of criticality. Following adjudication, those changes that are accepted or partially accepted will be incorporated into the next FDM change annotating where changes are made.

5. Issuance of FDM Critical Change Notices. When required, Navy IPO-01 may issue an FDM Critical Change Notice to FDOs documenting one or more changes to the FDM that require immediate incorporation. Critical Change Notices will be formally incorporated into the FDM during the next periodic review along with the substantive and administrative changes that have been adjudicated as accepted or partially accepted.

APPENDIX A
GLOSSARY

1. Case-by-Case Basis. The principle that a disclosure authorization is restricted to individual events or occasions to prevent confusion with permanent and repetitive disclosure delegations.

2. Classified Military Information (CMI). Information originated by or for the DoD or its Agencies or is under their jurisdiction or control and that requires protection in the interests of national security. It is designated TOP SECRET, SECRET, or CONFIDENTIAL. CMI may be in oral, visual, or material form and has been divided into eight categories. Military information may also be embodied in equipment, software, firmware, databases, imagery, or other forms.

3. Communications Security (COMSEC). Measures and controls taken to deny unauthorized persons information derived from telecommunications and ensure the authenticity of such telecommunications. NOTE: Communications security includes crypto security, transmission security, emission security, and physical security of COMSEC material.

4. Compromise. An unauthorized disclosure of classified information.

5. Contact Officer. A DON official designated in writing to oversee and control all contacts, requests for information, consultations, access, and other activities of foreign nationals who are assigned to, or are visiting, a DON Component or subordinate organization. For Defense Personnel Exchange Program (DPEP) assignments, the host supervisor may be the contact officer.

6. Controlled Unclassified Information (CUI). CUI is unclassified information to which access or distribution controls have been applied in accordance with national laws, policies, and regulations. CUI is a term used to collectively describe unclassified information that has been determined to be exempt from mandatory disclosure to the public pursuant to the Freedom of Information Act (5 U.S.C. 552) or that is subject to U.S. export controls. *Within the DoD most of this information is marked "For Official Use Only" or "FOUO"; however, there are*

exceptions to the FOUO marking. Unclassified Controlled Nuclear Information (UCNI) is marked as such; personnel and medical files are marked with privacy statements; contractor information marked "PROPRIETARY" or "Business-Sensitive" will be handled as FOUO when provided to DoD/DON; and there are special distribution and export control warning notices that are applied by DON Components to DON documents that contain critical technology with a military or space application.

7. Cooperative Disclosure Letter (CDL). An letter issued by Navy IPO to a designated DON personnel explaining classification levels, categories, scope, and limitations of DON information that may be disclosed to foreign recipients as part of a cooperative agreement such as a joint service Memorandum of Understanding (MOU), a joint service Project Arrangement (PA) or activities under a Reciprocal Use of Testing Facility (RUTF) agreement. A CDL provides disclosure guidance similar to that of a DDL but does not vest a disclosure authority to the recipient. CDLs for joint service MOUs and PAs. CDLs are issued to specified DON activities, typically on a project-by-project basis, and will refer the DON participants to the other service/agency Technical Project Officers (TPOs).

8. Cooperative Program Personnel. Foreign government personnel, assigned to a multinational program office that is hosted by a DON Component in accordance with the terms of a cooperative program international agreement, who report and take direction from a DON-appointed program manager (or program manager equivalent) for the purpose of carrying out the multinational project or program. Foreign government representatives described in such agreements as liaison officers or observers are not considered Cooperative Program Personnel and are treated as FLOs.

9. Critical Program Information. The elements of certain U.S. capabilities that contribute to the warfighters' technical advantage, which if compromised, undermines U.S. military preeminence.

10. Defense Articles. Weapons, weapon systems, munitions, aircraft, boats, or other implements of war; property, installations, material, equipment, or goods used for the purposes of furnishing military assistance or making military sales; any machinery, facility, tool, material, supply, or other

items necessary for the manufacture, production, processing, repair, servicing, storage, construction, transportation, operation, or use of any other defense article or component or part of any articles listed above. Defense articles do not include merchant vessels, major combatant vessels, or as defined by the Atomic Energy Act of 1954, as amended (Title 42 U.S.C. 2011), source material, by-product material, special nuclear material, production facilities, utilization facilities, or atomic weapons or articles involving Restricted Data.

11. Delegation of Disclosure Authority Letter (DDL). A letter issued by the appropriate Foreign Disclosure Officer (FDO) (normally Navy IPO) to a designated DON official explaining classification levels, categories, scope, and limitations of information under a DON Component's disclosure jurisdiction that may be disclosed to a foreign recipient. Under no circumstances may the contents of DDLs be disclosed or acknowledged to foreign representatives.

12. Designated Disclosure Authority (DDA). An official at a DON organization (e.g., command, agency, staff element) that has been granted a Delegation of Disclosure Authority Letter (DDL) by Navy IPO and that is responsible for controlling disclosures of CMI and CUI at that organization.

13. Disclosure. Conveying controlled information, in any manner. For the purposes of this manual, "disclosure" connotes oral, visual, electronic or physical transfer of controlled information or material. (See Foreign Disclosure.)

14. Documentary Information. Any information, which is recorded on paper, film, transparency, electronic medium, or any other medium. This includes, but is not limited to printed publications, reports, correspondence, maps, audiotapes, email, spreadsheets, databases and graphical slides, technical drawings, software code, and information embodied in hardware.

15. Export. The International Traffic in Arms Regulation (ITAR), Section 120.17, defines "export" as:

a. Except as set forth in section 126.16 or section 126.17, export means:

(1) An actual shipment or transmission out of the United

States, including the sending or taking of a defense article out of the United States in any manner;

(2) Releasing or otherwise transferring technical data to a foreign person in the United States (a "deemed export");

(3) Transferring registration, control, or ownership of any aircraft, vessel, or satellite subject to the ITAR by a United States person to a foreign person;

(4) Releasing or otherwise transferring a defense article to an embassy or to any of its agencies or subdivisions, such as a diplomatic mission or consulate, in the United States;

(5) Performing a defense service on behalf of, or for the benefit of, a foreign person, whether in the United States or abroad; or

(6) A launch vehicle or payload shall not, by reason of the launching of such vehicle, be considered an export for purposes of this subchapter. However, for certain limited purposes (see section 126.1 of this subchapter), the controls of this subchapter may apply to any sale, transfer or proposal to sell or transfer defense articles or defense services.

b. Any release in the United States of technical data to a foreign person is deemed to be an export to all countries in which the foreign person has held or holds citizenship or holds permanent residency.

16. Export License. The authorization issued by the State Department, Office of Defense Trade Controls, or by the Department of Commerce, Bureau of Industry and Security, which permits the export of ITAR or EAR controlled articles, technical data, or services.

17. Export License Application. A request submitted by U.S. persons and foreign government entities in the U.S. to export ITAR/EAR controlled technical data, services, or articles to a foreign person (see "Foreign Person").

18. Firmware. Implementation of software in hardware circuitry or read-only memory.

19. Foreign Disclosure. The disclosure of CMI or CUI to an authorized representative of a foreign government or international organization. (NOTE: The transfer or disclosure of CMI or CUI to a foreign national who is an authorized employee of the U.S. Government or a U.S. contractor technically is not a "foreign disclosure," since the disclosure is not made to the person's government. For contractors, access by such persons will be handled under the provisions of the Arms Export Control Act or Export Administration Act and the National Industrial Security Program Operating Manual. For DON organizations, access by such persons are handled in compliance with DoD Regulation 5200.2-R and DOD Regulation 5200.1-R implemented by SECNAVINST 5510.36 and SECNAVINST 5510.30A.)

20. Foreign Disclosure Officer (FDO). An official at a DON organization (e.g., command, agency, staff element) that has been granted a Delegation of Disclosure Authority Letter (DDL) and that is responsible for controlling disclosures of CMI and CUI at that organization. The delegation authority may be issued by Navy IPO, or the Commander/Commanding Officer upon whom the DDL is issued, or a senior FDO with redelegation authority.

21. Foreign Disclosure Representative (FDR). FDRs are DON officials who are appointed for the coordination of foreign disclosure reviews and to facilitate a complete and timely response to foreign requests for CMI or CUI representing the consolidated organization position.

22. Foreign Government Information (FGI). Information provided to the U.S. by a foreign government or governments, an international organization, or any element thereof, with the expectation that the information, the source of the information, or both are to be held in confidence; produced by the U.S. pursuant to or as a result of a joint arrangement with a foreign government or governments, or an international organization of governments, or any element thereof, requiring that the information, the arrangement, or both are to be held in confidence; or information received and treated as FGI under the terms of Executive Order 12958.

23. Foreign Liaison Officer (FLO). A foreign government military member or civilian employee authorized by his or her government and certified by a DoD Component to act as an

official representative of that government in its dealings with a DoD Component in connection with programs, projects, or agreements of interest to that government. There are three types of FLOs:

a. Security Assistance. A foreign government representative who is assigned to a DoD/DON Component or contractor facility in accordance with a requirement that is described in a Foreign Military Sales (FMS) Letter of Offer and Acceptance (LOA).

b. Operational. A foreign government representative who is assigned to a DoD/DON Component in accordance with a documented requirement to coordinate operational matters, such as combined planning or training and education.

c. National Representative. A foreign government representative who is assigned to his or her national embassy or delegation in the U.S. (e.g., an attaché), to conduct liaison activities with the DoD and the DoD Components.

24. Foreign Military Sales (FMS). The portion of U.S. security assistance authorized by the Foreign Assistance Act of 1961, and the Arms Export Control Act. The recipient typically provides reimbursement for defense articles and services transferred from the U.S. This includes cash sales from stocks (inventories, services, training) by the DoD, sales implemented by contract, and authorized military assistance.

25. Foreign National. A person who is not a citizen or national of the United States.

26. Foreign Person. A foreign natural person who is not a lawful permanent resident as defined by 8 U.S.C. §1101 (a)(20), or who is not a protected individual as defined by 8 U.S.C. §1324b(a)(3). It also means any foreign corporation, business association, partnership, trust, society, or any other entity or group that is not incorporated or organized to do business in the U.S., as well as international organizations, foreign governments and any agency or subdivision of foreign governments (e.g., diplomatic missions).

27. Foreign Representative. A person, regardless of citizenship, who represents a foreign interest in his or her

dealings with the U.S. Government, or a person who is officially sponsored by a foreign government or international organization. A U.S. national shall not be treated as a foreign person except when acting as a foreign representative.

28. Foreign Visit. Any contact by a foreign representative with a DON organization or contractor facility. Such visits are of two types, based on sponsorship:

a. Official Foreign Visit. Contact by foreign representatives under the sponsorship of their government or an international organization with a DoD component or DoD contractor facility. Only official visitors may have access to classified or Controlled Unclassified Information.

b. Unofficial Foreign Visit. Contact by foreign nationals with a DoD/DON command or activity for unofficial purposes, such as courtesy calls and general visits to commands or events that are open to the public, and without sponsorship of their government. Such visitors shall have access only to information that has been approved for public disclosure.

NOTE: Foreign nationals not sponsored by their government, visiting under the terms of a DoD/DON contract are not considered foreign visitors and will be cleared in accordance with the National Industrial Security Program Operating Manual Section 5, paragraph 10-507.

29. Government-to-Government Transfer. The principle that classified information and material will be transferred by government officials through official government channels (e.g., military postal service, diplomatic courier) or through other channels expressly agreed upon in writing by the governments involved. In either case, the information or material may be transferred only to a person specifically designated in writing by the foreign government as its designated government representative for that purpose.

30. International Organization. An entity established by recognized governments pursuant to an international agreement which, by charter or otherwise, is able to acquire and transfer property, make contracts and agreements, obligate its members, and pursue legal remedies. This typically refers to the North Atlantic Treaty Organization (NATO), or one of its elements.

31. Lawful Permanent Resident. An individual having been lawfully accorded the privilege of residing permanently in the U.S. as an immigrant in accordance with the immigration laws, such status not having changed. See U.S. National.

32. Naval Nuclear Propulsion Information (NNPI). Information, classified or unclassified, concerning the design, arrangement, development, manufacture, testing, operation, administration, training, maintenance, and repair of the propulsion plants of naval nuclear- powered ships and prototypes, including the associated nuclear support facilities. Information concerning equipment, components, or technology which are applicable to both Naval nuclear and conventional propulsion plants is not considered to be NNPI when used in reference to conventional applications only, provided no association with naval nuclear propulsion can be directly identified from the information in question. In cases where an association with naval nuclear propulsion can be directly identified from the information in question, designation as NNPI is mandatory.

33. Non-Governmental Organization. Refers to a nonprofit, voluntary, formal, nonviolent, nonpolitical, tax-exempt organization whose objective is to respond to perceived needs such as promoting development and social change.

34. Object Code. Machine-readable code.

35. Oral/Visual Disclosure. To brief orally, expose to view, or permit use under U.S. supervision to permit the transfer of knowledge or information, but not to physically transfer documents, material, or equipment to a foreign government or its representatives. Note taking is not authorized under this disclosure method since notes connote a physical or permanent transfer.

36. Personnel Exchange Program (PEP). A program under which military and civilian personnel of the Department of Defense and military and civilian personnel of the defense ministries and/or military services of foreign governments, in accordance with the terms of an international agreement, occupy positions with and perform functions for a host organization to promote greater understanding, standardization, and interoperability.

37. Principal Disclosure Authority (PDA). The PDA oversees compliance with this manual within the DON and is the only DON official other than the Secretary or Under Secretary of the Navy who is authorized to deal directly with the Secretary or Under Secretary of Defense regarding such matters as DON requests for exceptions to the National Disclosure Policy. The PDA for the DON is the Assistant Secretary of the Navy for Research, Development and Acquisition (ASN (RD&A)). Navy IPO has been designated by ASN (RD&A) to act on his behalf as the PDA for the Navy.

38. Proponent. The person or office initiating a request for disclosure, or request for policy development or modification.

39. Release. Release authority is inherent in a disclosure authorization unless it is specifically limited to oral/visual only. This term is superseded in this manual under the term "disclosure." In practice, a release occurs when any information that is recorded on paper, film, transparency, electronic medium, or any other medium, is physically or electronically transferred to a foreign government or its representatives, or a recipient of a licensed export. It includes, but is not limited to, the transfer of printed publications, reports, correspondence, maps, audiotapes, email, spreadsheets, databases and graphical slides, technical drawings, software code, and information embodied in hardware.

40. Restricted Data (RD) and Formerly Restricted Data (FRD)

a. RESTRICTED DATA (RD). Includes all data concerning: (a) the design, manufacture or use of atomic weapons, (b) the production of special nuclear material, or (c) the use of special nuclear material in the production of energy, but does not include data declassified or removed from the RESTRICTED DATA category under Section 142 of the Atomic Energy Act of 1954 as amended.

b. FORMERLY RESTRICTED DATA (FRD). Is information removed from the RESTRICTED DATA category upon joint determination by the Atomic Energy Commission (subsequently Department of Energy) and the DoD that such information relates primarily to the military utilization of atomic weapons and that it can be adequately safeguarded as classified defense information. Such information is, however, treated the same as RESTRICTED DATA for

purposes of foreign dissemination.

41. Security Assurance. Written confirmation requested by and exchanged between governments of the security clearance level and eligibility of their employees or national contractors to

assume custody of classified information on behalf of the recipient government. There are two additional types of security assurances.

a. Facility Security Clearance Assurance (FSCA). A certification provided by a government on a contractor facility under its territorial jurisdiction which indicates that the facility is cleared to a specific security level and has suitable security safeguards in place at the specified level to safeguard classified information.

b. Personnel Security Clearance Assurance (PSCA). This pertains to an individual who is to be employed by a government or its contractors and requires a personnel security clearance (i.e., a Limited Access Authorization in the U.S.). It is a statement provided by the security authorities of the individual's country of citizenship concerning the individual's eligibility for a personnel security clearance at a level equivalent to the level specified by the requesting (host) government. (See also DoD 5200.2-R)

42. Sensitive Compartmented Information (SCI). Information and material that require special controls for restricted handling within compartmented intelligence systems and for which compartmentation is established.

43. Security Policy Automation Network (SPAN). A wide area computer network sponsored by the Defense Technology Security Administration consisting of a DoD-wide Secret classified network and a separately supported unclassified network that supports communications and coordination among DoD activities on foreign disclosure, export control, and international arms control and cooperation.

44. Software. Programs, databases, and associated documentation available on human and/or machine-readable media such as paper, magnetic tapes, disks, or embedded firmware that operate computers.

45. Source Code. A subset of computer software documentation, is a set of symbolic computer instructions that is written in a high-level human readable language that cannot be directly executed by the computer without first being translated into object code.

46. Software Documentation. Information in human-readable form, including computer source code listings and print outs which: documents the design or details of the computer software; explains the capabilities of the software; or provides operating instructions for using the software to obtain the desired results from a computer.

47. Software Support. Resources such as people, facilities, documentation, information, and instrumentation to operate, maintain, or produce software products.

48. Technical Data

a. Information, other than software, which is required for the design, development, production, manufacture, assembly, operation, repair, testing, maintenance or modification of defense articles. This includes information in the form of blueprints, drawings, photographs, plans, manuals and documentation.

b. Classified information relating to defense articles and services.

c. Information covered by an invention secrecy order.

d. Software directly related to defense articles.

e. This definition does not include information concerning general scientific, mathematical, or engineering principles commonly taught in schools, colleges, and universities or information in public domain. It also does not include basic marketing information on function or purpose or general system descriptions of defense articles.

49. Technology. Information, including scientific information, which is necessary for the research, development, design, and manufacture of end products.

50. Third Party Transfer. The retransfer of a defense article by a foreign government or foreign entity, that was originally provided the article by the U.S. government or a U.S. entity, to any entity not an officer, agent, or employee of that government or entity. The USG generally limits the definition of "agent" to mean freight forwarders. Third party transfer includes the retransfer of a defense article by a foreign government or foreign entity, that was originally provided the article by the U.S. government or a U.S. entity, to a foreign government or foreign entity of the same origin but who is not an agent/employee of the original foreign government or entity.

51. U.S. Citizen. For the purposes of this manual, a person either naturalized as a U.S. citizen in accordance with U.S. Immigration and Naturalization laws and regulations or a person born in one of the following locations: any of the 50 states of the U.S., the District of Columbia, Puerto Rico, Guam, American Samoa, Northern Mariana Islands, U.S. Virgin Islands, Panama Canal Zone (if the father and/or mother was/were, or is/was a citizen of the U.S.), the Federated States of Micronesia, or the Republic of the Marshall Islands.

52. U.S. National. A citizen of the U.S. or a person who, though not a citizen of the U.S., owes permanent allegiance to the U.S., e.g., a lawful permanent resident of the U.S. Categories of persons born in and outside the U.S. or its possessions who may qualify as nationals of the U.S. are listed in 8 U.S.C. §1101(a) and 8 U.S.C. §1401, subsection (a) paragraphs (1) through (7). Legal counsel should be consulted when doubt exists as to whether or not a person can qualify as a national of the U.S. (NOTE: A U.S. national shall not be treated as a foreign person except when acting as a foreign representative.)

APPENDIX B
ACRONYM LIST

A

ACAT	Acquisition Category
AECA	Armed Export Control Act
AKA	Also Known As
ASN	Assistant Secretary of the Navy
ASN(RDA)	Assistant Secretary of the Navy for Research, Development and Acquisition
AT	Anti-Tamper
AT&L	Acquisition Training and Logistics

B

BIS	Bureau of Industry and Security
-----	---------------------------------

C

CBTs	Computer-based trainers
CDL	Cooperative Disclosure Letter
CDSE	Center for Development of Security Excellence
CFIUS	Committee of Foreign Investment in the U.S.
CIA	Central Intelligence Agency
CJ	Commodity Jurisdiction
CLSSA	Cooperative Logistics Supply Support Arrangement
CM	Confirmation Module
CMI	Classified Military Information
CNO	Chief of Naval Operations
COCOM	Company Commander
COMNAVSECCGRU	Commander, Naval Security Group
COMNAVSEASYS COM	Commander, Naval Sea Systems Commands
COMSEC	Communications Security
COMTHIRDFLT	Commander, Third Fleet
COR	Contracting Officer's Representative
COTR	Contracting Officer's Technical Representative
CPD	Country Program Director
CRADA	Cooperative Research & Development Agreement
CPI	Critical Program Information
CPP	Cooperative Program Personnel
CTA	Country Team Assessment
CUI	Controlled Unclassified Information

D

DASN	Deputy Assistant Secretary of the Navy
DASN (IP)	Deputy Assistant Secretary of the Navy (International Programs)
DCNO	Deputy Chief of Naval Operations
DCS	Direct Commercial Sale
DDA	Designated Disclosure Authority
DDTC	Directorate of Defense Trade Controls
DEA	Data Exchange Agreement
DDL	Delegation of Disclosure Authority Letter
DIA	Defense Intelligence Agency
DIRINT	Director of Marine Corps Intelligence
DMS	Defense Message System
DND2	Department of the Navy Disclosure Database
DNI	Director of Naval Intelligence
DOC	Department of Commerce
DOD	Department of Defense
DOE	Department of Energy
DODI	Department of Defense Instruction
DON	Department of the Navy
DSCA	Defense Security Cooperation Agency
DSS	Defense Security Service
DTIC	Defense Technical Information Center
DTS	Defense Transportation Service
DTSA	Defense Technology Security Administration

E

EAR	Export Administration Regulations
ENDP	Exception to National Disclosure Policy
ESEP	Engineer and Science Exchange Program

F

FAA	Foreign Assistance Act
FDM	Foreign Disclosure Manual
FDR	Foreign Disclosure Representative
FGI	Foreign Government Information
FLO	Foreign Liaison Officer
FMS	Foreign Military Sales
FOCI	Foreign Ownership, Control or Influence
FOIA	Freedom of Information Act
FRD	Formerly Restricted Data

FVEY Five Eye Countries (AUS, CAN, GBR, NZE, USA)
FVR Foreign Visit Request
FVS Foreign Visit System

G

GSC Government Security Committee
GSOIA General Security of Information Agreement
GSOMIA General Security of Military Information Agreement

H

HQMC Headquarters, Marine Corps

I

IA International Agreement (s)
IEA Information Exchange Annexes
IEP Information Exchange Programs
IG Inspector General
INST Instruction
IP Intellectual Property
IPO International Programs Office
IS Information Systems
ISO International Standards Organization
ISOO Information Security Oversight Office
IT Information Technology(ies)
ITAR International Traffic in Arms Regulations
ITO Invitational Travel Orders

J

JAIEG Joint Atomic Information Exchange Group
JCP Joint Certification Program

L

LAA Limited Access Authorization
LDF License Draft Final
LOA Letter of Offer and Acceptance
LO/CLO Low Observable/Counter Low Observable
LOR Letter of Request

M

MCSCG	Marine Corps Security Cooperation Group
MDE	Major Defense Equipment
MOA	Memorandum of Agreement
MOU	Memorandum of Understanding
MTCR	Missile Technology Control Regime
MTT	Mobile Training Teams

N

NATO	North Atlantic Treaty Organization
NAVSEA	Naval Sea Systems Command
NCIS	Navy Criminal Investigative Services
NDPC	National Disclosure Policy Committee
NDP-1	The National Disclosure Policy
NETSAFA	Navy Education & Training Security Assistance Field Activity
NGO	Non-Governmental Organization
NIPO	Navy International Programs Office
NISPOM	National Industrial Security Programs Operating Manual
NNPI	Navy Nuclear Propulsion Information
NOTAL	Not All (on distribution)
NSDM	National Security Decision Memorandum

O

OASD	Office of the Assistant Secretary of Defense
OCE	Officer Conducting the Exercise
OJT	On-The-Job Training
O&M	Operations & Maintenance
ONI	Office of Naval Intelligence
OPEVAL	Operational Evaluation
OPNAV	Office of the Chief of Naval Operation
OPORD	Operational Order
OPR	Office of Primary Responsibility
OSD	Office of the Secretary of Defense

P

PA	Project Arrangement or Proxy Agreement
PAR	Pre-LOA Assessment Request
PEO	Program Executive Order

PEP	Personnel Exchange Program
PM	Program or Project Manager
POC	Point of Contact
POL-MIL	Political Military
POR	Program of Record
POTUS	President of the United States
PP&O	Plans, Policy & Operations
Pre-LOA	Pre-Letter of Offer & Acceptance
PS	Policy Statements
PSI	Project Security Instruction

R

RA	Record of Action
RDA	Research, Development, & Acquisition
RD/FRD	Restricted Data/Formerly Restricted Data
RDT&E	Research, Development, Test & Evaluation
REL TO	Releasable To
RSAT	Regional Security & Arms Transfers
RUTF	Reciprocal Use of Test Facility
RWA	Returned Without Action

S

SAP	Special Access Program(s)
SATP	Security Assistance Training Program
SCA	Security Control Agreement
SECNAV	Secretary of the Navy
SCO	Security Cooperation Office
SCI	Sensitive Compartmented Information
SIPRNET	Secure Internet Protocol Routing Network
SME	Subject Matter Expert, or Significant Military Equipment
SPAN	Security Policy Automation Network
SPAWAR	Space & Naval Warfare Systems Command
SSA	Special Security Agreement
SSO	Special Security Office
SSOI	Summary Statement of Intent
SSP	Director, Strategic Systems Program
S&T	Science & Technology
STANAG	Standardization Agreement (NATO)
STE	Secure Telephone Equipment
SYSCOM	Systems Command

T

TCP	Technology Control Plan
TDY	Temporary Duty
TECOM	Training & Education Command
TECHEVAL	Technology Evaluation
TPT	Third Party Transfer
TTP	Tactics, Techniques, and Procedures
TPO	Technical Project Officer
TS	Top Secret
TS&FD	Technology Security & Foreign Disclosure
TTCP	The Technical Cooperation Program
TTSARB	Technology Transfer Security Assistance Review Board

U

USG	United States Government
USD	Under Secretary of Defense
USN	United States Navy
USMC	United States Marine Corps
USML	U.S. Munitions Lists

V

VTA	Voting Trust Agreement
VCNO	Vice Chief of Naval Operations
VTC	Video Teleconferencing

APPENDIX C
TOP LEVEL DISCLOSURE DELEGATIONS

The list below depicts top-level disclosure authorizations to major commands involved in the foreign disclosure process. The list may not be all-inclusive or in order of seniority.

Chief of Naval Operations

Commandant of the Marine Corp

Commander, Fleet Forces Command

Commander, U.S. Pacific Fleet

Commander, U.S. Naval Forces Europe-Africa/U.S. Sixth Fleet

Commander, U.S. Naval Forces Central Command

Commander, U.S. Naval Forces Southern Command

Commander, Fleet Cyber Command/U.S. Tenth Fleet

Commander, Naval Sea Systems Command

Commander, Naval Air Systems Command

Commander, Naval Space and Warfare Systems Command

Commander, Naval Supply Systems Command

Commander, Naval Research Laboratory

Commander, Naval Meteorology and Oceanography Command

Commander, Office of Naval Intelligence

Director, Naval Criminal Investigative Service

Commanding Officer, Naval Surface Warfare Center Indian Head,
Explosive Ordnance Disposal Technical Division

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX D
FOREIGN DISCLOSURE SELF-ASSESSMENT CHECKLIST

Self-assessments provide an opportunity to gain snap-shot insights into a DON command or activity's foreign disclosure program. Assessments (not inspections) provide disclosure officials an objective to evaluate the command's disclosure program; rate the program's performance; and determine what changes (if any) may need to be made to ensure compliance with their DDL and this manual.

The self-assessment questions contained in this Appendix are arranged according to the chapters of this manual. Not all questions will apply to every command or activity.

Before beginning a self-assessment, it is recommended that the assessing official(s) look over the questions contained herein to determine which questions are applicable to the command or activity's foreign disclosure program. The questions in this Appendix are a starting point that assess the standard practices and procedures established by this Manual. The expected answers are highlighted in grey in their respective column. Additional questions may be added as the assessing official deems necessary.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

SECNAV M-5510.1
24 Jun 2019

		YES	NO	N/A
	GENERAL			
1	Does the Command have the most current version of the DON FDM with critical changes annotated? Ref: SECNAV M-5510.1, Navy FDM, Chapter 9 Finding/Remarks:			
2	Does the Command hold a Command-wide "general" DDL or a "specific" DDL (i.e., cooperative program/project, extended foreign visitors, information exchange programs, or foreign training)? Ref: SECNAV M-5510.1, Navy FDM, Chapter 1, Paragraphs 4.c.(4) & (5) Findings/Remarks: TYPE:			
3	Does the disclosure officer have a copy of the DDL readily available? Ref: SECNAV M-5510.1, Navy FDM, Chapter 1, Paragraphs 4.c.(4) Findings/Remarks:			
4	Does the command or activity's Disclosure Officers have command-signed letters of appointment? Ref: SECNAV M-5510.1, Navy FDM, Chapter 1, Paragraph 5.a. Findings/Remarks:			
5	Can the disclosure officer generally explain the contents and scope of their DDL? Ref: SECNAV M-5510.1, Navy FDM, Chapter 1, Paragraphs 4.c.(4) & (5) Findings/Remarks:			

		YES	NO	N/A
6	For commands with a general DDL, has the command delegated disclosure authority to subordinate commands or activities? If so, is all of the re-delegation within the scope of the command's overall DDL? Ref: SECNAV M-5510.1, Navy FDM, Chapter 2, Paragraph 5 Findings/Remarks:			
7	Are all disclosure officers U.S. citizens, military or civil service personnel, with a security clearance level commensurate with the type and level of classified information they will be expected to review for foreign disclosure? Ref: SECNAV M-5510.1, Navy FDM, Chapter 1, Paragraph 5.a Findings/Remarks:			
8	Does the command use Foreign Disclosure Representatives (FDRs) to coordinate disclosure processes from activities without direct disclosure authority? If so, how are the FDRs trained? Ref: SECNAV M-5510.1, Navy FDM, Chapter 1, Paragraph 5.c Findings/Remarks:			
9	Does the command maintain copies of NDP-1 (The National Disclosure Policy) via the SIPRNET only? If NO, all hard copies should be destroyed and SIPRNET access obtained through Navy IPO. Ref: SECNAV M-5510.1, Navy FDM, Chapter 2, Paragraph 2 Finding/Remarks:			
10	Did the Command ever have an IG inspection; if so, are all deficiencies corrected, or are scheduled for correction? Ref: SECNAV M-5510.1, Navy FDM, Chapter 1, Paragraph 5.f. (2) Findings/Remarks:			

SECNAV M-5510.1
24 Jun 2019

		YES	NO	N/A
11	Since the last self-inspection, have any disclosure violations been reported to the security officer/manager? Ref: SECNAV M-5510.1, Navy FDM, Chapter 1, Paragraph 10 Findings/Remarks:			
12	Are disclosure officers following the "Summary Analysis Concept" in Chapter 3, Paragraph 5 as detailed in the FDM for submitted disclosure requests? Ref: SECNAV M-5510.1, Navy FDM, Chapter 3, Paragraph 5 Findings/Remarks:			
13	Do disclosure requests follow or resemble the format provided in the FDM, Appendix M? Ref: SECNAV M-5510.1, Navy FDM, Chapter 3, Paragraph 5 Findings/Remarks:			
14	Are proponents providing Originator and Stakeholder concurrences for the end-use and end user as part of their disclosure request submission? Ref: SECNAV M-5510.1, Navy FDM, Chapter 3, Paragraph 4.a and 4.b Findings/Remarks:			
15	Since the last self-assessment, have any disclosure requests been forwarded to Navy IPO because the request exceeds the authorizations contained in the DDL? If so, did the forwarding packages contain a disclosure recommendation? Have all of these requests been adjudicated by Navy IPO, and have the proponents been informed of the results? Ref: SECNAV M-5510.1, Navy FDM, Chapter 3, Paragraph 6.f Findings/Remarks:			

		YES	NO	N/A
16	Are Foreign Disclosure decisions/determinations documented and recorded? If YES, do they contain the minimum requirements of a title and case number; the disclosure approval/denial/return without action; a statement that the disclosure is specific for the content submitted and that changes affecting the scope or technical content will require a separate authorization; a statement of special conditions, limitations, or stipulations, if any; and a statement on the modes or methods of disclosure, if applicable? Please describe the manner of documentation and retention. Ref: SECNAV M-5510.1, Navy FDM, Chapter 3, Paragraph 7.c Findings/Remarks:			
17	Are disclosures of information owned by other departments, agencies or organizations coordinated with the owner of the information? If YES, use one or two actual examples and show how and with whom that coordination was done? Ref: SECNAV M-5510.1, Navy FDM, Chapter 1, Paragraph 5.b Findings/Remarks:			
18	Does the Command provide disclosure support for items containing COMSEC, cryptographic information (including embedded crypto), intelligence threat data, low observable and non-cooperative target recognition, and other special technology security processes? If YES, are separate disclosure authorizations received for the disclosures of? Ref: SECNAV M-5510.1, Navy FDM, Chapter 2, Paragraph 4 Findings/Remarks:			
19	Does the disclosure officer keep records of disclosure authorizations and denials, the date of determination, the date the request was received, and any amplifying remarks about the case? Ref: SECNAV M-5510.1, Navy FDM, Chapter 3, Paragraph 7.c Findings/Remarks:			

		YES	NO	N/A
20	Are security assurances reviewed prior to authorizing the disclosure of CMI? Ref: SECNAV M-5510.1, Navy FDM, Chapter 1, Paragraph 7 and Chapter 3, Paragraph 5.d Findings/Remarks:			
21	Are Security Classification Guides and other classification guidance available to those researching and making disclosure determinations/authorizations? Ref: SECNAV M-5510.1, Navy FDM, Chapter 3, Paragraph 4.c Findings/Remarks:			
22	Have all determinations/authorizations for the disclosure of CMI that has not yet completed the policy development process been approved by Navy IPO-01 and marked with the False Impressions Disclaimer Statement found in Appendix O of the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 3, Paragraph 9.a Findings/Remarks:			
23	Does the command or activity implement the CUI disclosure authority provided in the FDM for FVEY partners, or non-FVEY partners favorably included in a DON TTSARB decision? Ref: SECNAV M-5510.1, Navy FDM, Chapter 3, Paragraph 9.b Findings/Remarks:			
24	Has the Command published its own foreign disclosure instruction? Local command policies may only amplify local procedures and not repeat procedures from the DON FDM. Ref: SECNAV M-5510.1, Navy FDM, Foreword Findings/Remarks:			

		YES	NO	N/A
25	Do disclosure personnel with disclosure authority over classified information, official foreign visits, and disclosure policy have SIPRNET access to foreign disclosure information systems and databases such as the Department of the Navy Disclosure Database (DND2), and the DoD Foreign Visit System? If NO, how does the disclosure officer obtain information or provide inputs to these systems? Ref: SECNAV M-5510.1, Navy FDM, Ch. 3, para 6.a Findings/Remarks:			

		YES	NO	N/A
	DISCLOSURES OF DOCUMENTS AND BRIEFS (CHAPTER 4)			
1	Select three-to-five random document disclosure cases since the last self-assessment. Is the information contained in these documents appropriate to the scope and limited to the intended purpose of the disclosure? If so, is that clearly stated by the proponent in their disclosure request or did the disclosure officer need to evaluate the material and come to that conclusion on their own? Ref: SECNAV M-5510.1, Navy FDM, Chapter 4, Paragraph 3.a Findings/Remarks:			
2	Did the selected document disclosure cases all contain originator concurrence? If so, were the originators identified in each selected case and their concurrence obtained? Ref: SECNAV M-5510.1, Navy FDM, Chapter 4 Paragraph 3.a. (2) Findings/Remarks:			
3	Did any of the selected documents require stakeholder concurrence? If so, were all the stakeholders identified in each selected case and their concurrence obtained? Ref: SECNAV M-5510.1, Navy FDM, Chapter 4, Paragraph 3.a.(2) Findings/Remarks:			
4	Of the selected documents, were all marked appropriately in accordance with applicable regulations and Chapter 19 of the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 4, Paragraph 3.b and Chapter 19 Findings/Remarks:			

		YES	NO	N/A
5	Of the selected documents, were any of these updates or changes to previously released versions? If so, were the updates or changes clearly delineated and justified by the proponent as disclosable? Ref: SECNAV M-5510.1, Navy FDM, Ch. 4, Paragraph 3.c, and 4.a.(3) Findings/Remarks:			
6	Were any of the selected documents sanitized from an original version meant from an internal DON use? If so, were the sanitizing guidelines, the original version, originator and stakeholder concurrences, and the final sanitized document provided together in the disclosure request? Ref: SECNAV M-5510.1, Navy FDM, Chapter 6 Findings/Remarks:			
7.	Did any of the selected documents require remarking by the proponent either prior to or as a condition for receiving the disclosure authorization? Ref: SECNAV M-5510.1, Navy FDM, Chapter 4, Paragraph 3.b and 4.b Findings/Remarks:			
8.	Select three-to-five random briefing disclosure cases since the last self-assessment. The following questions will be pertaining to these random briefing disclosure cases. Did all of the selected briefs contain a statement in the disclosure request regarding the purpose of the brief and/or the key points the briefer intended to convey? Ref: SECNAV M-5510.1 Navy FDM, Chapter 4, Paragraph 3.d.(1) Findings/Remarks:			
9.	Did all of the selected briefs contain a statement in the disclosure request that described the audience to receive the brief? Ref: SECNAV M-5510.1, Navy FDM, Chapter 4, Paragraph 3.d.(1) Findings/Remarks:			

		YES	NO	N/A
10.	Did all of the selected briefs contain a statement in the disclosure request regarding the entire presentation include speaker notes for each point briefed and included a separate page for source listings? Ref: SECNAV M-5510.1, Navy FDM, Chapter 4, Paragraph 3.d.(1) Findings/Remarks:			
11.	Did all of the selected briefs contain a statement in the disclosure request that contained the proposed disclosure limitations or cut off points contained in the briefing? Ref: SECNAV M-5510.1, Navy FDM, Chapter 4, Paragraph 3.d.(1) Findings/Remarks:			

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

		YES	NO	N/A
	OPERATIONAL DISCLOSURES (CHAPTER 6)			
1	In the most recent exercise since the last self-assessment, did operational or exercise planners have properly trained Foreign Disclosure Representatives (FDRs) embedded in each warfare-centric planning cell throughout the planning cycle? If not, how did the planners include foreign disclosure in the planning cycle? Ref: SECNAV M-5510.1, Navy FDM, Chapter 6, Paragraph 3 Findings/Remarks:			
2	Did the DDA provide disclosure guidance for exercise "Participants and Observers" based upon their operational involvement? Ref: SECNAV M-5510.1, Navy FDM, Chapter 6 Paragraph 3.a Findings/Remarks:			
3	Was the list of information requirements, system/network capability disclosures and other disclosure requirements provided by the exercise planners to the DDA with sufficient time to coordinate the disclosure authorization? Ref: SECNAV M-5510.1, Navy FDM, Chapter 6, Paragraph 3.b Findings/Remarks:			
4	Did the exercise planners provide information to the DDA about the foreign participant's known capabilities and/or vulnerabilities so that the request is applicable to the format. Ref: SECNAV M-5510.1, Navy FDM, Chapter 6, Paragraph 3.b Findings/Remarks:			
5	Did the DDA's disclosure authorization contain sanitizing requirements? If so, was the sanitizing properly performed and by whom? Ref: SECNAV M-5510.1, Navy FDM, Ch. 6, Paragraph 3.b.(2) Findings/Remarks:			

SECNAV M-5510.1
24 Jun 2019

		YES	NO	N/A
6	Were routine products and daily communications disclosed by the exercise staff in accordance with disclosure guidelines provided by the DDA? Ref: SECNAV M-5510.1, Navy FDM, Chapter 6, Paragraph 3.c Findings/Remarks:			
7.	Was disclosure guidance provided to units embarking foreign coordination officers or exercise ship-riders in accordance with or closely resembling the template found in Appendix S of the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 6, Paragraph 4 Findings/Remarks:			

		YES	NO	N/A
	FMS SALES AND LEASES DISCLOSURES (CHAPTER 8)			
1	Select three-to-five random pre-LOA disclosure cases since the last self-assessment. The following questions will be pertaining to these random cases. Did disclosure reviews for P&A and prior to the LOA meet the minimum LOR requirements including a sufficient description of what is being requested; support requirements; purpose and justification for the request; and for SME/MDE, a country team assessment? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8, Paragraph 5.a Findings/Remarks:			
2	Did the reviewing DDA determine that the items being requested are disclosable; that the logistics support, mission planning, and training support are disclosable; and that the FMS case was executable from a foreign disclosure prospective? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8 Paragraph 5.b. (1) Findings/Remarks:			
3	Does the DDA establish command-wide standards for the submission of detailed configuration and documentation information for an FMS case prior to their authorizing the LOA? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8, Paragraph 5.b.(1) Findings/Remarks:			
4	Does the DDA allow Program Managers (PMs), Deputy Program Managers (DPMs), or FMS Case Managers (CMs, or their designees) to disclose controlled unclassified information within the scope, configuration, and technical limits within their active FMS cases? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8, Paragraph 6.a and 6.b Findings/Remarks:			
5	Is the checklist found in the FDM at Appendix U used by PMs, DPMs, or FMS CMs to verify that the CUI is disclosable under the terms of their active FMS cases? Ref: SECNAV M-5510.1, Navy FDM, Ch. 4, Paragraph 3.c, and 4.a.(3) Findings/Remarks:			

		YES	NO	N/A
6	Does the DDA allow Program Managers (PMs), Deputy Program Managers (DPMs), or FMS Case Managers (CMs, or their designees) to disclose classified information within the scope, configuration, and technical limits within their active FMS cases? If so, does the DDA sub-delegate their DDL to the PM, or issue some other official documentation for delegating their classified military information disclosure authority? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8, Paragraph 6 Findings/Remarks:			
7.	Does the FMS CM maintain a complete list or inventory of the items procured in the case, to the most detailed level practical, along with any associated foreign disclosure restrictions, limitations, or export configurations as provided for in the case disclosure authorization? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8, Paragraph 7.a Findings/Remarks:			
8.	Does the FMS CM make specific or applicable portions of their list or inventory available to the DDA when items, documentation, training, etc., are proposed for a disclosure authorization? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8, Paragraph 7.c Findings/Remarks:			
9.	Does the FMS CM make portions available to information originators or stakeholders when seeking originator's or stakeholder's concurrence for case-related disclosures, especially when guidance must be developed to sanitize documents to a foreign configuration? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8, Paragraph 7.c Findings/Remarks:			

		YES	NO	N/A
10.	Does the FMS CM maintain a file of case-related disclosure authorizations, citing these past precedents when submitting new disclosure proposals to the DDA for related items or information? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8, Paragraph 7.9 Findings/Remarks:			
11.	Does the FMS CM coordinate the disclosure approval of FMS case-related CUI training curriculums with the training facility and the cognizant DDA(s)? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8, Paragraph 7.e Findings/Remarks:			
12	Are DDAs and Program Office Personnel only evaluating and validating third party transfer requests for compliance with foreign disclosure policy, and limiting the information authorized for retransfer to that information required for the purpose stated in the transfer request? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8, Paragraph 8.c Findings/Remarks:			

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

		YES	NO	N/A
	INTERNATIONAL ARMAMENTS COOPERATION DISCLOSURES (CHAPTER 9)			
1	Does your command or activity hold a DDL for a research, acquisition, information exchange, or operational international agreement? If no, then go to Chapter 10. Ref: SECNAV M-5510.1, Navy FDM, Chapter 9, Paragraph 1.b Findings/Remarks:			
2	Is the DDL current for the most recently approved MOU/MOA, PA, or IEA Annex? Ref: SECNAV M-5510.1, Navy FDM, Chapter 9 Paragraph 4 Findings/Remarks:			
3	Do requests for the disclosure of Background (National) information follow the procedures established in Chapter 3 and other applicable chapters of the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 9 Paragraph 4.b Findings/Remarks:			
4	Are disclosure reviews performed for Foreground (Project) information? If so, for what reason? Ref: SECNAV M-5510.1, Navy FDM, Chapter 9, Paragraph 4.a. (2) Findings/Remarks:			
5	Are issues beyond the scope of the DDL, such as follow-on RDT&E phases where policy is lacking, coordinated with Navy IPO prior to disclosures to foreign cooperative partners? Ref: SECNAV M-5510.1, Navy FDM, Ch. 9, Paragraph 4.b.(2) Findings/Remarks:			
6	Does the cooperative program have a Project Security Instruction? If so, is it up to date? Ref: SECNAV M-5510.1, Navy FDM, Chapter 9, Paragraph 4.b. (3) Findings/Remarks:			

SECNAV M-5510.1
24 Jun 2019

		YES	NO	N/A
7.	Does the cooperative project have Cooperative Program Personnel (CPPs)? If so, does the contact officer responsible for oversight of the CPPs been given a copy of the DDL? Ref: SECNAV M-5510.1, Navy FDM, Chapter 9, Paragraph 4.b.(5) Findings/Remarks:			
8.	Do cooperative project personnel that request disclosure of Background (National) information to third party non-participants seek disclosure approval from cognizant DDAs or Navy IPO? Ref: SECNAV M-5510.1, Navy FDM, Chapter 9, Paragraph 5.a Findings/Remarks:			
9.	Is Background (National) information properly marked in accordance with Chapter 19 of the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 9, Paragraph 6 Findings/Remarks:			
10.	Is Foreground (Project) information properly marked in accordance with the Cooperative Program's PSI? If so, are the distribution markings similar to the markings contained in Appendix W of the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 9, Paragraph 6.b Findings/Remarks:			

		YES	NO	N/A
	TRAINING COURSE DISCLOSURES (CHAPTER 10)			
1	Is FMS Operations and Maintenance (O&M) training limited to the FMS case's scope, configuration, technical limits and terms and conditions? Ref: SECNAV M-5510.1, Navy FDM, Chapter 10, Paragraph 3.a Findings/Remarks:			
2	Is training beyond basic O&M as provided for in the FMS case authorized by a separate source, such as Navy IPO? Ref: SECNAV M-5510.1, Navy FDM, Chapter 10, Paragraph Findings/Remarks:			
3	Is O&M training conducted on or using U.S. equipment or trainers? If so, is the equipment or training device protected or sanitized to meet the foreign configuration if there are differences? Ref: SECNAV M-5510.1, Navy FDM, Chapter 10, Paragraph 3.c Findings/Remarks:			
4	Is classified O&M training that is provided under an FMS case reviewed by Navy IPO prior to being authorized for foreign students? Ref: SECNAV M-5510.1, Navy FDM, Chapter 10, Paragraph 5.a Findings/Remarks:			
5	Is unclassified O&M training that is provided under an FMS case reviewed by an FMS case manager prior to being authorized for foreign students? Ref: SECNAV M-5510.1, Navy FDM, Chapter 10, Paragraph 6.a Findings/Remarks:			

		YES	NO	N/A
6	Since the last self-assessment, have any tactics training courses been provided to foreign personnel under the terms of an FMS case? If so, were the tactics taught in the course approved for disclosure by the Navy or Marine Corps Component Commander with cognizance over the receiving country's normal areas of operation? Ref: SECNAV M-5510.1, Navy FDM, Chapter 10, Paragraph 5.c Findings/Remarks:			
7.	Are course instructors provided detailed information regarding the FMS equipment's configuration and technical limits so that they may tailor their presentation for the foreign student's exact requirements? Ref: SECNAV M-5510.1, Navy FDM, Chapter 10, Paragraph 6 Findings/Remarks:			
8.	Are operational mobile training teams provided foreign disclosure guidance when they train foreign personnel? Ref: SECNAV M-5510.1, Navy FDM, Chapter 4, Paragraph 3.d.(1) Findings/Remarks:			

		YES	NO	N/A
	ONE-TIME AND RECURRING VISITS DISCLOSURES (CHAPTER 11)			
1	Is the Foreign Visit System (FVS) used for foreign national visits involving the disclosure of CUI and CMI where the visitor is sponsored by a foreign government or NATO? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11, Paragraph 1.b Findings/Remarks:			
2	Are unofficial visits where no foreign government sponsorship is involved turned over to base access and security or public affairs? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11 Paragraph 1.c Findings/Remarks:			
3	Since the last self-assessment, have any Foreign Visit Requests (FVRs) been denied? If so, were accommodations made to accomplish the purpose of the visit in some other way? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11, Paragraph 1.d and 5.c.(2) Findings/Remarks:			
4	Since the last self-assessment, how many emergency visits were received and from which countries? Did any patterns develop regarding the use of emergency visits, and were these patterns brought to the attention of Navy IPO? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11, Paragraph 3.b Findings/Remarks:			
5	Since the last self-assessment, were recurring visits being used by countries where one-time visits would have sufficed? Did any patterns develop regarding the use of recurring visits, and were these patterns brought to the attention of Navy IPO? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11, Paragraph 3.c Findings/Remarks:			

		YES	NO	N/A
6	Did visitors on recurring visits provide the DON host activity at least 72 hour's notice of the actual date and time of the intended visit? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11, Paragraph 3.c Findings/Remarks:			
7.	Since the last self-assessment, were any visit amendments submitted within 48 hours of the requested visit without prior coordination of the hosting DON activity? Did any patterns develop regarding the use of the amended visit, and were these patterns brought to the attention of Navy IPO? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11, Paragraph 3.e Findings/Remarks:			
8.	Did the Office of Primary Responsibility (OPR) approving FVRs contain standard disclosure guidance statements as provide in Appendix Y in the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11, Paragraph 5.c.(7) Findings/Remarks:			
9.	Do hosting DON commands or activities maintain an Official Foreign Visitor Host/Coordinator and Escorts local command regulations? Is the local command regulation consistent with the best practice recommendations found in Appendix Z of the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11, Paragraph 8 Findings/Remarks:			
10.	Do DON commands and facilities outside of the United States have local command guidelines to control foreign visitors that includes foreign disclosure approvals as part of the review process? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11, Paragraph 9 Findings/Remarks:			

		YES	NO	N/A
	EXTENDED VISIT DISCLOSURES (CHAPTER 12)			
1	Does the command or activity host foreign extended visitors (PEPs, FLOs, CPPs, or ESEPs)? If not, disregard the remainder of this section. Ref: SECNAV M-5510.1, Navy FDM, Chapter 12 Findings/Remarks:			
2	Do all extended visitors have approved FVRs? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 1.b Findings/Remarks:			
3	Is there a DDL for each extended visitor's billet? (CPPs will only have a single DDL that is for the entire cooperative program.) Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 1.c Findings/Remarks:			
4	Does each extended visitor have a DON Contract Officer (military or civilian, but not CSS) assigned to him/her in writing by the senior official at DON commands or activities? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 1.d Findings/Remarks:			
5	Are extended visitors given escorted access restrictions for only those places where access control is required by local security regulations or their DDL? Ref: SECNAV M-5510.1, Navy FDM, Ch. 12, Paragraph 4.b Findings/Remarks:			

		YES	NO	N/A
6	Do any extended visitors have access to Secure Telephone Equipment (STE)? If so, is the terminal keyed for the visitor's classification level and a visual identifier to denote that the user is a foreign national? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 4.g Findings/Remarks:			
7.	Have any extended visitors been given duties reserved for U.S. personnel only (i.e., Security Manager, Senior Watch Officer, CMS Custodian, end-of-day Security Checker) or been given the access code to an alarmed space? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraphs 4.e, 4.h, 5.b, 6.a, 7.c Findings/Remarks:			
8.	Are all contractors interacting with extended visitors aware of the presence of extended visitors and their parent country?Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 4.k Findings/Remarks:			
9.	Are FLOs generally given the liberty to perform their representational duties as called for in the agreement establishing their billet and under the guidelines of their DDL? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 5 Findings/Remarks:			
10.	Are PEP billets monitored by their DON Contact Officers to ensure that only the information authorized for disclosure by their DDL is provided to the PEP? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 6 Findings/Remarks:			

SECNAV M-5510.1
24 Jun 2019

		YES	NO	N/A
11.	When PEPs are sent on temporary duty or to training authorized for their billet, does the DON Contact Officer provide a copy of the PEP's approved FVR (containing their security clearance) and a copy of their DDL to a temporary U.S. Contact Officer at the temporary duty or training location prior to the PEP's arrival? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 6.c Findings/Remarks:			
12.	Is each PEP DDL up-to-date and accurate for the billet to which they are assigned? (If not, a draft corrected DDL should be provided to the disclosure authority issuing the document for review and approval.) Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 6.c Findings/Remarks:			
13.	Do CPPs have access to the Background (National) information needed for their function and authorized for disclosure under the cooperative program's DDL? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 7 Findings/Remarks:			
14.	Do CPPs obtain FVRs from their parent government for official visits outside of the scope of their program and the program's primary office? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 7.e Findings/Remarks:			
15.	Do DON Contact Officers understand the information in the DDL they are charged with implementing? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 8.a Findings/Remarks:			

		YES	NO	N/A
16.	Do DON Contact Officers maintain a record for each of their charges that contains a copy of the implementing international agreement establishing the billet (MOU, FMS Case LOA, etc.); the foreign extended visitor's DDL; and name and contact information for the cognizant DDA; a copy of the signed non-disclosure agreement and other certification forms or other required documentation signed by the extended visitor; a copy of their approved FVR; extended visitor training records (for PEPs); and any other documentation that provides continuity to the command/activity and a replacement Contact Officer upon the incumbent's departure? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 8 and 9 Findings/Remarks:			
17	Are foreign nationals involved in SAP and SCI programs? If YES, are SAP Managers and SSOs involved and are special DDLs issued for these personnel by the SAP/SCI content owning authorities? Ref: SECNAV M-5510.1, Navy FDM, Appendix K, Paragraph 1.d Findings/Remarks:			

		YES	NO	N/A
	EXPORT LICENSE REVIEWS AND DETERMINATIONS (CHAPTER 13)			
1	Does the command or activity perform foreign disclosure-related reviews of industry export license applications as tasked by Navy IPO or the cognizant SYSCOM? If not, disregard the remainder of this section. Ref: SECNAV M-5510.1, Navy FDM, Chapter 13 Findings/Remarks:			
2	Do subject matter experts at DON SYSCOMs understand the reasons for their involvement in the export license review process? Ref: SECNAV M-5510.1, Navy FDM, Chapter 13 Paragraph 3 Findings/Remarks:			
3	Does the command or activity provide training for subject matter expert export license reviewers? If so, are the details contained in Appendix AA of the FDM used in that training? Does the training include instruction on the process of writing export license provisos/conditions? Ref: SECNAV M-5510.1, Navy FDM, Chapter 13 Paragraph 3 Findings/Remarks:			
4	Are DON SYSCOM subject matter experts provided copies of relevant DON foreign disclosure policies by DON DDAs when they may relate to the item/issue under review? Ref: SECNAV M-5510.1, Navy FDM, Chapter 13 Paragraph 3 Findings/Remarks:			
5	Are DON SYSCOM subject matter experts able to routinely complete their reviews within the timelines established by Navy IPO? Ref: SECNAV M-5510.1, Navy FDM, Chapter 13 Paragraph 3.c Findings/Remarks:			

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

		YES	NO	N/A
	SHIP AND AIRCRAFT TRANSFER DISCLOSURES (CHAPTER 14)			
1	Is the command or activity involved in the transfers of ships or aircraft to foreign governments? If not, disregard the remainder of this section. Ref: SECNAV M-5510.1, Navy FDM, Chapter 14 Findings/Remarks:			
2	Are ship and aircraft proposed transferrable configuration provided to the DDA with sufficient time to perform a complete and thorough review? Ref: SECNAV M-5510.1, Navy FDM, Chapter 14 Paragraph 3.a Findings/Remarks:			
3	In addition to the transferrable configuration, does the DDA review also include all equipment, weapons, systems, support equipment, software, information, and documentation associated with the proposed transfer? Ref: SECNAV M-5510.1, Navy FDM, Chapter 14, Paragraph 3.a Findings/Remarks:			
4	When items are deemed not disclosable does the DDA inform the proponent using a standard disclosure determination/authorization format and is a disclosure case number assigned? Ref: SECNAV M-5510.1, Navy FDM, Chapter 14, Paragraph 3.d Findings/Remarks:			
5	After completion of the foreign disclosure review, is the final configuration list, to include those items that must be removed, and sent by the Navy Program Manager to Navy IPO? Ref: SECNAV M-5510.1, Navy FDM, Ch. 14, Paragraph 3.f Findings/Remarks:			

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

		YES	NO	N/A
	PARTICIPATION BY FOREIGN CONTRACTORS IN DON PROCUREMENT (CHAPTER 15)			
1	Is the command or activity involved in procurement actions where foreign participation as the Prime Contractor is possible and the disclosure of CMI or CUI is required? If not, disregard the remainder of this section. Ref: SECNAV M-5510.1, Navy FDM, Chapter 15 Findings/Remarks:			
2	Are persons preparing DON procurement actions notifying DDAs when there is the possibility of foreign contract involvement? Ref: SECNAV M-5510.1, Navy FDM, Chapter 15 Paragraph 3.a Findings/Remarks:			
3	Do persons preparing the procurement actions provide the DDA with a complete description of the procurement and the CMI or CUI involved? Ref: SECNAV M-5510.1, Navy FDM, Chapter 15, Paragraph 3.b Findings/Remarks:			
4	Since the last self-assessment, has the DDA prohibited or limited any procurement actions for foreign disclosure purposes? If so, did the DDA inform the proponent using a standard disclosure determination/authorization format and was a disclosure case number assigned? Ref: SECNAV M-5510.1, Navy FDM, Chapter 15, Paragraph 3.c Findings/Remarks:			
5	Did the DDA's determination/authorization contain an export control flow-down requirement as called for in the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 15, Paragraph 5 Findings/Remarks:			

SECNAV M-5510.1
24 Jun 2019

		YES	NO	N/A
6	Did the DDA's determination/authorization contain any provisos that certain work may only be performed by cleared U.S. contractors? Ref: SECNAV M-5510.1, Navy FDM, Chapter 15, Paragraph 3.c.(1) Findings/Remarks:			

		YES	NO	N/A
	DISCLOSURES OF FOREIGN GOVERNMENT INFORMATION (FGI) (CHAPTER 17)			
1	Is the command or activity involved in the disclosure of Foreign Government Information (FGI) or the use of FGI in DON-developed products or documents? If not, disregard the remainder of this section. Ref: SECNAV M-5510.1, Navy FDM, Chapter 17 Findings/Remarks:			
2	Do disclosure requests to third party foreign governments that involve FGI contain sufficient written documentation from the originating government to authorize its inclusion and transfer to the third party by the DON? Ref: SECNAV M-5510.1, Navy FDM, Chapter 17 Paragraph 3.a Findings/Remarks:			
3	Did the DDA authorize the disclosure of FGI using a standard disclosure determination/authorization format and was a disclosure case number assigned? Ref: SECNAV M-5510.1, Navy FDM, Chapter 17, Paragraph 3.b Findings/Remarks:			

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

		YES	NO	N/A
	RD AND FRD DISCLOSURES (CHAPTER 18)			
1	Is the command or activity involved in the disclosure of Restricted or Formerly Restricted (RD/FRD) data? If not, disregard the remainder of this section. Ref: SECNAV M-5510.1, Navy FDM, Chapter 18 Findings/Remarks:			
2	Are proposals for the disclosure of RD/FRD provided to NavyIPO-01 in accordance with the requirements of the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 18 Paragraph 2.a Findings/Remarks:			
3	Did the recipient of an RD/FRD disclosure authorization from Navy IPO-01 submit a report directly to Navy IPO within 14 days following the presentation for which the disclosure was requested? If so, was the report in accordance with the FDM requirements? Ref: SECNAV M-5510.1, Navy FDM, Chapter 18, Paragraph 2.b Findings/Remarks:			

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

		YES	NO	N/A
	DOCUMENT MARKING REQUIREMENTS (CHAPTER 19)			
1	Is CMI or CUI information authorized for disclosure to a foreign government(s) marked on the cover, or the first page or presentation slide inside the cover, or in the footer of the first page of a document where there is no cover (in a font size no smaller than 8 pts), or below the texts of emails to foreign government representatives containing CMI or CUI, normally two lines below the Distribution Statement (if there is one) with the Condition for Foreign Use marking below detailing the conditions upon which the information is being provided to the receiving government(s) Ref: SECNAV M-5510.1, Navy FDM, Chapter 19, Paragraph 2 Findings/Remarks:			
2	In software, is the Condition for Foreign Use marking inserted in a manner where the foreign user may easily view or discover it, such as in a startup splash screen (if applicable), or as a menu item in the Help or About menus? Ref: SECNAV M-5510.1, Navy FDM, Chapter 19 Paragraph 2 Findings/Remarks:			
3	Has the DDA informed command personnel involved in foreign disclosure actions of the updated wording of the Condition for Foreign Use marking as published in the FDM of June 2017? Ref: SECNAV M-5510.1, Navy FDM, Chapter 19, Paragraph 2.c Findings/Remarks:			
4	Is the "Edited for" marking being placed on DON documents that have been sanitized from a DON-original document? If so, is the command using the 3-letter tri-graphs as called for in the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 19, Paragraph 7.a Findings/Remarks:			
5	Is the use of "[Reserved]" marking being placed on DON documents that have been sanitized from a DON-original document in order to keep numbering consistency between the DON and "edited for" variants? Ref: SECNAV M-5510.1, Navy FDM, Chapter 19, Paragraph 7.b Findings/Remarks:			

		YES	NO	N/A
6	Is hard copy sanitizing minimized at the command or activity in favor of electronic sanitizing? Ref: SECNAV M-5510.1, Navy FDM, Chapter 19, Paragraph 7.d Findings/Remarks:			
7.	Has the command or activity established its own sanitizing guidelines that use or expand upon the sanitizing procedures contained in Appendix P of the FDM? Ref: SECNAV M-5510.1, Navy FDM, Chapter 19, Paragraph 7 Findings/Remarks:			

APPENDIX E
SAMPLE FOREIGN DISCLOSURE INSPECTOR GENERAL CHECKLIST

The questions below are provided as a starting point for Inspector General (I.G.) inspections. The answers received from Command personnel may vary depending on the nature of the command and their foreign disclosure level(s) of authority. The expected answers are highlighted grey.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

FOREIGN DISCLOSURE I.G. INSPECTION CHECKLIST				
Inspected Organization: _____				
Inspector: _____ Code: _____ Date: _____				
		YES	NO	N/A
	ADMINISTRATIVE			
1	Is the Command authorized Delegation of Disclosure Authority by Navy IPO on behalf of SECNAV? If YES, show the Delegation of Disclosure Authority Letter (DDL). Ref: SECNAV M-5510.1, Chapter 1, paragraph 4c(4) Findings/Remarks:			
2	Has the Commander/Commanding Officer officially assigned Foreign Disclosure Officer (FDO) responsibilities to a member of the staff via a Letter of Appointment? Has a copy of the letter been forwarded to Navy IPO-01D? Ref: SECNAV M-5510.1, Chapter 1, paragraph 5a Findings/Remarks:			
3	Are those executing FDO responsibilities of suitable rank/grade, have the requisite security clearance level, and trained in or otherwise experienced in the execution of disclosure authority? Ref: SECNAV M-5510.1, Chapter 1, paragraph 5a Findings/Remarks:			
4	Does the Command maintain copies of NDP-1 only via the SIPRNET? If NO, all hard copies should be destroyed, and SIPRNET access obtained through Navy IPO. Ref: SECNAV M-5510.1, Chapter 2, paragraph 2 Findings/Remarks:			
5	Has the Command published their own Foreign Disclosure Instruction, Policy, or Procedures? If YES, provide a copy. Local command policies may only amplify local procedures and not repeat procedures from the DON Foreign Disclosure Manual. Ref: SECNAV M-5510.1, Foreword Findings/Remarks:			

6	Are other DoD and DON Foreign Disclosure Policies, Directives, and Regulations used in the foreign disclosure office (e.g., DoDI 5230.20, Foreign Visits)? If YES, what disclosure purpose do they provide? Ref: SECNAV M-5510.1, Chapter 1, paragraph 2 Findings/Remarks:			
7	Do Command disclosure personnel with disclosure authority over classified information, official foreign visits, and disclosure policy have SIPRNET access to foreign disclosure information systems and databases such as the Department of the Navy Disclosure Database (DND2), and the DoD Foreign Visit System? If NO, how does the FDO obtain information or provide inputs to these systems? Ref: SECNAV M-5510.1, Chapter. 3, paragraph 6a Findings/Remarks:			
8	Does the Command know when and how to obtain additional disclosure authority/guidance, such as when no policy exists, or when current policy is either outdated or requires modification? Ref: SECNAV M-5510.1, Chapter 2, paragraph 2b Findings/Remarks:			
9	Does the Command hold other DDLs beyond a Command-wide DDL? (i.e., cooperative program/project, extended foreign visitors, information exchange programs, or foreign training) Ref: SECNAV M-5510.1, Chapter 1, paragraphs 4c(4) and (5) Findings/Remarks:			
10	Can the Command FDO explain the concept of False Impressions? Is he/she also familiar with the False Impressions Disclaimer Statement, and the requirements for using that marking? If YES to one or to both, how is this information disseminated throughout the Command? Ref: SECNAV M-5510.1, Chapter 2, paragraph 3.5e Findings/Remarks:			

11	Are Security Classification Guides and other classification guidance available to those researching and making disclosure determinations? Ref: SECNAV M-5510.1, Chapter 3, paragraph 4c Findings/Remarks:			
12	Are disclosures of information owned by other departments, agencies or organizations coordinated with the owner of the information? If YES, use one or two actual examples and show how and with whom that coordination was done? Ref: SECNAV M-5510.1, Chapter 1, paragraph 5b Findings/Remarks:			
13	Are foreign nationals involved in SAP and SCI programs? If YES, are SAP Managers and SSOs involved and are special DDLs issued for these personnel by the SAP/SCI content owning authorities? Ref: SECNAV M-5510.1, Appendix K, paragraph 1d Findings/Remarks:			
14	Is NNPI, proprietary, or other caveated information (e.g. NOFORN, ORCON) reviewed for disclosure? If YES, use one or two actual case files and show how and with whom are those disclosures coordinated? Ref: SECNAV M-5510.1, Chapter 19, paragraph 6 Findings/Remarks:			
15	Does the Command provide disclosure support for items containing COMSEC, cryptographic information (including embedded crypto), intelligence threat data, low observable and non-cooperative target recognition, and other special technology security processes? If YES, are separate disclosure authorizations received for the disclosures of? Ref: SECNAV M-5510.1, Chapter 2, paragraph 4 Findings/Remarks:			

16	Are requests for Foreign Disclosure authorizations received via official channels? If YES, what are the primary channels and which intermediaries are involved? Ref: SECNAV M-5510.1, Chapter 3, paragraph 3 Findings/Remarks:			
17	Are disclosures limited to the information necessary to the purpose for which the disclosure is made? If YES, review several randomly selected cases to verify. Ref: SECNAV M-5510.1, Chapter 3, paragraph 5d(5) Findings/Remarks:			
18	Are all NDP-1 considerations reviewed by the FDO prior to making a decision on the disclosure of CMI? Ref: SECNAV M-5510.1, Chapter 3, paragraphs 5 & 6 Findings/Remarks:			
19	Are security assurances reviewed prior to authorizing the disclosure of CMI? Ref: SSECNAV M-5510.1, Chapter 1, paragraph 7 and Chapter 3, paragraph 5d Findings/Remarks:			
20	Are Foreign Disclosure decisions/determinations documented and recorded? If YES, do they contain the minimum requirements of a title and case number; the disclosure approval/denial/return without action; a statement that the disclosure is specific for the content submitted and that changes affecting the scope or technical content will require a separate authorization; a statement of special conditions, limitations, or stipulations, if any; and a statement on the modes or methods of disclosure, if applicable? Please describe the manner of documentation and retention. Ref: SECNAV M-5510.1, Chapter 3, Paragraph 7.c Findings/Remarks:			

21	Does the FDO keep records of disclosure authorizations and denials, the date of determination, the date the request was received, and any amplifying remarks about the case written by the FDO? If YES, are Foreign Disclosure reviews conducted upon the cases prior to the case being offered to the foreign government? Ref: SECNAV M-5510.1, Chapter 3, paragraph 7c Findings/Remarks:			
22	Do FMS Case Managers (not the FDO) maintain a complete list inventory of the item/services procured via the case, along with disclosure restrictions, limitations, or export configurations? Ref: SECNAV M-5510.1, Chapter 8, paragraph 6a Findings/Remarks:			
23	Do FMS Case Managers (not the FDO) maintain a file of case-related disclosure authorizations? If YES, does the FDO seek subject matter expert reviews of the license application, seek their expertise on writing provisos/conditions to limit the license, and provide a response back to Navy IPO -01A within 7 calendar days? Ref: SECNAV M-5510.1, Chapter 13, paragraphs 1c and 3 Findings/Remarks:			
24	Do FMS Case Managers (not the FDO) coordinate the disclosure approvals of FMS case related CUI training curriculums with the training facility and the cognizant FDO? If YES, are there DDLs in place for those agreements? Ref: SECNAV M-5510.1, Navy FDM, Chapter 8, Paragraph 6.e Findings/Remarks:			
25	Does the Command participate in review of cases forwarded by the Committee on Foreign Investment in the U.S. (CFIUS)? If YES, is case-related information properly handled and secured as Controlled Unclassified Information following Department of the Treasury Confidentiality Guidance? Ref: SECNAV M-5510.1, Navy FDM, Chapter 16, Paragraph 6 Findings/Remarks:			

26	Does the Command issue classified solicitations that potentially involve the participation of non-U.S. prime contractors? If YES, are the solicitations reviewed prior to opening the solicitation for foreign contractor participation? Ref: SECNAV M-5510.1, Navy FDM, Chapter 15, Paragraph 3 Findings/Remarks:			
27	Does the Command host one-time, recurring, or extended foreign visitor? If YES, are visits processed via the DoD Foreign Visit System? Ref: SECNAV M-5510.1, Navy FDM, Chapters 11 & 12 Findings/Remarks:			
28	Are extended visitors (i.e., Personnel Exchange Program Personnel (PEPs), Foreign Liaison Officers (FLOs), Cooperative Program Personnel (CPPs), Engineer and Scientist Exchange Program Personnel (ESEPs) supported by position descriptions and DDLs? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 1.b Findings/Remarks:			
29	Are contact officers assigned for extended foreign visitors? If YES, are they aware of the contents of the DDL? Ref: SECNAV M-5510.1, Navy FDM, Chapter 12, Paragraph 8 Findings/Remarks:			
30	Is the Command an Office of Primary Responsibility (OPR) with authority to approve Foreign Visit Cases? If YES, are disclosure determinations entered into FVS at time of approval? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11, Paragraph 5.c Findings/Remarks:			

31	Does the Command host and/or approve unofficial visits by Foreign Nationals? If YES, are these foreign contacts appropriately logged or recorded in accordance with local security regulations? Ref: SECNAV M-5510.1, Navy FDM, Chapter 11, Paragraph 1.c Findings/Remarks:			
----	--	--	--	--

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX F
NDP-1 SECURITY ASSURANCE REQUIREMENTS

1. General. The National Disclosure Policy (NDP-1) specifies that the proposed recipient government or organization must provide all the following assurances before the disclosure can occur.

a. The information will not be revealed to a third party without U.S. Government consent.

b. The recipient government or organization will afford the information substantially the same degree of protection.

c. The information will be used for only the purpose for which it was provided.

d. Any known or suspected compromise of the information will be reported.

e. All individuals and facilities that will have access to the classified military information will have security clearances granted by their government at a level equal to that of the classified information involved and an official need to know.

f. Transfers will occur as a government-to-government transfer.

g. Visits will be permitted by security experts to review and discuss each other's security policies and practices for protecting CMI and CUI information.

h. The recipient government or organization will abide by or meet any U.S. specified conditions for the release of the information or material.

2. Application. These assurances normally will be satisfied by a General Security Agreement (also referred to as General Security of Information Agreement or General Security of Military Information Agreement) between the U.S. and the other country or the organization. Annex A to NDP-1 lists the countries with which the U.S. has a General Security Agreement.

All NATO countries have signed the NATO Security Agreement. In the absence of a security agreement, the required assurances shall be included and agreed to in a program specific agreement, in a Letter of Offer and Acceptance, exchange of diplomatic notes, visit clearance requests, courier orders, or transportation plans.

APPENDIX G
NDP-1 FIVE DISCLOSURE CRITERIA

1. General. All disclosure determinations, whether they involve CMI or CUI, are adjudicated on a case-by-case basis. Additionally, proposed disclosures must be reviewed in their entirety in order to determine whether the disclosure of CMI is or may at some future point be required, and that a false impression of the United States willingness to provide CMI is not being created when it is not known to be true. Central to this process is the evaluation of the proposed disclosure to ensure it satisfies the five disclosure criteria as described in the National Disclosure Policy described below.

2. NDP-1 Criteria. Disclosures of classified military information may be made when all the following criteria are addressed and satisfied. The criterion considerations under each criterion are extensive and are intended to stimulate thought, but not every consideration applies universally and the list may not be all-inclusive. All disclosure requests shall be analyzed on a case-by-case basis.

a. Disclosure is consistent with U.S. foreign policy and national security objectives concerning the proposed recipient foreign government. Criterion considerations include:

(1) The potential foreign recipient's support for U.S. foreign policy and political objectives.

(2) The potential of the transfer to deny or reduce an influence or presence in the country that is hostile to U.S. interests.

(3) The effects on the regional and global strategic balance if the transfer is approved.

(4) Whether or not the country has a defense treaty or political agreement with the U.S.

(5) The political benefits that could accrue to the U.S.

(6) Whether or not the transfer helps the U.S. to obtain or secure base, transit, and overflight rights or access to strategic locations.

(7) Other countries to which the U.S. has transferred the item.

(8) The possible reaction of other countries in the region to the proposed sale.

(9) Whether or not the U.S. is the first supplier of the item.

(10) The possibility that the item could fall into the hands of terrorists.

(11) The impact of the transfer on the country's economy.

(12) Whether or not the transfer establishes an unfavorable political precedent.

b. Disclosure is consistent with U.S. military and security objectives. Criterion considerations include:

(1) The degree of participation in collective security by the U.S.

(2) How the transfer would affect coalition warfare in support of U.S. policy.

(3) How the item would increase the recipient country's offensive or defensive capability.

(4) How the transfer would increase the capability of friendly regional forces to provide regional security to assist the U.S. in the protection of strategic lines of communication.

(5) How the transfer will strengthen U.S. or allied power projection.

(6) To what extent the transfer is in consonance with U.S. military plans.

(7) Whether or not the export is consistent with DON policy.

(8) Whether or not the system or item is a force structure requirement.

(9) Whether or not the country's technology base can support the item.

(10) To what degree the system or item counters the country's threat.

(11) To what extent the system constitutes part of an appropriate force and systems mix.

(12) Logistical support that will be required (maintenance, parts, instruction, personnel, changes, or updates).

(13) What components are classified? What elements are critical? Does the system or do its components represent a significant advance in the state-of-the-art?

(14) What precedent exists for disclosure of this particular system? What other countries have this system? Are export versions available? Are comparable systems (foreign or domestic) using the same technology already in the marketplace?

(15) Can the critical technology resident in the system be reverse engineered? If so, what level of effort (in terms of time, funding, and manpower) is required based on the technological capability of the foreign recipient?

(16) Has the technology or information resident in one DON program been leveraged from another military department weapons program? If so, has the original DON or other military department weapons PM reviewed and rendered a recommendation on the request? The technology or information may not be listed as critical program information (CPI) for one program, but may be identified as CPI for another program.

(17) Are there any special considerations involved with the disclosure that requires coordination external to the DON?

(For example, COMSEC, low observable, and cryptologic information.) If so, have proper approvals been obtained?

(18) Will the disclosure of advanced technology, if compromised, constitute an unreasonable risk to the U.S. position in military technology and operational capabilities, regardless of the intended recipient?

c. The foreign recipient of the information will afford it substantially the same degree of security protection given to it by the United States.

(1) In most cases, this criterion is satisfied after the Departments of State and Defense have concluded a General Security of Military Information Agreement (GSOMIA), and other bilateral security arrangement, with various foreign governments. These security agreements or arrangements outline the responsibilities of both parties pertaining to the safeguarding of U.S. CMI. The existence of a security agreement or arrangement with a foreign government satisfies the security assurance requirement for that foreign government. In exceptional circumstances, fulfillment of U.S. interests may require disclosure of CMI to foreign elements without a formal agreement providing for adequate security protection. A disclosure of this nature may be authorized by Navy IPO after appropriate coordination with national agencies having a direct interest in the disclosure. If authorized, the foreign recipient will meet the following conditions:

(a) The information or acknowledgment of its possession will not be revealed to a third party, except with the prior consent of the U.S. originating department or agency.

(b) The information will only be used for specified military-related purposes.

(c) The recipient will report promptly and fully to U.S. authorities any known or suspected compromise of U.S. CMI disclosed to them.

(d) All individuals and facilities that will have access to CMI will have security clearances granted by their government at a level equal to that of the classified information involved and an official need-to-know.

(e) The foreign recipient of the information has agreed to abide by or meet U.S.-specified special terms and conditions for the disclosure.

(2) The foreign recipient has the capability and willingness to afford it substantially the same degree of security protection given to it by the USG. Guidance in determining a foreign government's capability and willingness to protect U.S. information may be determined by a U.S. embassy security assessment, CIA risk assessment, or NDPC security survey report.

d. Disclosures will result in benefits to the United States at least equivalent to the value of the information disclosed. Criterion considerations include:

(1) The U.S. obtains information from the recipient nation on a quid-pro-quo basis.

(2) The exchange of military information or participation in a cooperative project will be advantageous to the U.S. from a technical or other military standpoint.

(3) The development or maintenance of a high level of military strength and effectiveness on the part of the foreign government receiving the information will be advantageous to the USG.

e. The disclosure is limited to information necessary to the purpose for which disclosure is made.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX H
NDP-1 GENERAL DISCLOSURE LIMITATIONS & PROHIBITED DISCLOSURES

1. General. Disclosures of the following types of information will not be authorized by DON FDOs, except as specified below:

a. Classified or unclassified proprietary information, the intellectual property rights to which are owned or controlled by private firms or citizens (i.e., Small Business Innovation Research (SBIR), patents, copyrights, or trade secrets) will not be authorized, except with consent from legal counsel and Procuring Contracting Officer (PCO).

b. Low Observable/Counter Low Observable (LO/CLO) information or technology, except as approved through the LO/CLO EXCOM process, as specified in DoD Instruction S-5230.28, "Low Observable (LO) and Counter Low Observable (CLO) Programs (U)".

c. Naval Nuclear Propulsion Information (NNPI), except under an agreement negotiated pursuant to the Atomic Energy Act of 1954 or as required by DoD Directive 5230.11, "Disclosure of Classified Military Information to Foreign Governments and International Organizations."

d. Classified or unclassified proprietary information, the intellectual property rights to which are owned or controlled by private firms or citizens (i.e., patents, copyrights, or trade secrets), except with the owner's consent, unless such disclosure is authorized by relevant legislation, and then release will be subject to that legislation.

e. Classified Military Information (CMI) or Controlled Unclassified Information (CUI) officially obtained from a foreign source or other Foreign Government Information (FGI), except when the information has been conveyed by the source with the expressed consent to its disclosure further.

f. Combined military information without prior agreement of all applicable countries.

g. Joint information without prior agreement of all departments or agencies having control or jurisdiction.

h. Information about strategic war plans, contingency plans, or related plans, and concepts without prior coordination with the Chairman, Joint Chiefs of Staff (CJCS) and approval by the SECDEF or DEPSECDEF.

i. Information originated by or for any other department or agency without their consent.

j. Atomic information (RD/FRD) except pursuant to reference (a).

k. Military Intelligence information (Category 8), unless the FDO has been delegated disclosure authority for the disclosure of intelligence information, or has received approval in advance from the originating intelligence agency.

l. Communications Security (COMSEC) information unless authorized by the Committee on National Security Systems (CNSS) in accordance with reference (br).

m. Information that could give assistance to any foreign nation's ability to develop or acquire an independent ballistic missile delivery capability unless approved in compliance with the Missile Technology Control Regime (MTCR) in reference (am) via Navy IPO-01.

n. Information relating to the control of compromising emanations (TEMPEST) unless recommended by the Director, Naval Criminal Investigative Service (NCIS) and approved by Navy IPO-01.

o. Bibliographies of classified and unclassified documents and/or reference to classified or unclassified documents will be deleted from all information and material prior to release/ reference documents are subject to a disclosure review. This includes any referenced documents that are marked for public release.

APPENDIX I
NDP-1 CATEGORIES OF MILITARY INFORMATION

1. General. To facilitate the decision-making process for foreign disclosure, reference (a) divides CMI into one or more of eight distinct categories. For the purposes of the FDM, DON personnel may also apply these functional definitions to the identification and categorization of CUI as well to ensure consistency and as a baseline for disclosure decision making. Titles and definitions of each category are described below.

a. Category 1 - Organization, Training, and Employment of Military Forces. Military information of a general nature necessary to the organization of military, paramilitary, or irregular forces, to include those tactics, techniques, and tactical doctrine (including intelligence and counterintelligence) necessary to train and employ those forces. This category does not include specific technical data and training necessary to operate and maintain individual items of military materiel and munitions.

b. Category 2 - Military Materiel and Munitions. All military materiel, arms, and munitions procured and controlled by the USG for the equipage, operation, maintenance, and support of its military forces or of the military, paramilitary, or irregular forces of its allies. Items developed by U.S. private interests as a result of USG contracts or derived from technology paid for by the USG are included in this category. This category also includes information on technical data and training necessary to operate, maintain, or support specific military materiel, arms, or munitions.

(1) Build-to-print. Assumes the country receiving the information has the capability to replicate an item, subsystem, or component from technical drawings and specifications alone without technical assistance. Disclosure of supporting documentation (for example, acceptance criteria or object code software for numerical controlled machines) is permissible. Disclosure of any information that discloses design methodology, engineering analysis, detailed process information, or manufacturing know-how associated with the end item, its

subsystems or components is excluded. Build-to-print is not considered production information and will be handled through normal Category 2 technology transfer channels.

(2) Assembly information. Normally associated with hardware (parts or kits to be assembled, special tooling or test equipment to accomplish specific tasks) and information that allows assembly and testing of the finished product. Only top-level drawings will be disclosed. Detailed assistance is not to be provided, wherein such assistance would provide production or manufacturing techniques. Assembly information is not considered production information and will be handled through normal Category 2 technology transfer channels.

c. Category 3 - Applied Research and Development Information and Materiel. Military information resulting from the extension of fundamental theories, designs, and data from purely theoretical or experimental investigation into possible military applications, to include research, the construction and testing of prototypes, and such design changes affecting qualitative performance as may be required during the service life of an item. This also includes engineering data, general operational requirements, concepts, and military characteristics required to adopt an item for production. Development ceases when materiel has completed operational suitability testing or has for all practical purposes been adopted for military use or production. It includes tactics, techniques, and tactical doctrine pertaining to specific equipment not yet in production or yet approved for adoption by U.S. forces.

d. Category 4 - Production Information

(1) Manufacturing information. This includes the know-how, techniques, and processes required to produce or substantially upgrade military materiel and munitions. A manufacturing process or technique is a set of instructions for transforming natural substances into useful materials (metals, plastics, and combustibles) or fabricating materials into aerodynamic, mechanical, electronic, hydraulic, or pneumatic systems, subsystems, and components. Software source code, including related documentation that describes software or development know-how for a particular U.S. warfare system that has completed acquisition milestone B or documentation used for production thereof, is considered to be design and manufacturing

data and equivalent to Category 4 (production information). A manufacturing data package describes how to manufacture, test, and accept the item being produced and what tools are required. Types of manufacturing information include drawings, process sheets, wiring diagrams, instructions, test procedures, and other supporting documentation. Software source code and software documentation that contain or allow access and/or insight to classified algorithms or design rationale are considered to be manufacturing information. Unclassified software source code and software documentation that are required for minor software maintenance, interface and/or integration, or to make administrative changes to tables, symbols, markers, or displays will be handled through normal Category 2 technology transfer channels.

(2) Build-to-print and assembly information. See Category 2(a) and (b).

e. Category 5 - Combined Military Operations, Planning, and Readiness. That information necessary to plan, assure readiness for, and provide support to the achievement of mutual force development goals or participation in specific combined tactical operations and exercises. Includes installations located within the territory under jurisdiction of, or of direct concern to, the recipient foreign government or international organization.

f. Category 6 - U.S. Order of Battle. Information pertaining to U.S. forces located within territory that is under the jurisdiction of a recipient government or is otherwise of direct concern to a foreign government or an international organization. In general, authorization for disclosure is limited to U.S. order of battle in the recipient countries or in adjacent geographical areas.

g. Category 7 - North American Defense. North American Defense information is that which concerns plans, programs, projects, operations, and certain specific technical data pertaining to equipment directly related to North American defense, especially when it is originated by or under the mission and control of U.S. Northern Command (USNORTHCOM) or the North American Air Defense Command (NORAD). It includes but is not limited to:

(1) Plans and related documents prepared by combined U.S. defense agencies concerning the defense of the U.S.

(2) Plans and related documents prepared in combination with the Government of Canada, either bi-nationally (that is, NORAD) or bilaterally (that is, between USNORTHCOM and Canada Command).

(3) Plans and related documents prepared in combination with the Government of Mexico and the Government of the Bahamas.

(4) U.S. operational and logistics plans for employment of reserve forces.

(5) Information revealing a vulnerability to the defense of North America, or the vulnerability or official appraisal of combat readiness of any unit or facility, or the effectiveness of North American Defense systems.

h. Category 8 - Military Intelligence. Military intelligence comprises information of a military character pertaining to foreign nations and is subject to the criteria for disclosure of intelligence stated in the NDP-1.

APPENDIX J
REQUEST FOR EXCEPTIONS TO NATIONAL DISCLOSURE POLICY (ENDP)

General. Per reference (b), enclosure (5), requests for an exception to policy shall contain the following elements of information. (The paragraph numbers below are provided to assist in preparing an exception request.)

1. Provide a concise statement of the action proposed. Include security classification and categories of U.S. classified military information to be disclosed.

For example: "The OUSD(A) member, National Disclosure Policy Committee (NDPC), requests an exception to the National Disclosure Policy to permit the disclosure of SECRET Category 3 (Applied Research and Development Information and Materiel) information to the Government of _____ in support of the negotiation of a Data Exchange Agreement pertaining to surface-to-air missiles."

2. Provide a precise statement of why an exception to policy is required. For example, one or more of the following reasons may apply:

a. "An exception is required because the level of classified information involved exceeds the classification level delegated in Annex A of NDP-1."

b. "An exception is required because the proposed action is not in consonance with policy currently established in Annex B or C of NDP-1."

c. "An exception is required because certain (identify which) of the disclosure criteria or conditions listed in section II. of NDP-1 are not fully met."

3. An assessment of how each of the disclosure criteria and conditions in section II. of NDP-1 shall be met. For example:

a. "Disclosure is consistent with the foreign policy of the United States toward the Government of _____. This criteria is met by ... (provide further detailed discussion shall

be included to substantiate this statement. Reference shall be made to Presidential, National Security Council, or other high-level policy decisions to support the justification provided. A simple statement such as "the recipient cooperates with the United States in pursuance of military and political objectives" is not sufficient.)

b. "The military security of the United States permits disclosure." This criteria is met by ... (provide sufficient justification. If equipment or technology is involved, there must be a discussion on the result of a compromise on U.S. operational capability or the U.S. position in military technology. This discussion shall include an analysis of the state of the art regarding the technology involved, the susceptibility of the item to reverse engineering, the capability of the foreign recipient to reverse engineer the item, the foreign availability of the technology or equipment involved, and other governments to whom similar equipment or technology has been released.)

c. "The foreign recipient will afford the information substantially the same degree of security protection given to it by the United States." This criteria is met by ... (provide sufficient justification. If there has been an NDPC Security Survey for the proposed recipient, the conclusion reached therein shall be discussed. In the absence of an NDPC Security Survey, efforts shall be made to obtain, through intelligence channels, a counterintelligence risk assessment or security analysis of the foreign government's security capabilities. The mere statement that "classified information has been released previously to this government and there is no indication that such information has been compromised" is not sufficient.)

d. "Disclosures will result in benefits to the United States at least equivalent to the value of the information disclosed." This criteria is met by ... (provide sufficient justification, such as one or more of the following statements tailored to the specific case or set of circumstances involved in the exception request:

(1) The United States obtains information from the proposed recipient on a quid-pro-quo basis, and then describe the information and the value to the United States; or

(2) Explain how the exchange of military information for participation in a cooperative project will be advantageous to the United States from a technical or military capability viewpoint; or

(3) The development or maintenance of a high degree of military strength and effectiveness on the part of the recipient government will be advantageous to the United States, and then explain how.)

e. "The disclosure is limited to information necessary to the purpose for which disclosure is made." This criteria is met by ... (provide sufficient justification).

For example, if the purpose of the request is for the sale of equipment only, it shall be indicated clearly that research and development data or production know-how is not to be divulged or that documentation will be sanitized.

4. Any limitations placed on the proposed disclosure in terms of information to be disclosed, disclosure schedules, or other pertinent caveats that may affect NDPC approval or denial of the request. (If disclosures are to be phased or if certain information is not to be released, the phasing or non-releasable information shall be specified.)

5. A statement that the requested exception is to be either a continuing exception, subject to annual review, or a one-time exception. (A continuing exception usually is associated with a long-term project, such as a co-production program or military sale when the United States will be obligated to provide life-cycle support. A one-time exception typically is used for a briefing or demonstration or short-term training.)

6. The names and titles of U.S. officials accredited to the requesting foreign government or international organization with whom the proposed exception has been coordinated, as well as the views of the Theater Commander. (Sufficient time shall be allowed to obtain an opinion from U.S. Embassy personnel in-country and the responsible Theater Commander before submitting the request for approval. Many cases are delayed because a U.S. Embassy or Theater Commander opinion has not been obtained.)

7. The opinion of other interested Departments or Agencies if joint Service or shared information is involved. (If the information or item of equipment is of shared or joint interest, such as an air-to-air missile used by two Services or containing technology of concern to another Service, the views of the other party will be included.)

8. Any information not mentioned above that would assist the NDPC members, the Secretary of Defense, or the Deputy Secretary of Defense in evaluating the proposal.

9. The name and telephone number of a knowledgeable individual within the requesting organization who can provide additional technical detail or clarification concerning the case at issue.

10. The date a response is desired on the case. Ten full working days for NDPC case deliberations should be allowed. The suspense date (10 full working days) is computed starting from the first full working day after the date of the request.

APPENDIX K
TECHNOLOGY SECURITY & FOREIGN DISCLOSURE POLICIES AND PROCESSES

1. General. Special consideration must be given to possible intelligence, security, and special technology information policies established above the Service level and their disclosure implications. For example, separate authorization, as identified in NDP-1, must be obtained for the disclosure of COMSEC, cryptographic information, intelligence threat data, low observable and non-cooperative target recognition, and so on. Authorization to disclose these types of information must be obtained prior to initial discussions with a foreign government or their representative in accordance with the false impressions policy.

a. Low Observable/Counter-Low Observable Executive Committee (LO/CLO EXCOM). The LO/CLO EXCOM oversees technology development and progress of key LO/CLO programs to focus and direct efforts as necessary and resolve issues that arise as programs mature. The EXCOM also sets overall technical policy on the international transfer of LO/CLO information and capabilities, and coordinates exceptions to National Disclosure Policy when necessary. The EXCOM also establishes security guidelines to insure consistent application of security policy to protect critical LO/CLO technologies. These policies may, at times, exceed or modify DON policies as established by the TTSARB. DoD Instruction S-5230.28 provides threshold values for various signature control technologies and applications. When these thresholds are exceeded, a DoD technical review of the signature control aspects of the proposed export is required prior to it being licensed for export or disclosure. These threshold / tripwire values apply to a wide range of systems and their technologies.

b. Committee on National Security Systems (CNSS). The CNSS sets national-level Information Assurance policies, directives, instructions, operational procedures, guidance and advisories for United States Government (USG) departments and agencies for the security of National Security Systems (NSS). It provides a comprehensive forum for strategic planning and operational decision-making to protect NSS, and approves the release of INFOSEC products such as cryptologic national security systems technical security material, information, and techniques to foreign governments.

c. Anti-Tamper (AT). The U.S. Government reserves the right to incorporate AT technologies and methodologies in weapons systems and components that contain Critical Program Information (CPI) offered under any Security Cooperation Program.

d. Special Access Programs (SAP) and Sensitive Compartmented Information (SCI). In most cases, FDOs shall only authorize the disclosure of collateral U.S. CMI and/or CUI. They generally will not provide authorization for the disclosure of Special Access Programs (SAP) or Sensitive Compartmented Information (SCI), equipment, or systems without obtaining written disclosure approval from the office or agency with disclosure cognizance over such items. Foreign national special access security clearances passed through the Special Security Office (SSO) for SCI or DON Special Access Coordination Office for SAP channels does not, by themselves, constitute disclosure authorizations for SAP or SCI information, equipment, or systems.

2. Other Special Policies and Processes

- a. Defense Systems Committee (DSC)
- b. Missile Technology Control Regime (MCTR)
- c. Night Vision Devices (NVD)/Inertial Navigation Systems (INS)
- d. Intelligence (INTEL)
- e. Data Links/Wave Forms (WF)
- f. Positioning Navigation and Timing (PNT)/Global Positioning Systems (GPS)
- g. Geospatial Intelligence (GEOINT)
- h. Electronic Warfare (EW)

APPENDIX L
DELEGATION OF DISCLOSURE AUTHORITY LETTER (DDL) FORMAT

DON DDLs shall follow the format per reference (b) enclosure 4, except for the insertion of a new first paragraph that limits the disclosure of information contained within the DDL.

CLASSIFICATION LEVEL

DATE:

TITLE:

1. (U) THE CONTENTS OF THIS DELEGATION OF DISCLOSURE AUTHORITY LETTER (DDL) ARE NOT AUTHORIZED FOR DISCLOSURE TO FOREIGN PERSONNEL OR REPRESENTATIVES OF FOREIGN GOVERNMENTS.
2. (U) CLASSIFICATION. Identify highest classification of information to be disclosed.
3. (U) DISCLOSURE METHODS. E.g., oral, visual, or documentary.
4. (U) CATEGORIES PERMITTED. Specify National Disclosure Policy categories to be disclosed.
5. (U) SCOPE. Specify who is authorized to release material or information, and to whom disclosure is authorized.
6. (X) AUTHORIZED FOR RELEASE AND/OR DISCLOSURE. Describe materiel and/or information that can be released or disclosed.
7. (X) NOT AUTHORIZED FOR RELEASE AND/OR DISCLOSURE. Describe materiel and/or information that cannot be released or disclosed. (In addition to providing specific descriptions of releasable and restricted materiel and information, items 5 and 6 will also specify any conditions or limitations to be imposed; e.g., timephasing of release, allowable forms for software, identification of items releasable only as finished, tested assemblies, etc.)

8. (X) PROCEDURES. Specify review and release procedures, special security procedures, or protective measures to be imposed.
9. (U) REDELEGATION. Specify the extent of redelegation of authority (if any) permitted to subordinate activities.

APPENDIX M
SAMPLE DISCLOSURE REQUEST

1. General. The list of information described below follow from the requirements of chapter 3 of this manual. The parenthetical numbers at the end of each line item contains the paragraph reference from chapter 3 or other locations within this manual. Designated Disclosure Authorities (FDOs) may, at their discretion, modify this list to best fit their command and its activities. Secondary disclosure requests to the same country for items or information previously disclosed should only highlight the changes from the previous disclosure and how the changes remain within the applicable mission or exercise disclosure guidance; or for FMS the scope, foreign configuration, or technical limits of what is in their case or inventory.

2. Typical Disclosure Request Information

a. The source of the request (e.g., Program Office, another Service, a foreign government, or U.S. industry) (chapter 3, paragraph 3)

b. A general description of what is to be disclosed and any special disclosure methods requested (e.g., oral/visual) (chapter 3, paragraph 4)

c. The requesting or destination country (countries), and the goal and end-use by the receiving government(s). (chapter 3, paragraph 4)

d. The justification for the disclosure. (chapter 3, paragraph 4d)

e. The highest classification level involved in the disclosure and that the information is properly classified (e.g., follows from a Security Classification Guide). If applicable, state any differences in classification levels for hardware, software, documentation, operations and maintenance publications, etc. (chapter 3, paragraph 4c)

f. The date a disclosure decision is desired.

g. State the benefit to the United States Government for supporting this request. (Appendix G, paragraph 2e)

h. A statement that the disclosure is limited to the information necessary to satisfy the stated purpose of the disclosure. (chapter 3, paragraph 4)

i. Certification from the information originator or controlling authority, and any identified stakeholders, that they consent to the disclosure. (chapter 3, paragraphs 4a and 4b)

j. If amplification of the general description from above is necessary, and an attached file(s) does not provide the amplification, then provide precise and specific details about what is being requested for disclosure. State whether the item or information is state-of-the-art, currently operational or legacy technology; and whether the item is Commercial off-the-Shelf (COTS), commercial proprietary, or government-owned. State if Critical Program Information (CPI) is involved in the disclosure and how. If operational, state where it is used and if known, whether upgrades are in development or forthcoming soon. Also state the receiving government's requirement and how they will use the weapon/system/equipment. For FMS requests, only provide use information if the disclosure will change a capability or expand the scope of the current FMS case. (chapter 3, paragraph 4e)

k. If possible, provide an assessment about whether a higher classification level might be derived, or if technology may be able to be reverse engineered, or vulnerabilities discerned that might impede U.S. military operations or use, through the foreign government's operation of the item. (chapter 3, paragraph 5a(2))

l. Provide any known past disclosures, or any policies that may relate to the request (e.g., FMS case numbers and disclosure authorization numbers, or TTSARB decision memorandum numbers). Also provide any known past restrictions, configuration changes, or sanitizing requirements. (chapter 3, paragraph 4f)

m. A description of how the actual transfer will take place (to be included in the disclosure authorization). (chapter 3, paragraph 7a (2)(c)).

3. Classification. The following items should not be discussed, included in an unclassified disclosure request, or transmitted over an unsecure telephone line or unclassified electronic network:

a. Specific performance parameters for weapons, systems, or equipment such as speed, depth, maneuverability, vulnerability, limitation, countermeasures (CM), counter-CM, CM effectiveness (if classified by the applicable Security Classification Guide).

b. Export variants and any differences between those variants and the U.S. domestic version.

c. The association of one or more countries with one or more NDP-1 Categories and classification levels.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX N
FOREIGN DISCLOSURE & SECURITY ASSISTANCE RECORDS

1. General. Records created as a result of this instruction, regardless of format or media, must be maintained and dispositioned according to the records disposition schedules found on the Directives and Records Management Division (DRMD) portal page:
<https://portal.secnav.navy.mil/orgs/DUSNM/DONAA/DRM/SitePages/Home.aspx>
2. For questions concerning the management of records related to this instruction or the records disposition schedules, please contact your local Records Manager or the DRMD program office.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX O
USE OF THE FALSE IMPRESSIONS DISCLAIMER STATEMENT

1. General. Although it is preferable that all necessary disclosure approvals be obtained in advance of providing any information on a program or issue to a foreign representative, it is recognized that exceptions do arise.

a. Navy IPO-01 is the only approving authority for release of CMI that has not been fully vetted through the policy development process. Approvals of these requests are generally very conservative and normally only approved when Navy IPO-01 determines all disclosure authorizations are obtainable. Disclosures of this nature must be requested following the processes in Chapter 3, paragraphs 4 and 6, as well as this appendix. The justification and urgency of the request must be fully explained.

b. Disclosure of CUI, including CUI in support of a program or initiative involving CMI, may be approved for disclosure by the cognizant information owner if the recipient is a FVEY partner (that includes the USA, Australia, Canada, Great Britain, and New Zealand) OR if a non-FVEY partner is favorably included in a DON TTSARB decision.

c. Information approved via the above authorizations must contain a Disclaimer Statement as detailed in this appendix.

2. Marking Application. If approved, the material to be disclosed must contain a Disclaimer Statement detailed below. This Statement, including both paragraphs, must be used verbatim on either a cover sheet, or as the footer of the first sheet, or on the first presentation slide after the title slide (to allow an opportunity to read and explain the statement to the foreign audience and obtain acknowledgement), or for software on the CD/DVD label or jewel case used for distribution (preferably on both).

This [brief or document or information] contains references to U.S. Government military capabilities that may not be authorized for release to foreign governments. Mention of these capabilities in no way implies that the U.S. Government will release or consider release of them, or of any additional

associated classified or unclassified information pertaining to them.

This [brief or document or information] may also contain references to U.S. Government future plans and projected system capabilities. Mention of these plans or capabilities in no way guarantees that the U.S. Government will follow these plans or that any of the associated system capabilities will be available or releasable to foreign governments.

(bolding for emphasis only in this manual)

APPENDIX P
SANITIZING PROCEDURES

1. General. Documents often require text, charts, graphs, and even entire sections to be removed before being authorized by an FDO for disclosure to a foreign government. In the DON, this procedure is generally termed "sanitizing." The degree of sanitizing, or even if sanitizing is required at all, will be dependent on the content of the document and the releasable information to the destination foreign government. Additionally, certain special markings are required when documents are sanitized of technical or operational content to distinguish the sanitized copy from the U.S. domestic version. Markings are detailed in chapter 19 of this manual.

2. Development of Sanitizing Guidance

a. The development of sanitizing guidance, or instructions from a content owner to document editors directing the editing or removal of certain information from the document, is the most critical component of the sanitizing process. FDOs should mostly rely on the input of the content owners or technical or operational subject matter experts to develop this guidance, but may also develop the guidance themselves. A copy of the sanitizing guidance should be provided to the disclosure authority along with the sanitized information when requesting a disclosure authorization.

b. Sanitizing guidance formulation should use the staffing process described in chapter 4, paragraph 3a(1) of this manual and be based on applicable foreign disclosure policies and their technical limits (if any); or the foreign recipient's item configuration (either in-inventory or under a signed agreement); or as warranted under an international agreement or cooperative development program/project; or follow the stipulations in a U.S.-led operation/exercise tasking order; or a combination of these factors. If the information in the domestic version of the document is applicable in total to the U.S. operational requirement or the recipient's foreign configuration, then no sanitizing guidance is needed. But if it varies, then sanitizing will be required.

3. Reference Lists/Bibliographies/Footnotes/Endnotes. Source citations are often used to provide legitimacy to information

used in documents, publications, presentations, etc. However, citations from both classified and controlled unclassified sources may create false impression situations with foreign representatives when such technical sources are not known to be disclosed in-and-of themselves. FDOs should follow the guidance below when determining whether source citations should remain in material proposed for disclosure:

a. Classified citations should only be included in disclosed material when the sources are also known to be disclosed or when there are no concerns about identifying the source.

b. Citations to technical controlled unclassified information should only be included in disclosed material when the sources are also known to be disclosed, or when it is likely that individual source documents may be disclosed as written or with sanitizing. Consultations with subject matter experts may be required.

c. Citations to information properly authorized for public release do not require disclose reviews and may be included in disclosed material.

4. Casual Mention. The disclosure of information for equipment configuration(s) not in the foreign government inventory may be permissible when the cost and/or effort to remove the information is deemed unreasonable by the document originator, the cognizant subject matter experts other than the originator (if applicable), and the proponent of the disclosure, and the disclosure:

a. Does not exceed the technical parameters of applicable foreign disclosure policies for the receiving government; and

b. Does not provide the receiving government with technical knowledge about one or more weapons, systems or pieces of equipment that may themselves have policy limitations or specific foreign disclosure restrictions; and,

c. Does not allow the receiving government the ability to reverse engineer or gain knowledge of a U.S. configuration or capability not otherwise prohibited by policy; and,

d. Does not provide technical information including capabilities, characteristics, maintenance procedures unique to a configuration variant, block diagrams illustrating item/system interfaces, system functional schematics/diagrams, illustrated parts breakdowns (graphic and parts lists), test-troubleshoot-repair procedures, or other pieces of technical data not in the foreign inventory that have policy limitations or specific foreign disclosure restrictions.

(1) Examples of these types of associated or collateral disclosures, include, but are not limited to:

(a) System, component, or end item name (nomenclature), reference designator (e.g. AN/ARC-XXX(V)1, etc.), and part numbers, when the disclosed information does not contain any proprietary restrictions or would not provide insight into configuration variants or capabilities not specifically restricted by policy from disclosure.

(b) Support equipment designators or part numbers that does not provide an additional insight or capability beyond the intended purpose of the equipment.

(c) Common use or maintenance procedures that do not provide insight or capability information about a weapon, system, or equipment not in the foreign inventory or restricted by policy from disclosure.

(d) Military specifications and standards.

(e) Wiring configurations or bundles when they do not provide insight into weapons, systems, equipment, or capabilities that are restricted by policy from disclosure, or that do not provide insight into maintenance levels beyond what is authorized.

(f) Mounting points, or provisions for equipment that may be indicated in wiring diagrams, circuit breaker panels, placards, etc., when the provisions have not been

procured or are functionally inhibited by software, but not restricted by policy from disclosure.

(g) References to weapons or systems that may not fall precisely within the foreign configuration, but that are not restricted by policy from disclosure.

(2) Significant technical knowledge about the information in the document, as well as the applicable weapon, system, or equipment is generally required to make these determinations.

5. Use of Sanitizing Agents/Editors. Sanitizing agents/editors are the persons making the actual edits or redactions from the document. These persons may be the document owners, or persons delegated or designated to perform this function such as support contractors. Sanitizing agents should be technically knowledgeable of the content they are sanitizing; be proficient in using document editing software; and be able to understand and follow the sanitizing guidance provided to them. Required document sanitizing markings and instructions are contained in chapter 19 of this manual.

6. Sanitizing Funding. The development of sanitizing guidance as described above is an inherent governmental function, meaning it is a duty incumbent upon the United States to protect its information and should not be charged to a foreign government. However, the process of editing, rewriting, creating new or revised content, or redacting information from a document by a sanitizing agent using the guidance provided is for the sole benefit of the receiving government and should be charged to them.

APPENDIX Q
DEFENSE TECHNICAL INFORMATION CENTER DISCLOSURE REVIEWS

1. General. The Defense Technical Information Center (DTIC) is the central DoD activity for providing access to and facilitating the exchange of scientific and technical information. DTIC offers a wide variety of products and services designed to assist its users, including foreign entities, in obtaining the information they need. Although DTIC has no disclosure authority for DON information, they have established a streamlined process for the handling of disclosure requests for classified, unclassified, and limited distribution documents in the DTIC library collection for several closely allied countries including Australia, Canada, France, South Korea, the Netherlands, and the United Kingdom.

2. Procedure. DTIC uses "DTIC Form 55B" as the cover sheet for controlling the streamlined disclosure process, which includes:

a. DTIC forwards a copy of any classified or distribution statement limited documents to a DoD activity with cognizance over the document to coordinate a disclosure review.

b. The reviewing offices will follow the procedures in this manual to review the disclosure request and sanitize the document as necessary. If the reviewer is an FDO, then the disclosure may be approved at that level, recorded on the DTIC Form 55B and returned to DTIC. If the reviewer is not an FDO, or if denial is recommended, then the package should be forwarded to the cognizant FDO for action based upon the reviewer's recommendation and any sanitizing guidance.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX R
U.S./CANADA JOINT CERTIFICATION PROGRAM

1. General. The U.S./Canada Joint Certification Program (JCP) of December 1996 benefits both U.S. and Canadian defense and high technology industries by facilitating their access to unclassified critical technology in the possession or under the control of the U.S. DoD or Canadian Department of National Defence (DND). Certification under the JCP establishes the eligibility of a U.S. or Canadian contractor (or companies under foreign ownership, control or influence (FOCI) that have mitigated the FOCI and have received a Facility Clearance from the Defense Security Service (DSS)) to receive unclassified technical data governed in the U.S. by reference (bs) and in Canada by reference (bt). The U.S./Canada Joint Certification Office (JCO) is located at and managed at the Defense Logistics Services Center, Battle Creek, Michigan.

2. Certification Privileges

a. Direct Use. Both U.S. and Canadian contractors agree that as a condition of receiving DoD or DND controlled technical data, that they will only use the data in the ways described by reference (bs) or (bt), respectively. Once certified by the JCO, the contractor may:

(1) Request unclassified technical data controlled by the DoD or DND;

(2) Respond to U.S. and Canadian government defense-related contracts whose specifications involved unclassified technical data releasable only to JCP-certified contractors;

(3) Attend restricted gatherings where unclassified technical data are presented (i.e., symposia, program briefings, meetings designed to publicize advance requirements of the contracting agency, pre-solicitation, pre-bid, pre-proposal, and pre-award conferences); and

(4) Arrange unclassified visits directly with other JCP-certified U.S. or Canadian defense contractors or U.S. and Canadian military facilities, in accordance with JCO guidance.

b. Other Uses. JCP-certified U.S. and Canadian contractors may also access unclassified technical information for other legitimate business purposes which include:

(1) Providing or seeking to provide equipment or technology to a foreign government with the prior approval of the U.S. or Canadian Government, as applicable;

(2) Bidding or preparing to bid on a sale of surplus property;

(3) Selling or producing products for the U.S. or Canadian commercial domestic marketplace, or for the commercial foreign market place, providing that any required export license is obtained from the appropriate U.S. or Canadian licensing authority;

(4) Engaging in scientific research in a professional capacity for either of the two defense establishments; or

(5) Acting as a subcontractor for a concern described in (a) through (d) above.

3. Unclassified Visits to DoD Contractor Installations. The DoD also exempts certified Canadian contractors from the need to obtain approval from DoD for unclassified visits to DoD contractor installations to obtain unclassified military critical technical data. Canada's Industrial Security Program procedures also allow for direct contractor-to-contractor arrangements for such visits by U.S. certified contractors. As a result, JCP-certified U.S. and Canadian contractors may make visit arrangements involving only unclassified technical data directly with another JCP-certified contractor.

4. Transfer of Company Proprietary Information. The JCP does not authorize the transfer of company proprietary technical data that is not controlled by DoD or DND. Therefore, it does not govern private exchanges of industry-generated export-controlled technical data. In these cases, contractors must follow the guidelines established in U.S. or Canadian export control regulations, as applicable.

5. More information about the U.S.-Canada Joint Certification Program may be found at reference (bu).

APPENDIX S
OPERATIONAL DISCLOSURES SUPPLEMENTAL INFORMATION

1. General. This appendix contains a compilation of guides and helpful practices for use in operational foreign disclosure situations and scenarios. Users are encouraged to use and modify the guides as each situation requires, or submit additional guides for inclusion in this appendix if they might assist other commands or activities.

2. Ship Embarkations of Foreign National Visitors. Certain equipment, spaces or facilities may require sanitizing or other levels of protection while embarking foreign national visitors. A template for use as a starting point by security and or disclosure officials for foreign representative embarks is provided below. When filled in, portions of the final document may contain classified information; portion marks are provided where classification levels might be expected.

From: <Tasking Command>
To: <Hosting Command>
Cc: <Copies as required>
Subj: (x) Embarkation of Foreign National Visitor Foreign
Disclosure Guidance

Ref: (a) <Tasking from higher authority>
(b) The National Disclosure Policy (NDP-1)
(c) SECNAVINST 5510.34B
(d) SECNAV M-5510.1

1. (U) The contents of this document may not be disclosed or shared with foreign nationals, including foreign exchange (PEP) personnel. At the conclusion of this embark, lessons learned from the hosting command are requested including constructive criticism of this guidance, as well as recommendations (including recommended wording) for improvement.

2. (x) <Describe the tasking order, reference (a), including the unit tasked to host the visitor, and the date, time, and expected duration of the visit. Also describe the purpose of the embark (i.e., Exercise Coordination, Communication Liaison, Foreign Military Sales related, etc.) Additional references may be required. The objective is to provide the hosting command with a picture of why this person is being embarked.>

3. (x) <Name of the hosting command or activity> is authorized to disclose the information described below to the embarked foreign national up to the <classification> level. Disclosures should be limited to information or material related to the purpose of the embark. Information that may not be disclosed, including certain weapon or system-specific topics, is also detailed below. All disclosures shall be on an "oral/visual" basis only, meaning that they may see, hear about, or use disclosable items or information under U.S. supervision, but none of the information may be recorded or physically or electronically transferred to the visitor or their parent government. Training of the foreign national visitor is prohibited.

4. (U) Space Authorizations

a. (U) Unescorted access is authorized to <as necessary, such as topside spaces, the bridge, engineering, messing and berthing, or heads>.

b. (x) Escorted access, observation, or discussions about procedures, symbology, workstation assignments, and other process-related information is authorized for CIC, <other authorized access-controlled spaces> with the following precautions: <Insert precautions and restrictions as required, including whether items must be secured, covered, or protected to prevent disclosures of prohibited information or capabilities. Also include exercise events during which foreign nationals may be prohibited access.> Unescorted access to CIC, at any time, is not authorized.

c. (x) Non-system specific information necessary for effective foreign military coordination is authorized.

5. (U) Information Authorizations.

a. (x) <Include as lettered sub-paragraphs the specific types of information that may be found on or at the host facility or command that may or may not be disclosed. Sub-paragraphs might include tactical publications; equipment and technical publications; command, control, and communication systems; weapon systems and tactical links; or military intelligence products or systems.>

y. (U) Information originated by or for another DOD service or agency, or by another foreign government or NATO, is not authorized for disclosure without the specific approval of the originator.

z. (U) Access to information which bears restrictive caveats (NOFORN, ORCON, HCS, SCI, SPECAT) is not authorized. The absence of a "NOFORN" marking does not mean that the information is disclosable.

6. (U) U.S. personnel shall minimize references to classified documents (other than those U.S. and allied pubs specifically mentioned above as authorized) to avoid conveying a false impression that such documents might be disclosable to the foreign national or his/her government in the future.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX T
COMMON TYPES OF FMS CASES

1. General. Some of the most common types of FMS cases encountered by Foreign Disclosure Officer (FDOs) are Defined Order, Blanket Order, and Cooperative Logistics Supply Support Arrangement (CLSSA). These cases generally allow DoD to provide FMS purchasers the same kinds of defense articles and services used by U.S. Forces – subject to any disclosure limitations. Defined Order and Blanket Order cases are also routinely used to provide hardware or services to support commercial end items, obsolete end items, (including end items that have undergone system support buy outs) and selected non-U.S. origin military equipment. See reference (bv) for more information on these and other types of FMS cases.

2. Common Types of FMS Cases

a. Defined Order Cases or Lines. Defined Order cases or lines are commonly used for the sale of items that require item-by-item security control throughout the sales process or that require separate reporting. Items to be provided are stated explicitly on the LOA and include specific quantities (articles) or periods of performance (services). Scope is limited to the quantity of items or described services including specific performance periods listed on the LOA. The Implementing Agency (IA) places the orders with companies that manufacture the equipment or provide the requested service.

(1) Items Provided on Defined Order Cases or Lines. Significant Military Equipment (SME), and the related initial support package; explosives, including munitions; specific services; classified materiel (e.g., software) and Technical Data Packages (TDPs) are types of items normally provided under Defined Order cases. Defined Order cases or lines may also be used to provide specific services that are designated for a specific period of time. Major Defense Equipment (MDE) items must be identified clearly on the LOA with specific quantities and cannot be embedded in a line coded as non-MDE. Defined Order cases can also include Blanket Order non-MDE lines when no specific period of performance or quantity is identified for the support on those lines, and the intent is to use the lines until funds are exhausted.

(2) Items Not Provided on Defined Order Cases or Lines. Relatively minor, non-SME items that do not require intensive item-by-item control are not normally provided on Defined Order cases or lines except as part of an initial support package for a system or major end item (an end item is an assembled article ready for its intended use. Only ammunition, fuel or another energy source is required to place it in an operating state).

b. Blanket Order Cases or Lines. Blanket Order cases or lines are used to provide categories of items or services (normally to support one or more end items) with no definitive listing of items or quantities. Scope is limited to the specified item or service categories, and the purchaser specifies the case or line dollar value. The foreign purchaser normally submits its own requisitions. The preferred method is for purchasers to submit requisitions through the Security Cooperation Information Portal (SCIP).

(1) Items Provided on Blanket Order Cases. Types of unclassified, non-SME items or services that can be provided on Blanket Order cases or lines include spares and repair parts (consumables and repairables), support equipment (tools, test equipment), supplies (fuel, personnel items, commercial consumable items), maintenance (repair, rebuild, minor modifications or alterations), technical assistance (specialist advice or actions, site survey teams, system integration, item checkout, systems evaluation, study groups to develop engineering requirement plans, technical assistance teams), training, publications (forms, catalog data, technical order manuals, stock lists, reports, books, maps), unclassified software, and training aids. Classified publications, including technical manuals and reports, may be included on Blanket Order lines if they are disclosable to the requesting nation and if the conditions established in DSCA 5105.38-M - "Defense Security Cooperation Agency (DSCA) Manual" are met.

(2) Items Not Provided on Blanket Order Cases or Lines. Classified material, SME, commercial items more readily provided from in-country (e.g., lumber, sand, gravel, household goods), Technical Data Packages (TDPs), and ozone depleting substances are not provided on Blanket Order cases or lines.

c. Cooperative Logistics Supply Support Arrangements (CLSSAs). CLSSAs provide for pre-stock and storage of DoD-

stocked non-SME items that are needed and used by the FMS purchaser on a recurring basis. CLSSA LOAs reflect support for end items with no definitive listing of items or quantities, although items and quantities may be negotiated with the purchaser as part of the CLSSA management process. CLSSA programs consist of two separate cases: a Foreign Military Sales Order (FMSO) I case, and a FMSO II case. The FMSO I case provides for the purchase and sustainment of spare and repair parts in DoD inventory. The FMSO II case is used by the purchaser to requisition those spare and repair parts to replenish their in-country stock. Scope is limited by the LOA description of end items to be supported and dollar values of the FMSO I and II cases. FMSO I and II dollar values are based on the cost of forecasted requirements for the anticipated period of support.

d. Items Provided on CLSSA Cases. Centrally stocked or centrally managed spare and repair parts of defense systems common to purchaser and U.S. forces. CLSSA item eligibility is based on the Acquisition Advice Code (AAC) which identifies an item as centrally managed or centrally stocked.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX U
CHECKLIST FOR CUI DISCLOSURES BY FMS PERSONNEL

1. General. Approved FMS cases that have gone through a disclosure review prior to the signing by both parties of the LOA provides certain abilities to Program or Deputy Program Managers, and FMS Case Managers (or their designee) to disclose CUI where the information is within the scope, configuration, and technical limits of an active FMS case.
2. Procedure. To authorize the disclosure of CUI under the scope of an active Defined Order FMS case, the Program or Deputy Program Managers, and FMS Case Managers (or their designee) shall first use the checklist in this Appendix to validate their ability to disclose the information under consideration. All the criteria in the checklist must be met. If "No" is the answer for any single question in the checklist, the disclosure request must be forwarded to an FDO for their disclosure review and authorization (unless otherwise noted). When in doubt, consultation with the cognizant FDO is encouraged.
3. Adaption. The checklist in this Appendix may be adopted as a local command form or part of a local command standard operating procedure to document FMS case execution and/or recordkeeping.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

**CHECKLIST FOR FOREIGN MILITARY SALES PERSONNEL TO DISCLOSE
CONTROLLED UNCLASSIFIED INFORMATION TO FOREIGN GOVERNMENTS**

Date: _____

Name of Document: _____

FMS Case Number: _____

Approved Foreign Military Sales (FMS) cases that have gone through a disclosure review prior to the signing by both parties of the LOA provides certain abilities to disclose Controlled Unclassified Information (CUI) to Program or Deputy Program Managers, and FMS Case Managers (or their designees) where the information is within the scope, configuration, and technical limits of an active FMS case.

All the following criteria must be met before these individuals may disclose CUI to an FMS customer using this delegated authority. If "No" is the answer for any single question below, the disclosure request must be forwarded to an FDO for their disclosure review and authorization (unless otherwise noted). When in doubt, consultation with the cognizant FDO is encouraged.

1. Is the disclosure directly related to an active FMS Case?
☐ Yes ☐ No

Explanation: The request for disclosure must be official per chapter 3, paragraph 3 of the Foreign Disclosure Manual (FDM) and related to an active Letter of Offer and Acceptance (LOA) for a defined order FMS Case. Disclosures that may be "helpful" or "useful" to the FMS customer, but not directly related to the Case, may not be disclosed under this authority.

2. Is the information within the scope, configuration, and technical limits of an active FMS Case per Chapter 8, paragraph 6.a of the FDM?
☐ Yes ☐ No

Explanation: FDM Chapter 8, paragraph 5.c.(2) says "Special care shall be exercised to ensure that FMS case-related information and follow-on support (including training, documentation, and spare parts) to be provided are consistent with the

configuration approved by the DON and DoD for disclosure or export, or with equipment which is already in or approved for the country's inventory. Particular care must be exercised when a country has been provided an export or commercial variant of an item; documentation may have to be sanitized."

3. If sanitizing is required, has the sanitized product been tailored to the exact system and variant (if applicable), configuration, maintenance level, etc., of the item in the foreign inventory?

☐ Yes ☐ No

Explanation: The CUI must be related to a specific item, configuration, and/or maintenance level annotated in an active FMS case. Sanitizing requirements exist regardless of the media in which information, manuals, and other documents are to be released. Only information that meets the criteria of a casual mention or casual reference per paragraph 3 in Appendix P of the FDM may remain in the document when all the casual mention criteria are met.

4. Is the information unclassified?

☐ Yes ☐ No

Explanation: Information to be disclosed under this authority must not be classified and may not paraphrase, reveal, or when combined with other pieces of unclassified information, be compiled into a classified statement based on a current Security Classification Guides (SCG). Verification with a subject matter expert may be required.

5. Has the information been checked against the limitations and prohibitions in Appendix H of the FDM and found in compliance with these restrictions?

☐ Yes ☐ No

Explanation: Appendix H of the FDM contains the list of general disclosure limitations and prohibited disclosures. This includes unclassified proprietary information or intellectual property rights (except with the owner's consent).

6. Has consent been received from the information's originator or controlling authority, and when applicable, from other originators or controlling authorities for information used in the document, but not under the cognizance or control of the originator?

☐ Yes ☐ No

Explanation: Chapter 3, paragraphs 4b and 6d of the FDM provide guidance on Stakeholder's Consent for information used in a document that is not under the direct cognizance of the documents owner or controlling authority.

7. Is the information and media (CD, PCMCIA Card, etc.) properly marked with distribution statements, export control warnings, and the Conditions for Foreign Use statement?

☐ Yes ☐ No

Explanation: Distribution statements, export control warnings, and the Conditions for Foreign Use statements must be properly applied to ensure information is clearly marked with guidance to the receiving government. See chapter 19, paragraphs 2 and 4 of the FDM for disclosure marking guidance. Further marking guidance may be obtained from the originator or command information security personnel.

Certified by:

Date:

Title of Certifier:

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX V
TYPES OF INTERNATIONAL AGREEMENTS

General. The four primary types of DON International Agreements (IAs) are:

a. Acquisition IAs. These agreements involve the cooperative research, development, production, in-service support, test and evaluation, and loan of defense items. Acquisition IAs include Memoranda of Understanding or Agreement (MOU/MOA) and Project Arrangements (PA) executed under umbrella or framework MOU/MOAs.

b. Operational IAs. These agreements involve cooperative operations such as joint exercises, logistic support arrangements; military information and personnel exchange, and health and medical agreements. Operational MOU/MOAs are typically originated by the cognizant CNO sponsor or fleet representative, vetted through the CNO International Engagement Division, and reviewed by Navy Judge Advocate General (JAG) International Law.

c. Information Exchange Program (IEP) IAs. IEPs are implemented through a bi-lateral or multi-lateral MOU or MOA. These MOU/MOAs involve two types of military information: (1) RDT&E information processed by Navy IPO-01C, and (2) operational information processed by CNO International Engagement Division and Navy JAG International Law. Both RDT&E and operational IEP annexes are coordinated with IPO-01D for a disclosure review and issuance of a DDL.

d. Personnel Exchange IAs. These MOU/MOAs involve cooperative exchange of personnel that include Foreign Liaison Officers (FLOs), Cooperative Program Personnel (CPP), Military Personnel Exchange Program (PEP), and Engineer and Scientist Exchange Program (ESEP).

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX W
COOPERATIVELY-GENERATED INFORMATION MARKINGS

1. General. Project information developed or released for distribution to participants that fall within guidelines for designation as Classified, Controlled Unclassified Information (CUI), For Official Use Only (FOUO), or dissemination controlled Unclassified information (below the RESTRICTED level) may contain a "Project Distribution Marking" at the bottom of the first or cover page of the document. This marking may replace the U.S. Distribution Statement on project documents if authorized for use by the participants via their Project Security Instruction (PSI).

a. General Content. The Project Distribution Marking will indicate that the document contains project information; the countries to whom primary distribution is authorized; the authority for its distribution; and the contact information if further dissemination is requested. The three-letter country codes or identifiers used in these markings are derived from the Geopolitical Entities, Names, and Codes (GENC) Standard. GENC is the U.S. Government profile of ISO 3166 Codes for the representation of names of countries and their subdivisions. It specifies an authoritative set of country codes and names for use by the Federal Government for information exchange, using ISO 3166 (Parts 1 and 2) names and code elements wherever possible, with modifications only where necessary to comply with U.S. law and U.S. Government recognition policy. This list may be found online at <https://nsgreg.nga.mil/genc/discovery>.

b. Insufficient Space for Marking. If there is insufficient space for the entire Project Distribution Marking, it may be shortened to "[name of project] Project Distribution Marking" and the full text of the statement provided on the inside front cover, inside title page, or as an attachment to the document.

2. Project Distribution Marking. Project Distribution Markings acceptable by the U.S. Designated Security Authority in prior PSIs led by DON organizations are detailed on the following pages. Each marking begins with the reasons for use, then provides the wording and format for the marking itself. Use of these markings by any project as part of their PSI (normally as

an Appendix) is subject to the concurrence of the participating nations' National or Designated Security Authorities as part of the PSI approval process.

Do not indent the Project Distribution Marking when using it in an actual document. The paragraph indentations shown are only for emphasis herein. Distribution markings should be aligned to the left margin in actual documents, and span from the left to right margins.

a. Technical and Controlled Non-Technical Documents Uses. This Project Distribution Marking is for (1) documents (including emails) or presentations that contain technical information or data that include such items as engineering drawings, engineering data and associated lists, standards, specifications, technical manuals, technical reports, technical orders, blueprints, plans, instructions, computer software and documentation, catalog-item identifications, data sets, studies and analyses, and other technical information that can be used or be adapted for use to design, engineer, produce, manufacture, operate, repair, overhaul, or reproduce any military or space equipment or technology concerning such equipment; (2) all classified information; and (3) non-technical controlled or official use only information that is generally protected by the Participants per the SCG from public disclosure, such as programmatic information, budgetary information, and other non-technical information.

For classified documents, the last sentence of the Project Distribution Marking may be deleted. Classified information is not authorized for public release. (Shown indented only for ease of identification.)

[name of project] PROJECT INFORMATION
DISTRIBUTION TO [participant tri-graphs in alphabetical order]
Distribution authorized to DOD/MOD Components and Agencies of the above identified Participating Governments in the [short name of MOU], and their designated contractors, for administrative or operational use, and export control. Further distribution only as directed by the Project Manager, [name, city and state of project office], USA. This information is not authorized for public release.

b. Government Only, Technical or Controlled Non-Technical Uses. This marking is for documents that are for Government Use Only, such as contractual documents, solicitations, bid proposals, or information that contains Intellectual Property or Company Proprietary Information that is only releasable by (or with the direct approval of) the owner, regardless of classification.

For classified documents, the last sentence of the Project Distribution Marking may be deleted. Classified information is not authorized for public release. (Shown indented only for ease of identification.)

[name of project] PROJECT INFORMATION (Government Only)
DISTRIBUTION TO [participant tri-graphs in alphabetical order]

Distribution authorized to DOD/MOD Components and Agencies of the above identified Participating Governments in the [short name of MOU], for administrative or operational use, and export control. Further distribution only as directed by the Project Manager, [name, city and state of project office], USA. This information is not authorized for public release.

c. Project Arrangement or Working Group Technical Documents Uses. This marking is for documents, regardless of classification, that are part of a Project Arrangement (PA) or a subgroup of the entire group of Participants.

For classified documents, the last sentence of the Project Distribution Marking may be deleted. Classified information is not authorized for public release. (Shown indented only for ease of identification.)

[name of project] PROJECT INFORMATION
DISTRIBUTION TO [PA participant tri-graphs in alphabetical order]

Distribution authorized to DOD/MOD Components and Agencies of the above identified Participating Governments in the <name of PA or Subgroup> under the [short name of MOU], and their designated contractors, for administrative or operational use, and export control. Further distribution only as directed by the Project Manager, [name, city and

state of project office], USA. This information is not authorized for public release.

Or

[name of project] PROJECT INFORMATION (Government Only)
DISTRIBUTION TO [PA participant tri-graphs in alphabetical order]

Distribution authorized to DOD/MOD Components and Agencies of the above identified Participating Governments in the <name of PA or Subgroup> under the [short name of MOU], for administrative or operational use, and export control. Further distribution only as directed by the Project Manager, [name, city and state of project office], USA. This information is not authorized for public release.

d. Distribution Marking for New or Revised MOU or Project Arrangements. For newly created, amended, or revised Memorandums of Understanding (MOUs) or Project Arrangements (PAs) where one or more Participants express a desire to place distribution limitations on its content, the following distribution marking is recommended. However, because an MOU is a superior document to this PSI, MOU negotiators may modify this distribution marking as necessary to comply with Participant's desires. (Shown indented only for ease of identification.)

[name of MOU] INFORMATION - CONTROLLED UNCLASSIFIED
INFORMATION

DISTRIBUTION TO [participant tri-graphs in alphabetical order]

Distribution authorized to agencies of the above identified Governments who are signatories to the <name of the MOU> (as amended) for administrative or operational use. Further dissemination only as directed by Project Manager, [name, city and state of project office], USA. This information is not authorized for public release.

APPENDIX X
FOREIGN STUDENT TRAINING DISCLOSURE REVIEW PROCESS

1. General. Navy and Marine Corps training course instructors and/or curriculum development personnel may be requested to provide information about their courses to Department of the Navy foreign disclosure officials in order for them to review their courses for possible foreign student attendance. This Appendix provides course instructors and/or curriculum development personnel background information on the foreign disclosure review process and foreign student attendance requirements.

2. Basic Information About Foreign Disclosure. Foreign disclosure is a term used to describe the regulations, policies, procedures and processes used to determine when U.S. DoD classified or controlled unclassified information (CUI) may be disclosed to a foreign government or any of its representatives. Foreign disclosure approvals are made by "Foreign Disclosure Officers" (FDOs) that have been given official correspondence from the Deputy Assistant Secretary of the Navy (International Affairs)/Director, Navy International Programs Office (IPO) providing them this authority. Some FDOs may delegate their authority to subordinate organizations to localize the decision process relative to the sources of disclosure requests, such as Foreign Military Sales (FMS) Case Managers or major operational commands. In any case, no classified information or CUI may be disclosed to a foreign government or representative unless approved for disclosure by an FDO.

3. Curriculum Information Requests. Course instructors and/or curriculum development personnel may be requested to provide information to an FDO for them to evaluate the course against National, DoD, and Navy or Marine Corps foreign disclosure policies for the country(ies) requesting training. Their evaluation will strive to determine if the material contained in the course falls within the policy guidelines or if not, they will provide guidance on what must be removed before foreign student attendance.

a. Basic Information Requested. The basic information that FDOs typically request include:

- (1) Military Articles & Services List (MASL);
- (2) Location;
- (3) Highest classification level of information presented in the course;
- (4) Latest course version number and date of latest update; and
- (5) Brief course description and list of overall course objectives.

b. Specific Curriculum Information Requested. Course curriculum information that FDOs typically request include:

(1) Publications used or referenced in building the curriculum. Include the long and short title of each publication (pub); the pub version and date; whether the pub is physically used by the student (Y/N); the classification level of the pub (S, C, U); the sections referenced or used in the course, if not the entire pub; the originator of the pub (found in the Distribution Statement); and the pub's importance to accomplishing the course objectives (critical, necessary, optional). This information may be easily compiled in a spreadsheet format.

(2) Training aids, such as computer-based trainers, simulators, or training tools used in the course. Include the following:

- (a) Name of the training aid;
- (b) Whether the aid is physically used by the student (Y/N);
- (c) The classification level of the aid (S, C, U);
- (d) The aid's importance to accomplishing the course objectives (e.g., critical, necessary, optional);
- (e) (When applicable) A description of the training scenario(s); and

(f) (When applicable) A summary of the mission and intelligence databases used to create the scenario(s).

(3) Any equipment used in the course. Include the following:

(a) The name and nomenclature (AN/XYZ-44 MK1 Mod 0);

(b) Whether the equipment is physically used by the student (Y/N) The classification level of the equipment (S, C, U); and

(c) The equipment's importance to accomplishing the course objectives (e.g., critical, necessary, optional).

(4) The technical points of contact for (2) and (3) above.

(5) Any other items used in the course, with similar classification, use, and vitality information.

4. Interpretation and Use of Course Disclosure Authorizations. The course Delegation of Disclosure Authority Letter (DDL) or CUI disclosure authorization will contain information about the countries authorized to attend; the highest classification level of information that may be disclosed during the course; specific information that may be disclosed; specific information that may not be disclosed; and any special instructions that might be necessary.

a. Implementation. The most difficult aspect of implementing the disclosure authorization is applying any restrictions on the use of references. For example, the DDL may indicate that Chapter 4, paragraphs 4.5 - 4.9 of a particular pub are not disclosable. To implement that restriction, the instructor or curriculum developer must go to the particular pub, look up paragraphs 4.5 - 4.9, and determine (1) how that information is used in the course, and (2) how they might sanitize that information from the course workbook, projector slide set, and instructor guide.

b. Instructor Guide Notations. If the course is scheduled as a combined U.S. and foreign students, the instructor must use the DDL to annotate their instructor guide to know when the

foreign students may need to be dismissed from the classroom in order to present the non-disclosable information to the U.S. students.

5. Foreign Student Notes

a. SECNAV M-5510.1, chapter 10, paragraph 10c provides guidance regarding foreign student notes.

b. Student Notes. Student notes (which may be written in any language) and other training material (unclassified or classified that falls within the disclosure authorization) may be returned to the student at the conclusion of the training course as described below.

(1) At the discretion of the commanding officer of the training activity, student notes derived from unclassified courses will either be given to the student or be forwarded directly to an address designated by the student. Postage is the responsibility of the student or his or her government.

(2) Student notes derived from classified courses will be reviewed and marked by the DON training provider with the appropriate U.S. security classification markings. Student notes that cannot be reviewed because they are written in a foreign language should be marked with the highest classification of information released during the course. All classified materials will be conspicuously marked by stamp, or other means, to indicate the (1) highest classification of included material, (2) date review completed, (3) name and rank of reviewing official, (4) name of cognizant activity, (5) training course involved, and (6) student's name and service. After being marked appropriately, the classified material will be forwarded directly to the SAO in the student's parent country for further transmittal to the foreign government. In the case of ship's crew training, classified student notes may alternatively be delivered directly to the ship. All students will be cautioned that classified notes must be safeguarded in a manner appropriate to the classification. Classified material, which contains COMSEC information, must be forwarded via Commander, Naval Security Group (COMNAVSECGRU) who will forward the material to the appropriate in-country authority."

APPENDIX Y
STANDARD FVS DISCLOSURE GUIDANCE STATEMENTS

1. General. This Appendix provides standard statements for use by DON personnel designated as Offices of Primary Responsibility (OPRs) in the foreign disclosure guidance section of the Foreign Visit System (FVS). They are consistent with the procedures and guidelines provided throughout this manual. OPRs may deviate from the standard phraseology when they deem necessary.

2. Standard Statements. OPRs should include the following statements in the disclosure guidance section of the FVS as applicable for visits to DON commands or activities. When these statements (without quotation marks) are used in conjunction with a specific foreign visit, or modified with more specific disclosure guidance, they may constitute CUI or FOUO.

"THE RECIPIENT OF THIS VISIT APPROVAL NOTIFICATION IS REQUIRED TO DISSEMINATE THE DISCLOSURE RESTRICTIONS CONTAINED HEREIN TO THE U.S. PERSONS THAT WILL ACTUALLY HOST OR CONDUCT THIS VISIT."

"THE FOLLOWING DISCLOSURE GUIDANCE IS NOT RELEASABLE TO FOREIGN NATIONALS."

"Disclosures made by hosting U.S. personnel during the foreign visit should be limited to oral/visual only. Oral/visual is defined as to brief orally and/or expose to view in order to permit the transfer of knowledge or information. The physical transfer of documents, software, materials, or hardware to a foreign government or its representatives is not authorized."

"The information disclosed during this visit shall be limited to only that information necessary to meet the requirements and scope of the program identified in the visit request, and/or the stated purpose of this visit. The information must have been either previously approved for disclosure to (name of country), or if not previously approved, reviewed by a Foreign Disclosure Officer (FDO) within your chain of command and subsequently approved for disclosure to (name of country)."

"If the permanent transfer of documentary or electronic material is required, other than that information which has been approved for public release by appropriate officials, an FDO within your chain of command must approve the disclosure."

"Visitors must be escorted at all times and in compliance with local security procedures."

"It is the host's responsibility to ensure U.S. personnel who may encounter the visitor(s) are aware of these disclosure requirements, and that work spaces are sanitized to prevent the inadvertent disclosure of CMI or CUI. The full scope of host responsibilities can be found in the DON Foreign Disclosure Manual at Appendix Z."

3. Visit-Specific Statements. The following statements may be used for specific foreign visit request circumstances.

a. Returned Without Action. This statement should be used (without quotation marks) when the requesting embassy did not provide a certification of one or more visitor's security clearance when the visit request is for a classified visit.

"Returned without action. The Certification of Security Clearances section has not been completed and therefore this foreign visit request cannot be processed. Requests for access to U.S. classified information or controlled unclassified information must have security assurances provided by the requesting Embassy. Please complete the Certification of Security Clearances section located under the Embassy Security Information section and resubmit this visit request as soon as possible."

b. Conditions Applicable to Non-Sponsored Visits to Commercial Facilities. This statement should be used (without quotation marks) when the requesting embassy is requesting a classified visit to a commercial facility, and the visit is outside of a DON-sponsored contract with the facility.

"This visit is not sponsored by the U.S. Government. Should the facility decide to conduct the visit in the absence of U.S. Government sponsorship, the facility must comply with the International Traffic in Arms Regulations (ITAR) and the National Industrial Security Programs Operating Manual (NISPOM). The facility may only display and discuss information authorized for export to the foreign visitors in this request by a current U.S. export license or appropriately applied exemption, or previously approved by proper authorities for public release.

SECNAV M-5510.1
24 Jun 2019

"This approval does not constitute a U.S. Government certification of any exemption of the ITAR. It is the facility's responsibility to ensure that all disclosure of information by its employees is in compliance with the ITAR."

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX Z
ONE-TIME AND RECURRING VISITS HOST COMMAND RESPONSIBILITIES

1. General. The responsibilities outlined below are best practice recommendations and are not directive in nature. Local commands may adopt these recommendations, but should also develop their own foreign visit regulations that accommodate their own unique set of circumstances and security needs.

2. Foreign Visit Host/Coordinator. The Foreign Visit Host/Coordinator is responsible for controlling the activities of the foreign visitor(s) during their visit, and for ensuring that the disclosure of CMI and/or CUI strictly conforms to that approved by the visit approving authority (Office of Primary Responsibility (OPR)). The Foreign Visit Host/Coordinator may or may not be the "knowledgeable U.S. person" in the Foreign Visit Request (FVR), especially if the visit is submitted to a headquarters command and the visit is to be conducted at a field facility. The job responsibilities described herein are for the Host/Coordinator at the field facility.

a. Basic Responsibilities. Foreign Visit Host/Coordinator must be provided a copy of the visit authorization prior to the visit and should verify with the OPR, via chain of command, that the list of visitors is current (including amendments). They must fully understand the disclosure limitations of the visit; appointing eligible personnel to serve as escorts; ensuring any reportable behaviors or activities noted by escorts are reported to the security manager and OPR in a timely manner; and coordination with security for base access and other physical security requirements. The training requirements for one-time and recurring visit Foreign Visit Host/Coordinators, if any, shall be established by local command regulations.

b. U.S. Team Coordination. Foreign Visit Host/Coordinator must brief all personnel on the U.S. side encountering the visitors (in an official capacity) of the specific disclosure authorizations during the visit. This is necessary to ensure that inadvertent or unauthorized disclosures are not made.

c. Visit Route Dry Run. Foreign Visit Host/Coordinator should dry-run the visit route to ensure that they are not exposed to operations, maintenance activities, or laboratory,

office, or computer facilities or wall posters that may contain non-disclosable information or discrete photo opportunities.

3. Visitor Escort Responsibilities. An "escort" is an individual designated to accompany a visitor(s) as a matter of protection, guidance, or courtesy. The escort function is designated by local command security policies and regulations, but as a matter of consistency for foreign disclosure-purposes, escorts should be government employees or on-site contractor support personnel. The Foreign Visit Host/Coordinator and escort may be the same person for visits consisting of only a few personnel (per local regulations).

a. Visit Disclosure Limits. Escorts must be briefed and become thoroughly familiar with the disclosure authorization, limitations, and any other terms or conditions included in the foreign visit request or associated foreign disclosure guidance.

b. PEPs, FLOs, or CPPs as Escorts. Foreign nationals assigned to a command under an exchange, liaison, or cooperative program, or as a contractor should not serve as official foreign visit escorts.

APPENDIX AA
EXPORT LICENSE REVIEW GUIDANCE

The following are issues to consider when DON subject matter experts are requested to review export licenses, Technical Assistance Agreements (TAAs), or Manufacturing Licensing Agreements (MLAs) for protection of DON, DoD, and national equities. These issues may not be all-inclusive.

1. What are the basic elements of the license: Country, commodity, end-user and end-use?
2. What does the applicant propose to do? Is there any ambiguity in the request?
3. What end uses for the item/technology might exist other than the stated end use in the submission? Does the applicant address these end uses?
4. What is the relevant or current DON or DoD policy? Does the transfer relate to a recently fielded capability and/or a Program under development? If no policy is in place, is the export request premature (i.e., trying to circumvent the DON or DoD policy creation process)?
5. Has DON/DoD reviewed previous licenses for exports of similar technology (or licenses from this exporter)?
6. Does the applicant explain what they are not doing? For example, an item may have two or more configurations or uses, but the exporter is only providing one configuration or use solution.
7. Is the information provided by the applicant verifiable? Is it accurate?
8. Did the applicant explain how the vendor or end-user will maintain control of the item (if controls are warranted)?
9. What provisos have been applied to previous licenses for this technology? Were any of these provisos incorporated (or updated) into the Navy recommended position?

10. How does the proposed export relate to (or impact) U.S. Navy or Marine Corps "equities"? (i.e. ongoing or emerging programs)
11. Is the scope of the license validated by the stated end-use (i.e., does the proposed transfer in any way exceed the type/level of technical data/defense services required to support the stated end-use)?
12. Does any possibility exist for the release of information outside the stated scope of the export request? If so, how does the applicant propose to prevent that?

APPENDIX BB
DEPARTMENT OF THE NAVY PROCEDURES FOR GOVERNMENT-SPONSORED
ITAR EXEMPTIONS

1. General. DON organizations interested in sponsoring exemptions to support contractor activities (including prime contractors, subcontractors, vendors, and support service providers) in support of DON procurements, operations, and international programs must make a formal request in writing to Navy International Programs Office (IPO-01A). Routine certifications require a two-week notification in order to process. Navy IPO should be notified at the earliest possible point for planning purposes.

2. Content of Exemption Request

a. DON organizations interested in sponsoring an exemption are encouraged to contact Navy IPO's Exemption Certifying Official (IPO-01A) to ensure applicability of the exemption prior to submission of the formal request.

b. All such requests must be coordinated with export compliance personnel representing the contractor and processed via the appropriate System Command (SYSCOM) Security Office (or equivalent) in order to obtain a disclosure review, and must include the following information:

(1) Identification of the exporter of record (the person or company that will claim the exemption). The exporter must be registered with the Directorate, Defense Trade Controls (DDTC) at the State Department - registration is a key requirement for a company's eligibility to export military articles in accordance with 22 CFR 122.1 of the ITAR. Contact information for the company's empowered official (name, address, phone, email), together with the DDTC registration code for the exporter of record, must be provided.

(2) Identification of the end user of the export. DON does not have the authority to certify exemptions when the end user is a non-government entity. Note: use of the 125.4(c) exemption (quote or bid proposal) requires Navy IPO's coordination with Defense Technology Security Administration (DTSA) and the Directorate of Defense Trade Control (DDTC) to ensure a process is in place to evaluate the end-user(s).

(3) Identification of the hardware, technical data, and/or defense services to be exported - these must be identified by ITAR category and subcategory. The request should provide a copy of all briefings, documents or information to be disclosed by the company. A detailed description of the subject matter (including the NDP-1 category and highest classification of the information involved) may be forwarded if it is impractical to attach all of the actual briefings, documents, or information. In either case, a statement signed by the appropriate foreign disclosure office that the material is authorized for disclosure will be required (SYSCOM Security Office endorsement). A completed copy of a DSP-83 - Non-transfer and use assurance - must be provided by the exporter of record for the export of significant military equipment and classified articles including classified technical data, in accordance with 22 CFR 123.10.

(4) Reason for the export (e.g., cite Letter of Offer and Acceptance (LOA)) number, Memorandum of Understanding (MOU) title, or contract number that the request supports) and the end use.

(5) Urgency of the request (e.g., critical program milestones/decision process) pertinent deadlines, and specific benefits to the U.S.

(6) Identify any export license that the exporter may either have and/or recently submitted in relation to the activity addressed in the proposed exemption certification request to include the most current status of the submission if license is undergoing processing by DDTC/DTSA. If possible, provide Navy IPO with a copy.

(7) Proposed conditions and limitations to establish a clearly defined scope for defense articles, services and technical data authorized for export and any handling, control or accountability measures deemed necessary. Identify any related Technology Transfer Security Assistance Review Board (TTSARB) Decision Memorandum or Delegation of Disclosure Letters (DDL) if applicable.

3. Disqualifying Criteria. Exemptions WILL NOT be certified solely for the benefit of the exporter; or when exports require Congressional notification or is controlled by the Missile

Technology Control Regime; or for offshore procurement / production of defense articles; or for exports to prohibited / embargoed / sanctioned / denied persons destinations or entities.

4. Evaluation. All contents/statements presented in the exemption checklist will be evaluated in coordination with contractor personnel responsible for export compliance. Navy IPO 01A acknowledges that compliance with U.S. export control laws is ultimately the responsibility of the exporter of record.

5. Certification Letter. Once processing of the exemption certification is complete, Navy IPO-01A, the Exemption Certifying Official, will provide a certification letter authorizing use of an export exemption to both the exporter of record and the DON organization sponsoring the exemption request.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

APPENDIX CC
DEPARTMENT OF THE NAVY PROCEDURES FOR
GOVERNMENT-SPONSORED EAR EXCEPTION "GOV"

1. General. The "GOV" exception provides a waiver to the licensing requirements set forth in the Export Administration Regulations (EAR). Contractors who desire to use this waiver must, upon application, receive a written authorization from the DON activity with cognizance over the program.
2. Appropriate Uses. DON activities may issue a letter of acknowledgement to requesting contractors in support of
3. Evaluation. All contents/statements in the Government Exception Supporting Checklist within this Appendix should be evaluated based on the content provided by the contractor. Questions shall be coordination with contractor personnel responsible for export compliance. The DON activity evaluating the requests must acknowledge and understand that compliance with U.S. export control laws is ultimately the responsibility of the exporter of record and not the DON.
4. Certification Letter. Once processing of the exception certification checklist is complete, the DON activity with cognizance over the program will provide a certification letter using the template within this Appendix authorizing the use of an export exception to the exporter of record with copies to the Contracting Officer's Representative (COR), the Systems Command Security Office, and the Navy IPO Export Directorate (IPO-01A).

Government Exception Supporting Checklist

- to be used by the cognizant DON authority when assessing requests for issuance of a letter of acknowledgement for use of the GOV Exception pursuant to § 740.11 of the Export Administration Regulations -

Requirement*		Provided	
		Yes	No
<i>Items 1 through 14 address information being provided by the contractor requesting the letter of acknowledgment</i>			
1.	The request is for an export associated with one of the following: execution of cooperative programs, execution of foreign assistance or sales program, execution of Acquisition and Cross Servicing Agreements		
2.	The written request has been signed by the company's Empowered Official or equivalent POC		
3.	The written request has identified end user(s) (i.e., recipient(s) of the export by name and physical address and includes an acknowledgement that the entity (-ies) has/have been vetted against applicable lists		
4.	The GOV Exception requested has been clearly identified by applicable paragraph		
5.	The ECCN(s) has/have been properly identified		
6.	The rationale supporting the use of the GOV Exception has been clearly stated		
7.	The scope of export(s), reexport(s), and transfer(s) has been clearly stated and a detailed description of the hardware, software, technology (inclusive of technical data and technical assistance) has been included in the written request together with a statement that explains how their transfer is pursuant to the DoN-sponsored program/requirement		
8.	The written request contains a statement validating that the request is not contrary to any of the restrictions on the use of exceptions, to include the GOV Exception, including, but not limited to those stated in § 740.2 of the EAR		
9.	Has the contractor identified any pertinent export authorization it holds and why the GOV Exception is being requested? Is the justification satisfactory?		
10.	The request includes confirmation that no export activity has taken place to date pending the issuance of the requested letter of acknowledgement		
11.	If the activity has been ongoing, the request indicates under which export authority the transfer has been conducted to date and why the letter of acknowledgement is now being requested. <i>Should the matter raise a compliance concern, it is the responsibility of the contractor/exporter of record to resolve by coordinating with Department of Commerce (DoC) and/or Department of State (DoS). Processing of the request needs to be delayed until proof of concurrence by DoS/DoC has been provided</i>		
12.	The request includes confirmation that the export does not require Congressional Notification as defined in EAR § 740.2 and in §743.5		
13.	The export includes a set of proposed conditions and limitations to establish a clearly defined scope for the proposed export. <i>If yes, ensure they are reiterated/edited and/or added in the letter of acknowledgement. If not, consider applying appropriate limitations in the letter of acknowledgement</i>		
14.	The written request contains a statement that the export being considered has not been previously prohibited by an export authorization issued by either Department of State (for "600 Series" items transitioned from the ITAR) or by Department of Commerce		
<i>Items A through D address actions to be completed by the DON Activity issuing the written acknowledgment</i>			
A.	Coordination with Contracting Officer has been completed		
B.	Coordination with Foreign Disclosure Officer or cognizant Designated Disclosure Authority has been completed		
C.	An applicable validity period has been determined		
D.	Validate that the following statement has been included in the letter of Acknowledgement of Use of GOV Exception: "The subject written acknowledgement is being issued with the full understanding shared by both [name of DoN organization] and [name of contractor] that the contractor/company/ exporter of record is uniquely responsible for compliance with applicable export control regulatory requirement. All compliance requirements set forth by applicable export regulations remain the responsibility of [name of company requesting the issuance of the letter of acknowledgement of use of the GOV exception]"		

* Required in order to complete the review of the request for issuance of a letter of Acknowledgement for Use of GOV Exception pursuant to § 740.11

SECNAV M-5510.1
24 Jun 2019

SSIC
Ser
Date

[Name of company official for company requesting the issuance of the letter of acknowledgement for use of the GOV exception]

Title

Name of Company

Physical Address

Dear Mr./Ms. [Last Name]:

SUBJECT: [Description]

In response to [name of company requesting the issuance of the letter of acknowledgement for use of the GOV exception], this letter acknowledges the use of GOV Exception [§ 740.11 - requesting company to identify which subparagraph and appropriate ECCN applies] by [name of company requesting the issuance of the letter of acknowledgement for use of the GOV exception] to [describe the scope of transfer addressed in letter of acknowledgement for use of the GOV exception, to include the foreign recipients - an enclosure may be included to list all physical addresses of selected foreign parties -, destination of the export(s)/country of end use, as well as the period of execution].

[Expand scope further by providing specific details (i.e., reference to MOU and/or contract and/or FMS case the export will support)]

[Address prior related export and/or existing export authorizations - Note: if the export being considered under the scope of the letter of acknowledgement for use of the GOV exception is unclear and/or prohibited by an export authorization previously issued either by Department of State, Directorate of Defense Trade Controls (for "600 Series" items transitioned from the ITAR) or by Department of Commerce, Bureau of Industry and Security, then the subject letter cannot be issued.]

Items subject to the EAR and within the scope of this letter of acknowledgement for use of the GOV exception may not be reexported or transferred (in-country) unless such reexport

SECNAV M-5510.1
24 Jun 2019

or in-country transfer is (i) addressed in this letter of acknowledgement, or another license or other approval issued by the U.S. Government; (ii) authorized by a license exception or other authorization under the Export Administration Regulations (EAR); or (iii) to a destination, end user, and end use that would be "NLR" (No License Required) under the EAR.

The subject written acknowledgement is being issued with the full understanding shared by both [name of DON organization] and [name of contractor] that the contractor/company/ exporter of record is uniquely responsible for compliance with applicable export control regulatory requirement. All compliance requirements set forth by applicable export regulations remain the responsibility of [name of company requesting the issuance of the letter of acknowledgement for use of the GOV exception]

Additionally, the following conditions apply to the export activity subject addressed in this letter of acknowledgement:

- 1
- 2, etc.

This letter of acknowledgement for use of the GOV exception expires on [Date to coincide with completion of DON requirement - Note: the cumulative value of the scope of work covered under the letter of acknowledgement for use of the GOV exception cannot meet the thresholds associated with the Congressional notification requirements as stated in EAR §740.2 and in §743.5. Should circumstances arise subsequent that would cause any of the restrictions on use of the exception, eligibility for use of this exception ceases.

Any question concerning this matter may be addressed to me, [Name of author of subject letter and POC information].

Sincerely,

Copy to:
COR
SECURITY
NAVY IPO 01A

APPENDIX DD
FOREIGN DISCLOSURE MANUAL CHANGE REQUEST

1. To submit a change request, complete the information listed in a through m below and attach to email address:

NIPOFDM@navy.mil.

The email subject line should read:

"<type of change>FDM Change Request:<chapter or appendix>"
for example, "ADMINISTRATIVE FDM CHANGE REQUEST: CHAPTER 5"

The body of the email text should contain the following:

- a. Date of this change request (YYYYMMDD);
- b. Subject of change;
- c. Change type (critical, substantive, or administrative);
- d. Chapter/appendix;
- e. Paragraph and page;
- f. Current content;
- g. Change recommendation (including recommended wording);
- h. Justification (include specific references or citations where applicable);
- i. Submitted by;
- j. Submitter's FDO;
- k. Command;
- l. office telephone and DSN; and
- m. office e-mail address.

2. All information submitted in a change request must be unclassified.

SECNAV M-5510.1
24 Jun 2019

PAGE INTENTIONALLY LEFT BLANK

SECNAV M-5510.1

DEPARTMENT OF THE NAVY ISSUANCES
[HTTPS://WWW.SECNAV.NAVY.MIL/DONI/DEFAULT.ASPX](https://www.secnav.navy.mil/DONI/default.aspx)